

PROPOSAL INSTRUCTIONS

Department of Technology, Management and Budget—Procurement

Cloud Services

Request for Proposal No. 250000000414

Solicitation Manager Name: Shannon Romein

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This is a Request for Proposal (RFP) for:

Cloud Services

Solicitation Timeline

Event	Time	Date
Solicitation issue date	N/A	Friday, December 6, 2024
Pre-proposal meeting	9:30 a.m.	Thursday, December 12, 2024
Deadline for bidders to submit questions about this Solicitation	3:00 p.m. Eastern	Friday, December 20, 2024
Anticipated date the State will post answers to bidder questions on www.michigan.gov/SIGMAVSS	5:00 p.m. Eastern	Tuesday, January 7, 2025
Deadline for bidders to submit questions for an additional second round of questions	3:00 p.m. Eastern	Friday, January 10th, 2025
Anticipated date the State will post answers to second round of bidder questions on www.michigan.gov/SIGMAVSS	5:00 p.m. Eastern	Friday, January 17 th , 2025
Proposal deadline*	11:00 a.m. Eastern	Friday, February 7, 2025
Anticipated contract begin date	N/A	Monday, June 2, 2025

***A bidder's proposal received at 11:00:01 a.m. Eastern is late and subject to disqualification.**

This Solicitation is subject to change. Check www.michigan.gov/SIGMAVSS for current information.

RESPONSE REQUIREMENT: Download this RFP/RFS Word document, insert responses directly into the locations provided, referencing any external attachments, save under a new name and upload with any attachments. DO NOT BREAK UP SOLICITATION. Please upload completed Pricing Schedule separately.

1. PROPOSAL PREPARATION. The State recommends reading **all** Solicitation materials prior to preparing a proposal, particularly these Proposal Instructions and the Vendor Questions Worksheet. Bidders must follow these Proposal Instructions and provide a complete response to the items indicated in the table below. References and links to websites or external sources may not be used in lieu of providing the information requested in the Solicitation within the proposal. Include the bidder's company name in the header of all documents submitted with your proposal. **Note that all documents and information submitted as part of a proposal will become public record immediately upon receipt by the State. Proposals received by the State may be posted on the State's publicly available website after bidders are notified of the award recommendation.**

Solicitation Structure and Documentation

Document	Description	Bidder Response Instructions
Cover Page	Provides Solicitation title and number, important dates, and contact information for Solicitation Manager	Informational
Proposal Instructions	Provides Solicitation instructions to bidders	Informational
Confidential Treatment Form	Required verification on whether bidder's proposal contains confidential information	Bidder must complete and submit by proposal deadline
Vendor Questions Worksheet	Questions to bidders on background and experience	Bidder must complete and submit by proposal deadline
Attachment 1, Resume Templates	Key Personnel Resume Templates	Bidder must complete and submit by proposal deadline
Initial Response: High-level Terms and Conditions concepts	High-level Terms and Conditions concepts	Bidder must complete and submit by proposal deadline

Document	Description	Bidder Response Instructions
Software Terms and Conditions	This document provides the standard IT Contract Terms which is provided for reference only	Bidder to provide proposed terms applicable to this purchase
Schedule A – Statement of Work	Statement of Work details	Bidder must complete and submit by proposal deadline
Schedule A - Attachment 1 -Business Specification Worksheet	Business requirements	Bidder must complete and submit by proposal deadline
Schedule B – Pricing	Pricing for goods and services sought by the State through this Solicitation	Bidder must complete and submit by proposal deadline
Schedule C – Insurance	This document provides the Contract Insurance Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless information required in the Evaluation Process section of this document is submitted by the proposal deadline.
Schedule D - Service Level Agreement	This document provides the Service Level Agreement for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder's proposal.
Schedule E – Data Security Requirements	This document provides the Data Security Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder's proposal.
Schedule F - Disaster Recovery Plan	This schedule is a placeholder for the Bidder to provide their as Disaster Recovery Plan as Schedule G - Disaster Recovery Plan.	To be provided by Bidders and subject to negotiation.

Document	Description	Bidder Response Instructions
Schedule G – Transition In and Out Plan	This document provides the Transition in and Out Plan from the Contractor for any contract awarded from this.	To be provided by Bidders and subject to negotiation.
Schedule J - Federal Provision Addendum	The document provides federally required provisions when federal funds are used for the procurement.	Informational
Schedule J, Attachment 1 Byrd Anti-Lobbying Certification	Limitation on Payments to Influence Certain Federal Transactions	To be completed by Bidders

2. CONTACT INFORMATION FOR THE STATE. The sole point of contact for the State concerning this Solicitation is listed on the Cover Page. Contacting any other State personnel, agent, consultant, or representative about this Solicitation may result in Bidder disqualification.

3. OPTIONAL PRE-PROPOSAL MEETING.

An optional pre-proposal meeting will be held on December 12 at 9:30am Eastern Time via Teams.

Microsoft Teams [Need help?](#)

[Join the meeting now](#)

Meeting ID: 286 811 784 653

Passcode: 3thMpZ

Dial in by phone

[+1 248-509-0316,,262997580#](tel:+12485090316262997580) United States, Troy

[Find a local number](#)

Phone conference ID: 262 997 580#

For organizers: [Meeting options](#) | [Reset dial-in PIN](#)

The purpose of the pre-proposal meeting is to discuss the RFP/RFS and the work to be performed, and may include an inspection of the facility to receive the goods or services sought in this RFP/RFS. Statements made by the Solicitation Manager or designee at a pre-proposal meeting are not considered modifications to the Solicitation. If, however, the Solicitation

Manager determines modifications to the Solicitation are warranted after the meeting, modifications will be posted in writing on www.michigan.gov/SIGMAVSS as explained in the **Modifications** section of this document.

Attendance at the pre-proposal meeting is limited to 5 people per bidder. If the pre-proposal meeting is mandatory, a bidder may be disqualified by being late. Subcontractor sign-in is permitted in lieu of the bidder as evidence of attendance. Accessibility requests for reasonable accommodations at the pre-proposal meeting should be made with the Solicitation Manager at least 10 business days before the date of the meeting. Accommodation requests received outside this time period cannot be guaranteed.

4. MODIFICATIONS. The State may modify the Solicitation any time. Modifications will be posted on www.michigan.gov/SIGMAVSS. This is the only method by which the Solicitation may be modified.

5. QUESTIONS. Bidder questions about this Solicitation must be emailed to the Solicitation Manager no later than the time and date specified on the Cover Page. In the interest of transparency, only written questions are accepted. Answers to questions will be posted on www.michigan.gov/SIGMAVSS. Submit questions using the format below; a Microsoft Excel format or similar is suggested.

Q #	Document and Section	Page #	Bidder Question

6. DELIVERY OF PROPOSAL.

Electronic – The bidder must submit its proposal, all attachments, and any modifications or withdrawals electronically through www.michigan.gov/SIGMAVSS. The price proposal should be saved separately from all other proposal documents. The bidder should submit all documents in a modifiable (native) format (examples include but are not limited to Microsoft Word or Excel and Google Docs or Sheets). In addition to submitting documents in a modifiable format, the bidder may also submit copies of documents in PDF. Attachment file size is limited to 6 MB per document. Bidder's failure to submit a proposal as required may result in disqualification. The proposal and attachments must be fully uploaded and submitted prior to the proposal deadline. Do not wait until the last minute to submit a proposal, as the SIGMA VSS system requires the creation of an account and entry of certain information, in addition to uploading and submitting the materials. The SIGMA VSS system will not allow a proposal to be submitted after the proposal deadline identified in the solicitation Closing On/Closing Date fields (Summary view/Detail view), even if a portion of the proposal has been uploaded.

Questions on how to submit information or how to navigate in the SIGMA VSS system can be answered by calling (517) 284-0540 or (888) 734-9749. The Solicitation Manager will not provide assistance related to the submittal of the proposal and all attachments on the day of the proposal deadline. Responsibility for a complete submission lies with the bidder. Note that all documents and information submitted in any manner as part of a proposal will become public record immediately upon receipt by the State. Proposals received may be posted by the State on the State's publicly available website after bidders are notified of the award recommendation.

7. MANDATORY MINIMUM REQUIREMENTS. To avoid disqualification, the Bidder must provide documentation to support the following:

Minimum Requirements	
1.	Bidders must be a Direct Cloud Service Provider listed as 'FedRAMP Authorized' in the General Services Administration (GSA) FedRAMP Marketplace at Impact Level 'Low', 'Moderate', or 'High' and a Service Model that includes 'IaaS' and 'PaaS'

Only those proposals that meet the mandatory minimum requirements will be considered for evaluation.

BIDDER RESPONSE:

Google is a Direct Cloud Service Provider. Each Google Cloud service has to be individually FedRAMP Authorized, thus this list continually grows and changes over time. The full list can be viewed at <https://cloud.google.com/security/compliance/fedramp?hl=en>.

Per the FedRAMP website, the State can verify this information in the screen shot below <https://marketplace.fedramp.gov/products/FR1805751477>

FR
FedRAMP

Search FedRAMP.gov

UPDATES & PRIORITIES GET AUTHORIZED PARTNERS RESOURCES **MARKETPLACE** DEV HUB

GOOGLE SERVICES (GOOGLE CLOUD PLATFORM PRODUCTS AND UNDERLYING INFRASTRUCTURE)

Google

Package ID
FR1805751477

Package Request Form

Authorizations 1 **21**

Reuse 1 **225**

Authorization Status 1

Ready In Process: Review Authorized

N/A 02/05/2019 12/04/2019

Authorization Details 1

FedRAMP Ready: No FRR Date
Authorizing Entity Review: 02/05/2019
FedRAMP Authorized: 12/04/2019
Annual Assessment: 11/22
Independent Assessor: Coalfire Systems, Inc.

System Profile 1

Service Model: IaaS, PaaS, SaaS
Deployment Model: Public Cloud
Impact Level: High

Dependent Products 1

Authentic8, Inc. [Silo](#)

Autodesk [Autodesk for Government](#)

Black & Veatch [Black & Veatch for Government](#)

As of Jan 14, 2025 the list of Google Cloud services in scope for FedRAMP High include:

FedRAMP Package ID FR1805751477

*Note that all Google Cloud services covered by FedRAMP High are also covered by FedRAMP Moderate

*Note: FedRAMP Moderate and FedRAMP High platforms implement controls restricting TLS 1.1/1.0 connections at the domain level.

Access Approval

Access Context Manager

Access Transparency

Admin Console (including Admin SDK, Directory Sync)
AI Platform Data Labeling
AI Platform Neural Architecture Search (NAS)
AI Platform Training and Prediction (formerly Cloud Machine Learning Engine)
Anthos Config Management (ACM)
Anthos Identity Service (AIS)
Anthos Service Mesh
Apigee
App Engine Standard
Artifact Registry
Assured Workloads
AutoML Natural Language
AutoML Tables
AutoML Translation
AutoML Video
AutoML Vision
BeyondCorp Enterprise
BigQuery
BigQuery Data Transfer Service
Bigtable
Binary Authorization
Care Studio
CCAI Insights
Certificate Authority Service
Cloud Asset Inventory
Cloud Billing
Cloud Build
Cloud CDN
Cloud Composer
Cloud Console
Cloud Console App

Cloud Data Fusion
Cloud Deployment Manager
Cloud DNS
Cloud Endpoints
Cloud Error Reporting
Cloud External Key Manager (Cloud EKM)
Cloud Functions
Cloud Functions for Firebase
Cloud Healthcare API
Cloud HSM
Cloud Identity
Cloud IDS
Cloud Interconnect
Cloud Key Management Service
Cloud Life Sciences (formerly Google Genomics)
Cloud Load Balancing (L4 ILB)
Cloud Load Balancing (L7 ILB/XLB)
Cloud Load Balancing (Network Load Balancing)
Cloud Logging (includes Error Reporting)
Cloud Monitoring
Cloud NAT (Network Address Translation)
Cloud Natural Language API
Cloud Profiler (formerly Stackdriver Profiler)
Cloud Router
Cloud Run (fully managed)
Cloud Run for Anthos
Cloud Scheduler
Cloud SDK
Cloud Shell
Cloud Source Repositories
Cloud SQL

Cloud Storage
Cloud Storage for Firebase
Cloud Tasks
Cloud Trace (formerly Stackdriver Trace)
Cloud Translation
Cloud Vision API
Cloud VPN
Cloud Workstations
Compute Engine
Connect
Contact Center AI (CCAI)
Container Registry
Data Catalog
Database Migration Service
Dataflow
Dataproc
Datastore
DataStream
Dialog Flow
Document AI
Earth Engine
Eventarc
Filestore (Basic HDD and Basic SSD tiers)
Firebase Authentication
Firestore
Google Cloud Marketplace
GKE Hub
Google Cloud Armor (see limitation)
Google Cloud Identity-Aware Proxy
Google Kubernetes Engine
Google Security Operations

Google Security Operations SOAR
Identity & Access Management (IAM)
Identity Platform
Key Access Justifications (KAJ)
Looker Studio (including Pro, formerly Google Data Studio)
Memorystore for Memcache
Memorystore for Redis
Network Connectivity Center
Network Intelligence Center
Network Service Tiers
Persistent Disk
Pub/Sub
reCAPTCHA Enterprise
Resource Manager API
Secret Manager
Security Command Center Premium
Sensitive Data Protection (including Cloud Data Loss Prevention)
Service Directory
Service Infrastructure (formerly Service Control; includes Service Management API and Service Consumer Management API)
Spanner
Speech-to-Text
Storage Transfer Service
Talent Solution
Text-to-Speech
Traffic Director
Vertex AI Forecast
Vertex AI Model Registry
Vertex AI Workbench User Managed Notebooks (formerly AI Platform Notebooks)
Vertex Batch Predictions
Vertex ML Metadata
Vertex Model Monitoring

Vertex Online Predictions
Vertex Pipelines
Vertex Training
Video Intelligence API
Virtual Private Cloud
VPC Service Controls
Web Risk API
Workflows
Workforce Identity Federation

As of Jan 14, 2025 the list of Google Cloud services in scope for FedRAMP Moderate include:

FedRAMP Package ID FR1805751477

*Note that all Google Cloud services covered by FedRAMP High are also covered by FedRAMP Moderate

*Note: FedRAMP Moderate and FedRAMP High platforms implement controls restricting TLS 1.1/1.0 connections at the domain level.

Access Context Manager
Access Transparency
AI Platform Training and Prediction (formerly Cloud Machine Learning Engine)
Anthos Identity Service
Apigee
App Engine Standard
Artifact Registry
AutoML Natural Language
AutoML Tables
AutoML Translation
AutoML Video Intelligence
AutoML Vision
Beyondcorp Enterprise
BigQuery
BigQuery Data Transfer Service
Binary Authorization

Care Studio (Cloud Healthcare Search)
CCAI Insights
Certificate Authority Service
Cloud Billing API
Cloud Build
Cloud CDN
Cloud Composer
Cloud Data Fusion
Cloud Deployment Manager
Cloud DNS
Cloud Endpoints
Cloud Error Reporting
Cloud External Key Manager
Cloud Functions
Cloud Functions for Firebase
Cloud Healthcare API
Cloud Identity
Cloud IDS
Cloud Interconnect
Cloud Life Sciences (formerly Google Genomics)
Cloud Load Balancing
Cloud Logging
Cloud Key Management Service
Cloud Monitoring
Cloud NAT (Network Address Translation)
Cloud Natural Language API
Cloud Profiler
Cloud Router
Cloud Run (fully managed)
Cloud Run for Anthos
Cloud Scheduler

Cloud SDK
Cloud Shell
Cloud Source Repositories
Cloud SQL
Cloud Storage
Cloud Storage for Firebase
Cloud Tasks
Cloud Trace (formerly Stackdriver Trace)
Cloud Translation
Cloud Vision API
Cloud VPN
Cloud Workstations
Compute Engine
Config Management
Connect
Container Registry
Contact Center AI (CCAI)
Data Catalog
Database Migration Service
Datalab
Dataproc
Datastore
Datastream
Dialogflow
Document AI
Earth Engine
Eventarc
Filestore (Basic HDD and Basic SSD tiers)
Firestore
Game Servers
GKE Hub

Google Cloud App
Google Cloud Armor (see limitation)
Google Cloud CLI
Google Cloud console
Google Cloud Marketplace
Google Cloud Identity-Aware Proxy
Google Security Operations SIEM
Google Security Operations SOAR
Identity & Access Management (IAM)
Identity Platform
IoT Core
Key Access Justifications (KAJ)
Looker Studio (including Pro formerly Google Data Studio)
Memorystore
Network Connectivity Center
Network Intelligence Center
Network Service Tiers
Persistent Disk
Pub/Sub
reCAPTCHA Enterprise
Resource Manager API
Secret Manager
Security Command Center (including Web Security Scanner) (formerly Cloud Security Scanner)
Sensitive Data Protection (including Cloud Data Loss Prevention)
Service Directory
Service Infrastructure (formerly Service Control; includes Service Management API and Service Consumer Management API)
Service Mesh
Spanner
Speech-to-Text
Storage Transfer Service
Talent Solution

Text-to-Speech
Traffic Director
Vertex AI Forecast
Vertex AI Model Registry
Vertex AI Neural Architecture Search
Vertex AI Workbench User Managed Notebooks (formerly AI Platform Notebooks)
Vertex Batch Predictions
Vertex ML Metadata
Vertex Model Monitoring
Vertex Online Predictions
Vertex Pipelines
Vertex Training
Video Intelligence API
Virtual Private Cloud
VM Manager
VPC Service Controls
Web Risk API
Workflows
Workforce Identity Federation

As of January 14, 2025 All Google Cloud regions covered by FedRAMP High are also covered by FedRAMP Moderate.

Oregon (us-west1) - FedRAMP High
Los Angeles (us-west2) - FedRAMP High
Salt Lake City (us-west3) - FedRAMP High
Las Vegas (us-west4) - FedRAMP High
Iowa (us-central1) - FedRAMP High
Oklahoma (us-central2) - FedRAMP High
South Carolina (us-east1) - FedRAMP High
Northern Virginia (us-east4) - FedRAMP High
Columbus (us-east5) - FedRAMP High

Dallas (us-south1) - FedRAMP High
 Montreal (northamerica-northeast1) - FedRAMP Moderate
 São Paulo (southamerica-east1) - FedRAMP Moderate
 Belgium (europe-west1) - FedRAMP Moderate
 London (europe-west2) - FedRAMP Moderate
 Frankfurt (europe-west3) - FedRAMP Moderate
 Netherlands (europe-west4) - FedRAMP Moderate
 Finland (europe-north1) - FedRAMP Moderate
 Mumbai (asia-south1) - FedRAMP Moderate
 Singapore (asia-southeast1) - FedRAMP Moderate
 Taiwan (asia-east1) - FedRAMP Moderate
 Tokyo (asia-northeast1) - FedRAMP Moderate
 Sydney (australia-southeast1) - FedRAMP Moderate
 Zurich (europe-west6) - FedRAMP Moderate
 Warsaw (europe-central2) - FedRAMP Moderate
 Jakarta (asia-southeast2) - FedRAMP Moderate
 Osaka (asia-northeast2) - FedRAMP Moderate
 Seoul (asia-northeast3) - FedRAMP Moderate

8. EVALUATION PROCESS. The State will evaluate each proposal based on the following factors:

	Technical Criteria Name	Weight
1.	Vendor Questions Worksheet	5
2.	Schedule A- Statement of Work	20
3.	Schedule A- Table 1- Business Specification Worksheet	75
	Total	100

Proposals receiving 80 or more evaluation points will have pricing evaluated and be considered for award.

The State may utilize all Bidder information, without regard to a proposal's technical score, to determine fair market value for goods or services sought. The State is not obligated to accept the lowest price proposal. If applicable, the State's evaluation will include consideration of a bidder's qualified disabled veterans/service-disabled veteran owned business(QDV/SDVOB) status under [MCL 18.1261\(8\)](#). Additional information on the SDVOB preference is available at: Michigan.gov/SDVOB.

The State strongly encourages strict adherence to the Contract Terms and Schedules. The State reserves the right to deem a bid non-responsive for failure to accept the Contract Terms and Schedules. Nevertheless, the Bidder must submit any and all proposed changes to the Contract Terms and Schedules in tracked changes (i.e., visible edits) with an explanation of the Bidder's need for each proposed change. Failure to include track changes with an explanation of the Bidder's need for the proposed change constitutes the Bidder's acceptance of the Contract Terms and Schedules. State may choose not to accept redlines proposed by Bidders after the initial bid submission and Bidders who fail to submit redlines with their initial submission may be disqualified. Volume and type of changes may impact evaluation scores. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions or extensive redlines, may be considered non-responsive. Failure to respond timely to requests for proposed changes to Contract Terms during ongoing negotiations may be cause for disqualification.

✓ Bidder understands that proposed changes may affect the evaluation score and may be considered non-responsive.

The State may, but is not required to, conduct an on-site visit to tour and inspect the Bidder's facilities, require an oral presentation of the Bidder's proposal, attend a proof of concept meeting, conduct interviews with Bidders, or request additional price concessions at any point during the evaluation process.

The State may deduct points or reject a proposal if the Bidder fails to demonstrate to the State's satisfaction the viability or functionality of the goods or services at the proof of concept meeting, on-site visit tour, oral presentations, or during Bidder interviews.

9. NOTICE OF DEFICIENCY. The State reserves the right to issue a **Notice of Deficiency** to Bidders if the State determines after the proposal deadline that a portion of the Solicitation was deficient, unclear, or ambiguous. Failure to respond to a **Notice of Deficiency** timely may be cause for disqualification.

10. CLARIFICATION REQUEST. The State reserves the right to issue a **Clarification Request** to a Bidder to clarify its proposal if the State determines the proposal is not clear. Failure to respond to a **Clarification Request** timely may be cause for disqualification.

11. RESERVATIONS. The State reserves the rights, including, but not limited to:

- a. Disqualify a Bidder for failure to follow these instructions.
- b. Discontinue the solicitation process at any time for any or no reason. The issuance of a solicitation, your preparation and submission of a proposal, and the State's subsequent

receipt and evaluation of your proposal does not commit the State to award a contract to you or anyone, even if all the requirements in the solicitation are met.

c. Consider late proposals if: (i) no other proposals are received; (ii) no complete proposals are received; (iii) the State received complete proposals, but the proposals did not meet mandatory minimum requirements or technical criteria; or (iv) the award process fails to result in an award.

d. Consider an otherwise disqualified proposal, if no other proposals are received.

e. Disqualify a proposal based on: (i) information provided by the Bidder in response to this solicitation; (2) the Bidder's failure to complete registration on www.michigan.gov/SIGMAVSS; or (3) if it is determined that a Bidder purposely or willfully submitted false or misleading information in response to the solicitation.

f. Consider prior performance with the State in making its award decision.

g. Consider overall economic impact to the State when evaluating proposal pricing and in the final award recommendation. This includes but is not limited to: considering principal place of performance, number of Michigan citizens employed or potentially employed, dollars paid to Michigan residents, Michigan capital investments, job creation, tax revenue implications, and economically disadvantaged businesses.

h. Consider total-cost-of-ownership factors (e.g., transition and training costs) when evaluating proposal pricing and in the final award recommendation.

i. Refuse to award a contract to any Bidder that has failed to pay State taxes or has outstanding debt with the State.

j. Enter into negotiations with one or more Bidders on price, terms, technical requirements, or other deliverables.

k. Award multiple, optional-use contracts, or award by Contract Activity.

l. Evaluate the proposal outside the scope identified in the **Evaluation Process** section of this document, if the State receives only one proposal.

12. AWARD RECOMMENDATION. The contract will be awarded to the responsive and responsible Bidder who offers the best value to the State, as determined by the State. Best value will be determined by the Bidder meeting the minimum point threshold and offering the best combination of the factors stated in the **Evaluation Process** section of this document, and price, as demonstrated by the proposal. The State will post an **Award Recommendation and Evaluation Synopsis** on www.michigan.gov/SIGMAVSS or in the manner it was originally published.

13. DEBRIEF MEETINGS AND PROTEST. The State will post an **Award Recommendation and Evaluation Synopsis**, which will provide instructions on how to request a debrief meeting.

If you wish to initiate a protest of the award, you must submit your written protest electronically at BidProtest-DTMB@michigan.gov no later than 5:00 p.m. Eastern, 5 business days after posting the **Award Recommendation and Evaluation Synopsis** on SIGMA VSS. The State reserves the right to adjust this timing and will publish any change on the SIGMA VSS system.

Additional information about the protest process is available at [DTMB - Programs and Policies \(michigan.gov\)](#) under the “Bidder Protests” link.

14. STATE ADMINISTRATIVE BOARD. Contracts equal to \$250,000 or greater require approval by the State Administrative Board. The State Administrative Board’s decision is final; however, its approval does not constitute a contract. The award process is not complete until the awarded contractor receives a contract fully executed by all parties.

15. GENERAL CONDITIONS. The State will not be liable for any costs, expenses, or damages incurred by a Bidder participating in this solicitation. The Bidder agrees that its proposal will be considered an offer to do business with the State in accordance with its proposal, including the Contract Terms, and that its proposal will be irrevocable and binding for a period of 180 calendar days from date of submission. If a contract is awarded to the Bidder, the State may, at its option, incorporate any part of the Bidder’s proposal into a contract. This solicitation is not an offer to enter into a contract. This solicitation may not provide a complete statement of the State’s environment or contain all matters upon which agreement must be reached. The bidder understands that their proposal will become public record immediately upon receipt by the State. Other than verified trade secrets, proposals submitted via www.michigan.gov/SIGMAVSS are the State’s property.

16. CONFIDENTIAL TREATMENT FORM AND THE FREEDOM OF INFORMATION ACT. As a public record, all portions of the bidder’s proposal and resulting contract are subject to disclosure as required under Michigan’s Freedom of Information Act (FOIA), MCL 15.231, et seq. However, the State may exempt some information from disclosure as permitted by law. Under MCL 18.1261(13)(b), records containing “a trade secret as defined under section 2 of the uniform trade secrets act, 1998 PA 448, MCL 445.1902,” are exempt from disclosure under FOIA. In addition, “financial or proprietary information” submitted with a bidder’s proposal is exempt from disclosure under FOIA. **A bidder’s failure to comply with this Section is grounds for rejecting a bidder’s proposal as non-responsive.** As a part of its proposal, each bidder must follow the procedure below.

a. SUBMIT A COMPLETED “CONFIDENTIAL TREATMENT FORM” (CT FORM) WITH YOUR BID. Completion and submission of the CT Form is required regardless of whether the bidder seeks confidential treatment of information. **Failure to submit a completed CT Form may be cause for disqualification from the solicitation process. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form instructions, the proposal may be publicly disclosed in its entirety without redaction after an award recommendation.**

- i. Complete and sign Section 1 of the CT Form if the bidder does NOT request confidential treatment of information contained in its proposal; or
- ii. Complete and sign Section 2 of the CT Form if the bidder requests confidential treatment of certain information. Bidder must also submit a “Public Copy” of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the “Public Copy.”
- iii. Failure to complete and sign a CT Form may result in disqualification of the bidder. If a bidder fails to properly complete and submit the CT Form or otherwise fails to

follow the CT Form instructions, the proposal, in its entirety, will be treated as a “Public Copy” and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation.

b. FOIA REQUESTS. If a FOIA request is made for a bidder’s proposal, the Public Copy may be distributed to the public along with the bidder’s CT Form. The CT Form is a public document and serves as an explanation for the redactions to the Public Copy. Do not put any trade secret, financial, or proprietary information in the CT Form. Do not redact the CT Form itself.

c. NO ADVICE. The State will not advise a bidder as to the nature or content of documents entitled to protection from disclosure under FOIA or other laws, as to the interpretation of such laws, or as to the definition of trade secret or financial or proprietary information. Nothing contained in this provision will modify or amend requirements and obligations imposed on the State by FOIA or other applicable law.

d. FAILURE TO REQUEST CONFIDENTIAL TREATMENT. Failure to request material be treated as confidential as specified herein relieves the State, its agencies, and personnel from any responsibility for maintaining material in confidence.

e. Bids containing a request to maintain an entire proposal as confidential may be rejected as non-responsive. Bidders may not request confidential treatment with respect to resumes, pricing, and marketing materials. The State reserves the right to determine whether material designated as exempt by a bidder falls under MCL 18.1261 or other applicable FOIA exemptions. If a FOIA request is made for materials that the bidder has identified as trade secret, financial, or proprietary information, the State has the final authority to determine whether the materials are exempt from disclosure under FOIA.

f. Bidder forever releases the State, its departments, subdivisions, officers, and employees from all claims, rights, actions, demands, damages, liabilities, expenses and fees, which arise out of or relate to the disclosure of all or a portion of bidder’s proposal submitted under this Solicitation. Bidder must defend, indemnify and hold the State, its departments, subdivisions, officers, and employees harmless, without limitation, from and against all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to any FOIA request, including potential litigation and appeals, related to the portion of bidder’s proposal submitted under this Solicitation that bidder has identified as a trade secret, or financial or proprietary information. The State will notify bidder in writing if indemnification is sought. The State is entitled to: (i) regular updates on proceeding status; (ii) participate in the defense of the proceeding; (iii) employ its own counsel; and to (iv) retain control of the defense, or any portion thereof, if the State deems necessary. Bidder will not, without the State’s written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. If a State employee, official, or law is involved or challenged, the State may control the defense of that portion of the claim. Any litigation activity on behalf of the State, or any of its subdivisions under this Section, must be coordinated with the Department of Attorney General. An

attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.

CONFIDENTIAL TREATMENT FORM

INSTRUCTIONS. Bidder must complete either *Section 1* or *Section 2* of this CT Form and sign where indicated. **Do not complete both sections.** This CT Form must be signed by the individual who signed the bidder's proposal. A completed CT Form must be submitted with your proposal, regardless of whether your proposal contains confidential information.

Failure to submit a completed CT Form with your bid is grounds for rejecting the proposal as non-responsive. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form Instructions, the proposal, in its entirety, will be treated as a "Public Copy" and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation. See the Confidential Treatment Form and The Freedom of Information Act (FOIA) sections of the *Proposal Instructions* for additional information.

Section 1. CONFIDENTIAL TREATMENT IS NOT REQUESTED

This section must be completed, signed, and submitted with the proposal if the bidder does **not** request confidential treatment of any material contained in the proposal. **If this section is completed, do not complete Section 2. CONFIDENTIAL TREATMENT IS REQUESTED.**

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is not requested.

RFP 250000000414

Cloud Services

Solicitation Number

Solicitation Title

Signature

Date

Philip Schindler, Google LLC, SVP, Chief Business Officer

Printed Name, Title, Company

Section 2. CONFIDENTIAL TREATMENT IS REQUESTED

This section must be completed, signed, and submitted with the proposal if bidder requests confidential treatment of any material contained in the proposal. Submission of a completed CT Form is required to request confidential treatment. **If this section is completed, do not complete Section 1. CONFIDENTIAL TREATMENT IS NOT REQUESTED.**

Provide the information in the table below. Bidder may add rows or additional pages using the same format shown in the table. Bidder must specifically identify the information to be protected as confidential and state the reasons why protection is necessary.

The CT Form will not be considered fully complete unless, for each confidentiality request, the bidder: (1) identifies the Proposal Page #, Section #, and Paragraph #, (2) identifies whether the material is a Trade Secret (TS), Proprietary Financial Information (FI), or Proprietary Information (PI), and (3) explains the specific legal grounds that support treatment of the material as TS, FI, or PI. Bidders must provide a complete justification as to how the material falls within the scope of an applicable FOIA exemption or relevant case law. Bidders must not simply cite to an applicable exemption or case name. Bidders must also provide the contact information for the person at their organization authorized to respond to inquiries by the State concerning the material.

Bidder must also submit a "Public Copy" of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the "Public Copy".

(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is requested and has attached to this form a redacted "Public Copy" of the bidder's proposal.

Solicitation Number

Solicitation Title

Signature

Date

Printed Name, Title, Company

VENDOR QUESTIONS WORKSHEET

Provide a detailed response to each question. "You" and "company" refers to the bidder.

Information Sought	Bidder Response
1. Contact Information	
Bidder's sole contact person during the Solicitation process. Include name, title, address, email, and phone number.	Charlie Henderson Enterprise Account Manager micharlie@google.com 312-852-2020 Google Ann Arbor 2300 Traverwood Dr. Ann Arbor, Michigan 48105
Person authorized to receive and sign a resulting contract. Include name, title, address, email, phone number and vendor customer code in SIGMA VSS.	Philip Schindler SVP, Chief Business Officer philipps@google.com Phone +1 650-214-9636 SIGMA VSS # VC0001158 1600 Amphitheatre Pkwy Mountain View, CA 94043
2. Company Background Information	
Legal business name and address. Include business entity designation, e.g., sole proprietor, Inc., LLC, or LLP.	Google LLC 1600 Amphitheatre Pkwy Mountain View, CA 94043
What state was the company formed in?	California
Phone number.	n/a Please contact Charlie Henderson
Website address.	cloud.google.com
Number of years in business.	25+
Number of employees.	As of the Q3 10-Q for 2024, Alphabet had 181,269 employees.
Legal business name and address of parent company, if any.	Google LLC is a wholly owned subsidiary of Alphabet Inc.

Information Sought	Bidder Response
	Google LLC 1600 Amphitheatre Pkwy Mountain View, CA 94043
Has there been a recent change in organizational structure (e.g., management team) or control (e.g., merger or acquisition) of your company? If the answer is yes: (a) explain why the change occurred and (b) how this change has affected your company.	No.
Discuss your company's history. Has growth been organic, through mergers and acquisitions, or both?	Google's co-founder, Larry Page (who was born and raised in East Lansing, MI) and Sergey Brin founded Google in September 1998. Google has experienced significant growth since its founding. Today, it boasts more than 180,000 employees worldwide and offers a wide range of popular products and platforms like Search, Maps, Ads, Gmail, Android, Chrome, Google Cloud, and YouTube.. In October 2015, Alphabet became the parent holding company of Google. In 2008, Google launched its Cloud division. This brought the power of cloud computing to businesses of all sizes, educational institutions, and government agencies. Google Cloud helps millions of employees and organizations collaborate more effectively, serve customers better, and innovate for the future. It offers a comprehensive set of cloud services for computing, storage, and analytics. Additionally, its rich APIs help organizations innovate faster, scale operations intelligently, enhance security, and gain deeper insights from data. We engineer our products for security, reliability and scalability, running the full stack from infrastructure to applications to devices and hardware. Growth has been both organic and through mergers and acquisitions.

Information Sought	Bidder Response
Has bidder ever been debarred, suspended, or disqualified from bidding or contracting with any entity, including the State of Michigan? If yes, provide the date, the entity, and details about the situation.	Google LLC is not currently debarred, suspended, or disqualified from bidding or contracting with any US entity, including the State of Michigan.
Has your company been a party to litigation against the State of Michigan? If the answer is yes, then state the date of initial filing, case name and court number, and jurisdiction.	Google is regularly subject to claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders involving competition, intellectual property, data security, tax and related compliance, labor and employment, commercial disputes, content generated by our users, goods and services offered by advertisers or publishers using our platforms, personal injury, consumer protection, and other matters. For more information on Legal Matters, see our most recent Annual Report on Form 10-K, filed with the U.S. Securities and Exchange Commission. The most recent Form 10-K can be found at https://abc.xyz/investor/ .
Within the last 5 years, has your company or any of its related business entities defaulted on a contract or had a contract terminated for cause? If yes, provide the date, contracting entity, type of contract, and details about the termination or default.	Google is regularly subject to claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders involving competition, intellectual property, data security, tax and related compliance, labor and employment, commercial disputes, content generated by our users, goods and services offered by advertisers or publishers using our platforms, personal injury, consumer protection, and other matters. For more information on Legal Matters, see our most recent Annual Report on Form 10-K, filed with the U.S. Securities and Exchange Commission. The most recent Form 10-K can be found at https://abc.xyz/investor/ .
State your gross annual sales for each of the last 5 years. If receiving a contract under this Solicitation will increase your gross revenue by more than 25% from	Alphabet Inc. Annual Revenue Please visit https://abc.xyz/investor/ to find the relevant 10-K forms.

Information Sought	Bidder Response
last year's sales, explain how the company will scale-up to manage this increase.	
Describe partnerships and strategic relationships you think will bring significant value to the State.	Google will use Carahsoft as the billing agent/partner for the Google services bid under this proposal. For years, Google has partnered with all of the industries IVR providers (NICE, Cisco, Avaya, Genesys, Salesforce, etc.) to provide what's known in the industry as "CCAI" (Contact Center AI). All of these trusted IVR providers standardized their AI service offerings on Google to help customers provide a more self service offering. This was deployed across dozens of state governments, including a couple of instances at the State of Michigan. We've taken the experience we've developed over the last decade and brought that to our best-in-class, first party, full stack offering. In addition to our software partnerships on the IVR side, Google has a robust partner ecosystem, with dozens of system integrator partners who specialize in deployments and long term maintenance of Call Center solutions such as this. Many of those partners (such as Deloitte, McKinsey, Accenture, and Blue Vector to name a few) are also key business partners with the State of Michigan, and would be valuable resources moving forward.
State the physical address of the place of business that would have primary responsibility for this account if bidder is awarded a contract under this Solicitation.	Google LLC 1600 Amphitheatre Pkwy Mountain View, CA 94043
Bidder affirms that any business types identified on its SIGMA VSS profile, including those eligible for Geographically Disadvantaged Business Enterprise (GDBE) and Michigan Supplier Community Program (MiSC) , are valid.	No Not applicable to Google

Information Sought	Bidder Response
3. Qualified Disabled Veteran/Service-Disabled Veteran-Owned Business Program	
Under MCL 18.1261 , a “qualified disabled veteran” means a business entity that is 51% or more owned by 1 or more veterans with a service-connected disability. A “service-connected disability” means a disability incurred or aggravated in the line of duty in the active military, naval, or air service as described in 38 USC 101(16). Are you a qualified disabled veteran?	No
To demonstrate qualification as a qualified disabled veteran, you must provide: (a) Proof of service and conditions of discharge (DD214 or equivalent); (b) Proof of service-connected disability (DD214 if the disability was documented at discharge or Veterans Administration Rating Decision Letter or equivalent if the disability was documented after discharge); and (c) Legal documents setting forth the ownership of the business entity. In lieu of the documentation identified above, you may provide proof of certification by the National Veterans Business Development Council.	Not Applicable
4. Participation in Solicitation Development or Evaluation	
Did your company, an employee, agent, or representative of your company, or any affiliated entity participate in developing any component of this solicitation? For purposes of this question, business concerns, organizations, or individuals are affiliates of each other if, directly or indirectly: (1) either one controls or has power to control the other or (2) a third-party controls or has the power to control both. Indicia of control include, but are not limited to, interlocking management or ownership, identity of interests among family members, shared facilities or equipment, and common use of employees.	Choose an item. If you enter “YES”, you are not eligible for contract award or to work as a subcontractor for the awarded vendor.

Information Sought	Bidder Response
If you are awarded a contract under this solicitation, in order to provide the goods or services required under a resulting contract, do you intend to partner or subcontract with a person or entity that assisted in the development of this solicitation?	No
Will your company, or an employee, agent, or representative of your company, participate in the evaluation of the proposals received in response to this Solicitation?	No
5. State of Michigan Experience and Prior Experience	
Does your company have experience working with the State of Michigan? If so, please provide a list (including the contract number) of the contracts you hold or have held with the State for the last 10 years.	Yes. Google has an existing master an existing master agreement and terms in place with the State of Michigan via the Statewide Infrastructure as a Service Contract (Contract #230000000200) we were awarded. We also have relationships and existing projects running within several State of Michigan Agencies. A few of which are included below: • Department of Health and Human Services • Michigan State Police • Michigan Cyber Security • Michigan Department of Corrections • Office of the Governor • Unemployment Insurance Agency • Department of Treasury • Department of Education • Department of Technology, Management, and Budget Upon request, we will provide contract information for state-level projects.
Describe at least 3 relevant experiences from the last 5 years supporting your ability to successfully manage a contract of similar size and scope for the work described in this Solicitation.	Over the last 5 years, Google Cloud has partnered with the State of Michigan on dozens of mission-critical projects. This collaboration has made Google Cloud one of the leading cloud service providers in the

Information Sought	Bidder Response
	State. As of the end of 2023 calendar year, Google has deployed nearly 40 projects for the State. The most prevalent being the entire Document Intake process for Michigan Bridges, Inmate Education system for DOC, and using AI to extract all of the State's Marriage, Divorce, Death and Birth Certificates for Vital Records. While these projects varied in size, scope, and complexity, one thing remained consistent: we delivered them effectively and quickly. This proved that project timelines could be measured in days or weeks, not the months the State was used to. Our success built credibility and trust, earning us the State's Infrastructure as a Service contract (Contract #230000000200) – the state's preferred cloud contract.
Experience 1: State of Ohio	
Company Name: State of Ohio Contacts: Dan Myers Contact role at time of project. Contract Administrator Contact phone. (prefers contact via email) Contact email.	
City. Columbus State. Ohio Zip. 43215	
1. Project name and description of the scope of the project. Statewide Master Cloud Services Contract 2. What role did your company play? Google is the direct manufacturer, and direct bidder of this pre qualified contract 3. How is this project experience relevant to the subject of this RFS? Identical scope for pre qualified cloud services, from the direct manufacturer	
Dollar value. Not Applicable. Prequalified Contract	
Start and end date 04/29/2021	
Status (completed, live, other – specify phase) - Live	
Results obtained. This has been an amazing vehicle to help the State of Ohio quickly provide secure, cutting edge solutions to their agencies. The contract has been widely used across the state	

Information Sought	Bidder Response
Experience 2: City of New York	
Company Name: City of New York Contacts: Mike Baraiolo Contact role at time of project. Contract Administrator Contact phone. (prefers contact via email) Contact email. mikebaraiolo@google.com	
City. New York City State. New York Zip.	
1. Project name and description of the scope of the project. City of New York Statewide Contract 2. What role did your company play? Google Cloud is the manufacturer of the cloud services and negotiated the terms of service directly with the Customer. 3. How is this project experience relevant to the subject of this RFS? Our project experience relevant to this RFS includes New York City Cyber Command, a Google Cloud Customer for the past several years. They built a resilient, highly secure, and highly scalable data pipeline on Google Cloud to help its cybersecurity experts detect and respond to threats faster. Please see case study here	
Dollar value. Not Applicable. Prequalified Contract	
Start and end date	
Status (completed, live, other – specify phase) - Live	
Results obtained. Identify threats faster. Simplified identity management and collaboration. Secure and scalable.	
Experience 3: State of Michigan	
Company name.	State of Michigan
Contact name.	Matt Weiss
Contact role at time of project.	Director, Procurement
Contact phone.	517-256-9895
Contact email.	WeissM4@michigan.gov
City.	Lansing
State.	Michigan
Zip.	48933

Information Sought	Bidder Response
1. Project name and description of the scope of the project .	Infrastructure as a Service ("IaaS") contract (Contract Notice No. 230000000200)
2. What role did your company play?	
3. How is this project experience relevant to the subject of this Solicitation?	Google was the direct bidder on this pre-qualified contract Scope is identical to this in every way, except the IaaS contract was restricted to only being able to use compute, storage and data warehousing. All of Google's services however are treated the same, in the same data centers, and access the same - where it is IaaS, PaaS or SaaS. Google does not necessarily differentiate those terms and services
Dollar value.	~\$2M annually
Start and end date	12/6/22 - 12/6/27
Status (completed, live, other – specify phase)	Live
Results obtained.	This contract has been a valuable resource by both parties and has allowed the state to benefit from a number of significant strategic business investments over the last couple of years.
6. Standard Contract Terms	
Bidder must affirm agreement with all items within the "Initial Response: High-level Terms and Conditions". If not in agreement, written exceptions may only be provided in accordance with the Evaluation Process section of the Proposal Instructions must be provided with Bidder's proposal. Having exceptions to the "Initial Response: High-level Terms and Conditions" may be cause for disqualification.	Google is a public cloud service provider, and our approach is to propose previously agreed Terms of Service (Contract Notice No. 230000000200), which have been executed by the State of Michigan Department of Technology, Management, and Budget. Per RFP instructions, we have written exceptions and provided the alternative terms, along with explanations as "Google Comments." Google is open to discussing any redlines in order to

Information Sought	Bidder Response
	tailor appropriate terms and conditions for the State.
Please indicate whether Bidder is listed on the government-wide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (51 FR 6370; February 21, 1986) and 12689 (54 FR 34131; August 18, 1989), "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.	Google LLC is registered in Sam.gov.
Bidder must include all persons who reviewed or edited the Contract terms, and their applicable role and title within your organization.	• Veronica Romero - Contracts and Deal Execution • Christopher Bowen - Commercial Corporate Counsel
7. Insurance Requirements	
Bidder must affirm agreement with the attached Schedule C (Insurance Requirements). If not in agreement, written exceptions in accordance with the Evaluation Process section of the Proposal Instructions must be provided with the Bidder's proposal.	Google affirms it meets the insurance requirements in its existing Terms of Service (Contract Notice No. 230000000200) executed by the State of Michigan Department of Technology, Management, and Budget and Google LLC.
8. Michigan Economic Impact	
Number of employees currently employed at locations within the State of Michigan.	~781* *Note, this figure is based on the total number of Google Employees located at our Michigan offices in Ann Arbor or Detroit at the time of proposal submission.
Number of additional employees to be employed at locations within the State of Michigan if awarded this Contract (if any)	No Change
Minimum wage paid to employees employed at locations within the State of Michigan.	Ann Arbor Min. Hourly Salary \$27.40 United States Dollars (USD)/hour* Detroit Min. Hourly Salary \$30.50 USD/hour*

Information Sought	Bidder Response
	*Note, this figure is based on the total number of Google Employees located at our Michigan offices in Ann Arbor or Detroit at the time of proposal submission.
Average wage paid to employees employed at locations within the State of Michigan.	Ann Arbor Avg. Hourly Salary \$58.60 USD/hour* Detroit Avg. Hourly Salary \$60.00 USD/hour* *Note, this figure is based on the total Google Employees located at our Michigan offices in Ann Arbor or Detroit at the time of proposal submission
Percentage of employees employed at locations within the State of Michigan that are covered by employer-provided health insurance.	~97% of the 781 employees are covered by employer-provided health insurance. *Note, this figure is based on the total Google Employees located at our Michigan offices in Ann Arbor or Detroit at the time of proposal submission.
9. Labor, Antidiscrimination and Environmental Laws Compliance	
Bidder must disclose any violations of state or federal labor, antidiscrimination and employment laws and regulations received within the past five years.	Google is regularly subject to claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders involving competition, intellectual property, data security, tax and related compliance, labor and employment, commercial disputes, content generated by our users, goods and services offered by advertisers or publishers using our platforms, personal injury, consumer protection, and other matters. Such claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders could result in fines and penalties, or other adverse consequences. For more information on Legal Matters, see our most recent Annual Report on Form 10-K, filed with the U.S. Securities and Exchange Commission. The most recent Form 10-K can be found at https://abc.xyz/investor/.

Information Sought	Bidder Response
Bidder must disclose any violations of state or federal environmental laws and regulations received within the past five years.	Google is regularly subject to claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders involving competition, intellectual property, data security, tax and related compliance, labor and employment, commercial disputes, content generated by our users, goods and services offered by advertisers or publishers using our platforms, personal injury, consumer protection, and other matters. Such claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders could result in fines and penalties, or other adverse consequences. For more information on Legal Matters, see our most recent Annual Report on Form 10-K, filed with the U.S. Securities and Exchange Commission. The most recent Form 10-K can be found at https://abc.xyz/investor/ .
10. Supplier Diversity	
Does your company have a supplier diversity program or training?	Yes Yes. Our Supplier Diversity program is designed to connect more of the minority; women; Lesbian Gay Bisexual Transgender (LGBT); disability; and veteran-owned businesses to opportunities within Google. These companies can register themselves in Google's Diverse Supplier database.
Bidder agrees that if Bidder is awarded a contract with a dollar amount of \$500,000 or greater from this Solicitation, Bidder shall provide a copy of their current EEO-1 demographic report provided that Bidder meets Federal requirements to file an EEO-1 report.	Yes. Google makes its most recent EEO-1 Report available on its investor's relation page at https://abc.xyz/investor/esg/
11. Other	
Classification of Employees. I certify that the company has properly classified its employees in	Google is regularly subject to claims, lawsuits, regulatory and government investigations, other proceedings, and

Information Sought	Bidder Response
accordance with federal/state labor and employment laws.	consent orders involving competition, intellectual property, data security, tax and related compliance, labor and employment, commercial disputes, content generated by our users, goods and services offered by advertisers or publishers using our platforms, personal injury, consumer protection, and other matters. Such claims, lawsuits, regulatory and government investigations, other proceedings, and consent orders could result in fines and penalties, or other adverse consequences. For more information on Legal Matters, see our most recent Annual Report on Form 10-K, filed with the U.S. Securities and Exchange Commission. The most recent Form 10-K can be found at https://abc.xyz/investor/ .
Abusive Labor Practices. The Contractor certifies that it will not furnish any Deliverable that was produced fully or partially by forced labor, forced or indentured child labor, or indentured servitude.	Google is committed to eliminating slavery, servitude, forced or compulsory labor, human trafficking, and child labor in our supply chains and business operations. More information regarding Google's policy and statement against modern slavery can be found on its investor relations page at https://abc.xyz/investor/esg/
Certification of Michigan Business- Public Act 431 of 1984, Sec. 268. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, filed a Michigan Business Tax Corporate Income Tax Return. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, filed a Michigan Income Tax return showing income generated in, or attributed to the State of Michigan. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, withheld Michigan Income Tax from compensation paid to the company's owners and remitted the tax to the Michigan Department of Treasury.	Yes. XXVI Holdings Inc. is the entity that files the Michigan Business Tax Corporate Income Tax Return on behalf of Google LLC. XXVI Holdings Inc. is up-to-date in all of its Michigan Business Tax Corporate Income Tax Return filings.
Iran Linked Business- Public Act 517 of 2012. I certify that the Company is not an Iran-Linked business as defined by Public Act 517 of 2012.	Google LLC is not an Iran-linked business as defined by Public Act 517 of 2012.

Information Sought	Bidder Response
Clean Corporate Citizen. I certify that the Company is a Clean Corporate Citizen as defined by the Environmental Protection Act, 1994 PA 451.	For information regarding Google's environmental sustainability, please see the information on our investor relations page: https://abc.xyz/investor/esg/
Convict Labor. The Contractor certifies that if using convict labor, it is complying with all applicable state and federal laws and policies.	Not applicable.
SOM Debt/Tax Payment. All SOM tax/debts. I certify that all applicable State of Michigan taxes are paid, and that no outstanding debt is owed to the State of Michigan.	Yes. Yes. XXVI Holdings Inc. is the entity that files the Michigan Business Tax Corporate Income Tax Return on behalf of Google LLC. XXVI Holdings Inc. is up-to-date in all of its Michigan Business Tax Corporate Income Tax Return filings.
Authorization to Verify Information Provided by Vendor. I authorize the State to verify that all information provided in this registration, in bidding and contracting documents, and any attachments or supplement documents and processes are accurate.	Yes
12. Response to State Requests	
Bidder agrees to respond, by established deadlines, to all requests from the State including but not limited to, clarification requests, notices of deficiency, and proposed changes to Contract Terms.	Google will make commercially reasonable efforts to respond to State Requests.

ATTACHMENT 1, RESUME TEMPLATES

The Contractor must use the Résumé Summary Template(s) provided in this attachment. Résumés for personnel should not exceed four (4) pages each in length.

Résumés for personnel must include relevant skills, experience, and references.

It is acceptable for one person to fill multiple key positions for this project. However, a key résumé template must be completed for each key position to demonstrate that the required skills and experience are met and the proposal must demonstrate that the individual is assigned to the project for sufficient hours to meet the requirements of all roles for which they have been designated.

The State may evaluate such criteria as time spent by the personnel directly supporting similar solutions, and comparable size, scope and complexity of implementations accomplished.

The Contractor must submit a Letter of Commitment for key personnel who will be assigned to the Contract, signed by the identified resource, stating their commitment to work for the Contractor on this project contingent on award of the bid. If the identified personnel are currently assigned to another State project the Contractor must provide a letter signed by the State Program Manager releasing the individual from the other project upon execution of the Contract.

Contractor Program Manager

Proposed Resource Name:	Veronica Romero
Proposed Classification:	Contractor Cloud Contract Manager
If resource is associated with a subcontractor provide name of company:	N/A
Percentage of time resource will be allocated to project:	To Be Determined
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	Dedicated Contract Manager for Google Cloud, Google Public Sector with over 8 years of experience in similar roles. Ensuring that all contracts and programs complied with relevant legal and regulatory requirements as well as internal corporate policies (securing relevant approvals, following instructed processes, providing services under legally binding agreements). Responsible for addressing consultations, reviews, and redlines of Google Cloud contracts, including socializing contract changes with internal stakeholders for approval. Collaborating with the pricing team in the creation of financial commitments including coordinating approvals of pricing discounts and incentives.

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing projects of similar size and scope of this solicitation.	Does resource have this required skill: Yes Description of skills and experience: Responsible for leading contract negotiations and managing 2 large framework agreements in Education for Google Cloud with CITE and Internet2. These agreements cover Google Cloud Platform and Workspace services. Name of project(s) and year(s) experience was obtained: Internet2 NET+ Program
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: Yes Description of skills and experience: Leading live contract discussions with key high-value and strategic clients,

Required Skills	Bidder's Response
	encompassing research and educational network consortiums, higher education and K-12 institutions along with state and local agencies and Federal civilian agencies. Name of project(s) and year(s) experience was obtained: Education Customers, Google Cloud (~ 6 years) .
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and timely delivery of service	Does resource have this required skill: Yes Description of skills and experience: • Daily administrative and contract support for the Sales Team • Collaborate with legal and pricing teams to develop optimal Google Cloud solutions and pricing for government and education customers • Facilitate internal approval for contract changes Name of project(s) and year(s) experience was obtained: Team Lead Accenture Contract Management Team - Cloud Services.
Education: Bachelor's degree	List your degree and the conferring institution: • LLM INTERNATIONAL COMMERCIAL LAW - City University London • SPECIALISATION IN CORPORATE LAW - Universidad Metropolitana • LAW BACHELOR'S DEGREE - Universidad Central De Venezuela

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date: 03.06.2019	End Date: On-going - Active
Client/Project: University Corporation For Advanced Internet Development Facilitation Agreement	
Employer: Google LLC	
Title/Percentage of time: Contracts Manager, Full Time employee	

Description: The Internet2-Google facilitation agreement makes pre-negotiated GCP terms of service available for Internet2 members (Universities) alongside Education-specific pricing. The terms focus on the service Google will deliver to the customer. A Google reseller is responsible for placing orders, invoicing, and payment.

Start Date: 05.16.2023	End Date: On-going - Active
Client/Project: California IT in Education Partnership Agreement	
Employer: Google LLC	
Title/Percentage of time: Contracts Manager, Full time employee	
Description: The CITE partnership agreement provides a statewide buying program that allows any qualifying K-12 school district in the state of California to leverage pre-negotiated pricing for Education Plus in addition to data privacy terms.	

Start Date: 12.12.2021	End Date: On-going - Active
Client/Project: City of New York Statewide Contract	
Employer: Google LLC	
Title/Percentage of time: Contracts Manager, Full-time Employee	
Description: Centralized procurement contract allowing city agencies to purchase a variety of Google Cloud services subject to prenegotiated terms via authorized resellers & distributor.	

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)	LLM INTERNATIONAL COMMERCIAL LAW	Year Completed: 2011
Program: Master	Major(s) area of study: Law	Minor area of study: Law
University	CITY UNIVERSITY LONDON	

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)	Specialization in Corporate Law	Year Completed: 2007

Program: Specialization	Major(s) area of study: Law	Minor area of study: Law
University	UNIVERSIDAD METROPOLITANA	

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	Not Applicable
Topic	(include credit hours if applicable)
Date taken	

Contractor Contract Administrator

Google does not have this role.

Proposed Resource Name:	Google does not have this role.
Proposed Classification:	Contractor Contract Administrator
If resource is associated with a subcontractor provide name of company:	
Percentage of time resource will be allocated to project:	
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience facilitating, documenting and monitoring Contractor responsibilities and activities in the fulfillment of Contract requirements.	Does resource have this required skill: Yes " or No " Description of skills and experience: Name of project(s) and year(s) experience was obtained:
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: Yes " or No " Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and timely delivery of service	Does resource have this required skill: Yes " or No " Description of skills and experience: Name of project(s) and year(s) experience was obtained:

Required Skills	Bidder's Response
Education: Bachelor's degree	List your degree and the conferring institution:

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:

Program	Major(s) area of study:	Minor area of study:
University		

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study:	Minor area of study:
University		

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	
Topic	(include credit hours if applicable)
Date taken	

Contractor Security Officer

Google does not assign an individual, our security personnel share responsibilities.

Proposed Resource Name:	Google does not assign an individual, our security personnel share responsibilities.
Proposed Classification:	Contractor Security Officer
If resource is associated with a subcontractor provide name of company:	
Percentage of time resource will be allocated to project:	
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing the security for similar size and scope of this solicitation.	Does resource have this required skill: Yes or No Description of skills and experience: Name of project(s) and year(s) experience was obtained:
5 years of experience facilitating compliance for clients & stakeholders	Does resource have this required skill: Yes or No Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Excellent communication and organization skills required Ability to motivate and guide staff to ensure secure, accurate, efficient, and timely delivery of service	Does resource have this required skill: Yes or No Description of skills and experience: Name of project(s) and year(s) experience was obtained:
Education: Bachelor's degree	List your degree and the conferring institution and active security certifications:

Required Skills	Bidder's Response
Certification: Security certifications actively held	

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

EDUCATION

Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:

Program	Major(s) area of study:	Minor area of study:
University		

Additional Education		
Degree (i.e. PhD, Master's, Bachelors)		Year Completed:
Program	Major(s) area of study:	Minor area of study:
University		

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	
Topic	(include credit hours if applicable)
Date taken	

Certifications/Affiliations	
Name	
Topic/Description	
Date completed & current expiration	

INITIAL RESPONSE: HIGH-LEVEL TERMS AND CONDITIONS CONCEPTS

The State intends to execute an addendum to any terms offered by Bidder. This addendum is intended to supersede and take precedence over those terms, including Bidder's security terms and data privacy addendums.

☐	I confirm the above requirement and agree with no exception.
X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
The State of Michigan and Google LLC have a current five-year services agreement covering Google Cloud Platform and Implementation services. State agencies are currently leveraging this contract for other use cases leveraging these same GCP (cloud) services. Google proposes that the Parties take advantage of the existing Terms of Services (and associated schedules), and have the provision of services outlined in this RFP be governed by the terms of Contract Notice No. 230000000200 executed on January 1, 2023, and valid until December 2, 2027. The existing Terms of Services shall supersede and replace the Software Contract Terms and Conditions in their entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.	

The following is a list of areas of contractual concerns that the addendum may address. The State of Michigan will evaluate Bidder's responses to this list to determine Bidder acceptability for the IaaS Expansion Program. Responses may be taken into consideration by the State in making a Best Value Determination or otherwise in Bidder evaluation as part of a potential bid award. This list, however, is not exhaustive and non-binding on the State. Capitalized terms may be found in the State's template Software Terms, which are provided as a reference and for illustrative purposes only.

1. Bidder agrees to the definition of Access, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

The State of Michigan and Google LLC have a current five-year services agreement covering Google Cloud Platform and Implementation services. State agencies are currently leveraging this contract for other use cases leveraging these same GCP (cloud) services. Google proposes that the Parties take advantage of the existing Terms of Services (and associated schedules), and have the provision of services outlined in this RFP be governed by the terms of Contract Notice No. 230000000200 executed on January 1, 2023, and valid until December 2, 2027. The existing Terms of Services shall supersede and replace the Software Contract Terms and Conditions in their entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.

2. Bidder agrees to the definition of State Data, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Customer Data, as defined in the Contract Notice No. 230000000200, will be equivalent State Data as such term is defined in the State's template Software Terms.	
Google proposes that the Parties take advantage of the existing Terms of Services (and associated schedules), and have the provision of services outlined in this RFP be governed by the terms of Contract Notice No. 230000000200 executed on January 1, 2023, and valid until December 2, 2027. The existing Terms of Services shall supersede and replace the Software Contract Terms and Conditions in their entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps (attached to this response) which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.	

3. Bidder agrees to the definition of Work Product, found in the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

Deliverables, as defined in the Contract Notice No. 230000000200 - Implementation Services Schedule, will be equivalent Work Product as such term is defined in the State's template Software Terms. Google will provide Cloud Services which are generally available to all customers.

Google proposes that the Parties take advantage of the existing Terms of Services (and associated schedules), and have the provision of services outlined in this RFP be governed by the terms of Contract Notice No. 230000000200 executed on January 1, 2023, and valid until December 2, 2027. The existing Terms of Services shall supersede and replace the Software Contract Terms and Conditions in their entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps (attached to this response) which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.

4. Bidder will disclose all subcontractors with Access to State Data. Disclosures may be provided on Bidder's websites in a manner available to all similarly situated customers.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Google publishes the list of subprocessors on our website at https://cloud.google.com/terms/subprocessors . This aligns with the current practice under Contract No. 230000000200.	

5. Bidder agrees to register with the State at <http://www.michigan.gov/SIGMAVSS> to receive electronic fund transfer payments. To the extent Bidder wishes to retain a subcontractor for the acceptance and transmittal of payment ONLY, Bidder agrees that payment to the subcontractor waives any and all claims against the State for non-payment, and Bidder may not terminate the State's access to Bidder offerings in the event Bidder's subcontractor fails to transmit payment.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

6. Bidder agrees that Bidder will contractually meet obligations set forth in the State's template Data Security schedule appended to the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

Google proposes that the Parties take advantage of the existing contract and schedules therein, which for the Schedule E – Data Security Requirements would mean that Schedule A - Data Security Schedule of the existing Terms of Services, Contract Notice No. 230000000200, shall supersede and replace the Schedule E (appended to the State’s template Software Terms) in its entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations.

For more information about Google data privacy obligations, practices and standards, please visit: (1) the [Cloud Data Processing Addendum](#), (2) [Google security overview](#), and (3) [Google Compliance Resource Center](#).

7. Bidder agrees that Bidder will contractually meet obligations set forth in Bidder’s Service Level Agreement, including complying with Bidder obligations with respect to Service Credits.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

8. Bidder agrees that the State may terminate all or part of any awarded contract at any time, for any reason, including budget shortfalls.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Section 1.4 (Termination for Public Interest), Contract Notice No. 230000000200.	
Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.	

9. Bidder agrees to forgo the right for Bidder to terminate a subsequently awarded Contract at any time, or for any reason, except for violation of law or Bidder’s license restrictions. Bidder may change service offerings utilized by the State only if Bidder provides a substantially equivalent offering and provides notice to the State of the change.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

Google proposes that the Parties take advantage of the existing contract, Section 4 (Updates to Services and Terms) of the Google Cloud Platform Services Schedule, Contract Notice No. 230000000200.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps (attached to this response) which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.

10. Bidder agrees and understands that the State may not indemnify Bidder, Bidder's subcontractors or any third parties.

☐

I confirm the above requirement and agree with no exception.

☒

I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 1.6 (Indemnification Procedure), 1.7 and 1.14, Contract Notice No. 230000000200.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.

11. Bidder agrees and understands that the State must retain control of any defense provided by Bidder pursuant to Bidder's indemnification obligations.

☐

I confirm the above requirement and agree with no exception.

☒

I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 1.6 (Indemnification Procedure), Contract Notice No. 230000000200.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.

12. Bidder understands that the State is statutorily obligated to comply with the Michigan Freedom of Information Act, MCL 15.231 *et seq.* "FOIA"

☒

I confirm the above requirement and agree with no exception.

☐

I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

13. Bidder understands that pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract.

☐ I confirm the above requirement and agree with no exception.

X I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 1.12, Contract Notice No. 230000000200.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.

14. Bidder understands that the State will not be bound by any terms requiring indemnification by the State to third- parties; consent to arbitration; provisions regarding audits; provisions regarding remote access to State systems; agreeing to be bound by the laws of another state; or to waive any claims or defenses, including governmental or sovereign immunity contained in any of the product-specific end user license agreements (EULA(s)) or any other documents, policies, or terms located in links referenced herein.

X I confirm the above requirement and agree with no exception.

☐ I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

15. Bidder agrees and understands that State Data may not be used for commercial purposes, nor may it be comingled with data from other similarly situated customers, whether to train Artificial Intelligence or for any other reason.

☐ I confirm the above requirement and agree with no exception.

X I have reviewed the above requirement and have noted all exception(s) below.

List all exceptions:

Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 2.1 (Contractors Use of Customer Data), Contract Notice No. 230000000200. Under that Contract, Google commits to the principle above of only using Customer/State Data for the purposes of the contract, which precludes other commercial purposes. Retaining the existing Contract's phrasing, however, allows the Parties to maintain without interruption the existing successful relationship.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.

16. Bidder agrees that, if the State determines that State or federal rules or regulations require the appendage of specific contractual language in contracts related to specific types of data, including by not limited CJIS and IRS/FTI data, Bidder will append such required contractual language to any awarded contract.

☐	I confirm the above requirement and agree with no exception.
X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 2.1 (Contractors Use of Customer Data), Contract Notice No. 230000000200.	
Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.	

17. Bidder understands and agrees that, if, upon contract award and use of Bidder systems by the State, Bidder does not comply with its data security and privacy obligations, Bidder will provide data breach services as requested by the State to the State and its citizens at no additional cost to the State.

☐	I confirm the above requirement and agree with no exception.
X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 2.4 (Loss or Compromise of Data), Contract Notice No. 230000000200.	
Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.	

18. Bidder understands and agrees that Bidder will ensure compliance with all federally mandated accessibility requirements.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Google prioritizes accessibility, especially in the public sector. Section 508 and WCAG requirements guide our best practices. Accessibility is core to our development process. Google's mission is to make information universally accessible and useful. We provide a VPAT (WCAG 2.0 A/AA, WCAG 2.1 A/AA, and Revised Section 508) for our Cloud SDK - gcloud Command Line Tool. You can find it on our website. This VPAT covers the underlying Google Cloud services outlined in this document. Details to individual VPAT details are provided here as a link: https://cloud.google.com/security/compliance/vpat?hl=en&e=48754805 Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 2.14 (Accessibility Requirements), Contract Notice No. 230000000200. Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.	

19. Bidder agrees that it is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

20. Bidder agrees that any awarded contract will be governed by the laws of the State of Michigan.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

21. Bidder agrees to Section 43 Administrative Fee and Reporting and Section 44 Extended Purchasing Program in the reference terms provided below to allow this Contract to be extended to MiDEAL members and other States and Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract for those transactions.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

By signing below, I as **legal counsel** for the Bidder, hereby certify that I have thoroughly reviewed and understand the above statements and that I confirm that the legal implications of the proposed statements above have been carefully considered and that the Bidder is prepared to comply with the obligations and requirements as outlined.

BIDDER RESPONSE: The signature below is that of an office of Google LLC with signature authority. Like many companies, Google does not grant signature authority to its in-house counsel for sales documents. The terms and conditions that will govern any agreement arising from this proposal are subject to finalization. Google, through its authorized signature below, confirms it understands the terms and conditions of the proposal.

RFP 250000000414

Cloud Services

Solicitation Number

Solicitation Title

Attorney Signature and License Number with State

Date

Philip Schindler, Google LLC, SVP, Chief Business Officer

Printed Name, Title, Company

SOFTWARE CONTRACT TERMS AND CONDITIONS

Contractor please provide your proposed terms applicable to this purchase for the State's review. All terms must be provided either by static link or appended as part of your bid. The State will then work with selected Bidders to draft an Addendum to bidder's terms that are specific to each bidder. Terms and conditions will be evaluated and contribute to the evaluation of Contractor's bid response.

BIDDER RESPONSE: The State of Michigan and Google LLC have a current five-year services agreement covering Google Cloud Platform and Implementation services. State agencies are currently leveraging this contract for other use cases leveraging these same GCP (cloud) services. Google proposes that the Parties take advantage of the existing Terms of Services (and associated schedules), and have the provision of services outlined in this RFP be governed by the terms of Contract Notice No. 230000000200 executed on January 1, 2023, and valid until December 2, 2027. The existing Terms of Services shall supersede and replace the Software Contract Terms and Conditions in their entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations. For SecOps services, Google proposes the addition of the 3 pages services schedule for SecOps which is substantially the same as the existing Google Cloud Platform Services Schedule in Contract Notice No. 230000000200.

The following standard State's Terms and Conditions are provided below for reference.

~~These Terms and Conditions, together with all Schedules (including the Statement(s) of Work), Exhibits and any other applicable attachments or addenda (Collectively this "Contract") are agreed to between the State of Michigan (the "State") and [INSERT COMPANY NAME] ("Contractor"), a [INSERT STATE & ENTITY STATUS, E.G., A MICHIGAN CORPORATION OR A TEXAS LIMITED LIABILITY COMPANY]. This Contract is effective on [MONTH, DAY, YEAR] ("Effective Date"), and unless terminated, will expire on [MONTH, DAY, YEAR] (the "Term").~~

~~This Contract may be renewed for up to [Insert # of Renewal Options] additional [Insert # of Years Per Renewal Option] year period(s). Renewal is at the sole discretion of the State and will automatically extend the Term of this Contract. The State will document its exercise of renewal options via a Change Notice.]~~

1. Definitions. For the purposes of this Contract, the following terms have the following meanings:

~~"Acceptance" has the meaning set forth in Section 9.~~

~~"Acceptance Tests" means such tests as may be conducted in as described in Section 9 and any applicable Statement of Work to determine whether the Software meets the requirements of this Contract and the Documentation.~~

~~"Access" means (1) the ability and means to enter a restricted or locked area, room, or physical container containing State Data; or (2) the ability and means to communicate with or otherwise interact with a system, to use system resources to handle information, to gain the information or~~

~~knowledge of the information the system contains, or to control system components and functions (including physical or technical controls, or having the ability to modify or bypass any or all security controls).~~

~~“Affiliate” of a Person means any other Person that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Person. For purposes of this definition, the term “control” (including the terms “controlled by” and “under common control with”) means the direct or indirect ownership of more than fifty percent (50%) of the voting securities of a Person.~~

~~“Allegedly Infringing Materials” has the meaning set forth in Section 18.~~

~~“Authorized Users” means all Persons authorized by the State to access and use the Software under this Contract, subject to the maximum number of users specified in the applicable Statement of Work.~~

~~“Business Day” means a day other than a Saturday, Sunday or other day on which the State is authorized or required by law to be closed for business.~~

~~“Business Requirements Specification” means the initial specification setting forth the State’s business requirements regarding the features and functionality of the Software, as set forth in a Statement of Work.~~

~~“Change Notice” means a writing executed by the parties to the Contract memorializing a change to the Contract.~~

~~“Change Proposal” has the meaning set forth in Subsection 2.2.~~

~~“Change Request” has the meaning set forth in Subsection 2.2.~~

~~“Confidential Information” has the meaning set forth in Subsection 22.1.~~

~~“Configuration” means State specific changes made to the Software without Source Code or structural data model changes occurring.~~

~~“Contract” has the meaning set forth in the preamble.~~

~~“Contract Change” has the meaning set forth in Subsection 2.2.~~

~~“Contract Administrator” is the individual appointed by each party to (a) administer the terms of this Contract, and (b) approve any Change Notices under this Contract. Each party’s Contract Administrator will be identified in Schedule A or subsequent Change Notices.~~

~~“Contractor” has the meaning set forth in the preamble.~~

~~“Contractor’s Bid Response” means the Contractor’s proposal submitted in response to the Solicitation.~~

~~“Contractor Hosted” means the Hosted Services and the Operating Environment are provided by Contractor or one or more of its Permitted Subcontractors.~~

~~“Contractor Personnel” means all employees of Contractor, or any subcontractors or Permitted Subcontractors involved in the performance of Services hereunder.~~

~~“Contractor Project Manager” means the individual appointed by Contractor and identified in Schedule A or subsequent Change Notices to serve as the primary contact, to monitor and coordinate the day-to-day activities of this Contract, and to perform other duties as may be further defined in this Contract, including an applicable Statement of Work.~~

~~“Customization” means State-specific changes to the Software’s underlying Source Code or structural data model changes.~~

~~“Deliverables” means the Software, Documentation, any Hardware, and all other documents and other materials that Contractor is required to or otherwise does provide to the State under this Contract and otherwise in connection with any Services, including all items specifically identified as Deliverables in a Statement of Work and all Work Product.~~

~~“Deposit Material” refers to material required to be deposited pursuant to Section 28.~~

~~“Digital Accessibility Standards” means the accessibility standards provided in the SOM Digital Standards, located at <https://www.michigan.gov/standards>.~~

~~“Disaster Recovery Plan” refers to the set(s) of documents, instructions, and procedures which enable the Contractor to respond to accidents, disasters, emergencies, or threats without any stoppage or hindrance in its key operations and to the actions the Contractor takes to meet the Recovery Point and Recovery Time Objectives.~~

~~“Documentation” means all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Deliverable.~~

~~“DTMB” means the Michigan Department of Technology, Management and Budget.~~

~~“Effective Date” has the meaning set forth in the preamble.~~

~~“Fees” means the fees set forth in the Pricing Schedule attached as Schedule B.~~

~~“Financial Audit Period” has the meaning set forth in Subsection 23.1.~~

~~“Hardware” means all computer hardware or other equipment provided by Contractor under this Contract, if any, including but not limited to any related accessories.~~

~~“Harmful Code” means any software, hardware or other technologies, devices or means, the purpose or effect of which is to: (a) permit unauthorized access to, or to destroy, disrupt, disable, encrypt, modify, copy, or otherwise harm or impede in any manner, any (i) computer, software, firmware, data, hardware, system or network, or (ii) any application or function of any of the foregoing or the integrity, use or operation of any data Processed thereby; or (b) prevent the State or any Authorized User from accessing or using the Solution as intended by this Contract, and includes any virus, bug, trojan horse, worm, backdoor or other malicious computer code and any time bomb or drop dead device.~~

~~“Hosted Services” means the hosting, management and operation of the: Operating Environment, Software, other services (including support and subcontracted services), and related resources for access and use by the State and its Authorized Users, including any services and facilities related to disaster recovery obligations.~~

“Implementation Plan” means the schedule included in a Statement of Work setting forth the sequence of events for the performance of Services under a Statement of Work, including the Milestones and Milestone Dates.

“Integration Testing” has the meaning set forth in Section 9.

“Intellectual Property Rights” means all or any of the following: (a) patents, patent disclosures, and inventions (whether patentable or not); (b) trademarks, service marks, trade dress, trade names, logos, corporate names, and domain names, together with all of the associated goodwill; (c) copyrights and copyrightable works (including computer programs), mask works and rights in data and databases; (d) trade secrets, know-how and other confidential information; and (e) all other intellectual property rights, in each case whether registered or unregistered and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection provided by applicable law in any jurisdiction throughout the world.

“Key Personnel” means any Contractor Personnel identified as key personnel in the Contract.

“Loss or Losses” means all losses, including but not limited to, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs or expenses of whatever kind, including reasonable attorneys' fees and the costs of enforcing any right to indemnification hereunder and the cost of pursuing any insurance providers.

“Maintenance Release” means any update, upgrade, release or other adaptation or modification of the Software, including any updated Documentation, that Contractor may generally provide to its licensees from time to time during the Term, which may contain, among other things, error corrections, enhancements, improvements or other changes to the user interface, functionality, compatibility, capabilities, performance, efficiency or quality of the Software.

“Milestone” means an event or task described in the Implementation Plan under a Statement of Work that must be completed by the corresponding Milestone Date.

“Milestone Date” means the date by which a particular Milestone must be completed as set forth in the Implementation Plan under a Statement of Work.

“New Version” means any new version of the Software, including any updated Documentation, that the Contractor may from time to time introduce and market generally as a distinct licensed product, as may be indicated by Contractor's designation of a new version number.

“Nonconformity” or “Nonconformities” means any failure or failures of a Deliverable, to conform to the requirements of this Contract.

“Offshore Resources” mean resources, including Contractor Personnel, outside of the United States or its territories.

“Open Source Components” means any software component that is subject to any open-source copyright license agreement, including any GNU General Public License or GNU Library or Lesser Public License, or other obligation, restriction or license agreement that substantially conforms to the Open Source Definition as prescribed by the Open Source Initiative or otherwise may require disclosure or licensing to any third party of any source code with which such software component is used or compiled.

~~“Operating Environment”~~ means, collectively, the platform, environment and conditions on, in or under which the Software is intended to be installed and operate, as set forth in a Statement of Work, including such structural, functional and other features, conditions and components as hardware, operating software, system architecture, configuration, computing hardware, ancillary equipment, networking, software, firmware, databases, data, and electronic systems (including database management systems).

~~“PAT”~~ Means a document or product accessibility template, including any Information Technology Industry Council Voluntary Product Accessibility Template or VPAT®, that specifies how information and software products, such as websites, applications, software and associated content, conform to the Digital Accessibility Standards.

~~“Permitted Subcontractor”~~ means any third party hired by Contractor to perform Services for the State under this Contract or that will have Access to or have the ability to control access to State Data or both.

~~“Person”~~ means an individual, corporation, partnership, joint venture, limited liability company, governmental authority, unincorporated organization, trust, association, or other entity.

~~“Pricing Schedule”~~ means the schedule attached as **Schedule B**.

~~“Process”~~ means to perform any operation or set of operations on any data, information, material, work, expression or other content, including to (a) collect, receive, input, upload, download, record, reproduce, store, organize, combine, log, catalog, cross-reference, manage, maintain, copy, adapt, alter, translate or make other improvements or derivative works, (b) process, retrieve, output, consult, use, disseminate, transmit, submit, post, transfer, disclose or otherwise provide or make available, or (c) block, erase or destroy. **~~“Processing”~~** and **~~“Processed”~~** have correlative meanings.

~~“Representatives”~~ means a party's employees, officers, directors, partners, shareholders, agents, attorneys, successors and permitted assigns.

~~“Services”~~ means any of the services, including but not limited to, Hosted Services, installation, configuration, implementation, and/or Support Services, that the Contractor is required to or otherwise does provide under this Contract.

~~“Service Level Agreement”~~ means the schedule attached as **Schedule D**, setting forth the Support Services Contractor will provide to the State, and the parties' additional rights and obligations with respect thereto.

~~“Site”~~ means any physical location(s) designated by the State in, or in accordance with, this Contract or a Statement of Work for delivery and installation of the Deliverable, if applicable.

~~“Software”~~ means Contractor's software as set forth in a Statement of Work, and any Third-Party Components, Maintenance Releases or New Versions provided to the State and any Customizations or Configurations made by or for the State pursuant to this Contract, and all copies of the foregoing permitted under this Contract. If Contractor Hosted, Software includes Contractor's Operating Environment.

~~“Solicitation”~~ means the State's request to solicit responses for a Solution under this Contract.

~~“Solution” means Deliverables and Services singularly or in any combination thereof, as applicable, set forth in a Statement of Work.~~

~~“Source Code” means the human readable source code of the Software to which it relates, in the programming language in which the Software was written, together with all related flow charts and technical documentation, including a description of the procedure for generating object code, all of a level sufficient to enable a programmer reasonably fluent in such programming language to understand, build, operate, support, maintain and develop modifications, upgrades, updates, adaptations, enhancements, new versions and other derivative works and improvements of, and to develop computer programs compatible with, the Software.~~

~~“Specifications” means, for the Software, the specifications collectively set forth in the Business Requirements Specification, Technical Specification, Documentation, Solicitation or Contractor’s Bid Response, if any, for such Software, or elsewhere in a Statement of Work.~~

~~“State” means the State of Michigan.~~

~~“State Data” has the meaning set forth in Section 21.~~

~~“State Hosted” means the Operating Environment is not provided by Contractor or one or more of its Permitted Subcontractors.~~

~~“State Materials” means all materials and information, including but not limited to documents, data, know-how, ideas, methodologies, specifications, software, hardware, content and technology, in any form or media, directly or indirectly provided or made available to Contractor by or on behalf of the State in connection with this Contract.~~

~~“State Program Managers” are the individuals appointed by the State, or their designees, to (a) monitor and coordinate the day-to-day activities of this Contract; (b) co-sign off on Acceptance of the Deliverables; and (c) perform other duties as may be specified in a Statement of Work. Program Managers will be identified in Schedule A or subsequent Change Notices.~~

~~“State Systems” means the information technology infrastructure, including the computers, software, databases, electronic systems (including database management systems) and networks, of the State or any of its designees.~~

~~“Statement of Work” means any statement of work entered into by the parties and incorporated into this Contract. The initial Statement of Work is attached as Schedule A.~~

~~“Stop Work Order” has the meaning set forth in Section 15.~~

~~“Support Services” means the maintenance and support services Contractor is required to or otherwise does provide to the State under the Service Level Agreement.~~

~~“System” has the meaning set forth in Schedule I.~~

~~“System Acceptance” has the meaning set forth in Schedule I.~~

~~“System Integration Testing” has the meaning set forth in Schedule I.~~

~~“Technical Specification” means, with respect to any Software, the document setting forth the technical specifications for such Software and included in a Statement of Work.~~

~~“Term” has the meaning set forth in the preamble.~~

~~“Testing Period” has the meaning set forth in Section 9.~~

~~“Third Party Components” means all components, including Open Source Components, that are included in or used in connection with the Software and are specifically identified by Contractor in the Contractor’s Software Bill of Materials, in an applicable Statement of Work or elsewhere in this Contract, or as otherwise required by this Contract, including without limitation as part of the State’s Security Accreditation Process defined in Schedule E—Data Security Requirements.~~

~~“Transition Period” has the meaning set forth in Section 16.~~

~~“Transition Responsibilities” has the meaning set forth in Section 16.~~

~~“Unauthorized Removal” has the meaning set forth in Subsection 2.5.~~

~~“Unauthorized Removal Credit” has the meaning set forth in Subsection 2.5.~~

~~“User Data” means all data, queries, prompts, information and other content of any type and in any format, medium or form, whether audio, visual, digital, screen, GUI or other, that is input, uploaded to, placed into or collected, stored, Processed, generated or output by any user, device, system or network by or on behalf of the State, including but not limited to any and all works, inventions, data, analyses, information that identifies State or State’s intended users’ devices or equipment, location information, or other information and materials resulting from any use of the Software by or on behalf of the State’s intended users under this Contract, even if not input by a user. User Data does not include any data in the possession of or collected by Contractor prior to or independently of the performance of the Services or any use of the Software under this Contract.~~

~~“Warranty Period” means the 90 calendar day period commencing on the date of the State’s Acceptance of the Software or System (if Contractor is providing Hardware under this Contract) for which Support Services are provided free of charge.~~

~~“Work Product” means everything made or created by Contractor specifically and solely for the State and which is not generally available to Contractor’s other customers, that Contractor is required to, or otherwise does, provide to the State under this Contract including but not limited to Customizations, application programming interfaces, computer scripts, macros, user interfaces, reports, project management documents, forms, templates, and other State-specific documents and related materials together with all ideas, concepts, processes, and methodologies developed in connection with this Contract whether or not embodied in this Contract.~~

~~**2. Duties of Contractor.** Contractor will provide the Solution pursuant to Statement(s) of Work entered into under this Contract. Contractor will provide the Solution in a timely, professional manner and in accordance with the terms, conditions, and Specifications set forth in this Contract and the Statement(s) of Work.~~

~~**2.1 Statement of Work Requirements.** No Statement of Work will be effective unless signed by each party’s Contract Administrator. The term of each Statement of Work will commence on the parties’ full execution of a Statement of Work and terminate when the parties have fully performed their obligations. The terms and conditions of this Contract~~

~~will apply at all times to any Statements of Work entered into by the parties and incorporated into this Contract. The State will have the right to terminate such Statement of Work as set forth in **Section 16**. Contractor acknowledges that time is of the essence with respect to Contractor's obligations under each Statement of Work and agrees that prompt and timely performance of all such obligations in accordance with this Contract and the Statements of Work (including the Implementation Plan and all Milestone Dates) is strictly required.~~

2.2 Change Control Process. ~~The State may at any time request in writing (each, a "Change Request") changes to the Contract, including without limitation changes to the Solution or adding a new Statement of Work (each, a "Contract Change"). Upon the State's submission of a Change Request, the parties will evaluate and implement all Contract Changes in accordance with this Section.~~

~~(a) As soon as reasonably practicable, and in any case within 20 Business Days following receipt of a Change Request, Contractor will provide the State with a written proposal for implementing the requested Contract Change ("Change Proposal"), setting forth:~~

- ~~(i) a written description of the proposed Contract Changes to any part of the Solution;~~
- ~~(ii) an amended Implementation Plan reflecting: (A) the schedule for commencing and completing any addition or modification to the Solution; and (B) the effect of such Contract Changes, if any, on completing any other Services under a Statement of Work;~~
- ~~(iii) any additional State Resources Contractor deems necessary to carry out such Contract Changes; and~~
- ~~(iv) any increase or decrease in Fees resulting from the proposed Contract Changes, which increase, or decrease will reflect only the increase or decrease in time and expenses Contractor requires to carry out the Contract Change.~~

~~(b) Within 30 Business Days following the State's receipt of a Change Proposal, the State will by written notice to Contractor, approve, reject, or propose modifications to such Change Proposal. If the State proposes modifications, Contractor must modify and re-deliver the Change Proposal reflecting such modifications, or notify the State of any disagreement, in which event the parties will negotiate in good faith to resolve their disagreement. Upon the State's approval of the Change Proposal or the parties' agreement on all proposed modifications each parties' Contractor Administrator will sign a Change Notice.,~~

~~(c) However, if the parties fail to enter into a Change Notice within 15 Business Days following the State's response to a Change Proposal, the State may, in its discretion:~~

- ~~(i) require Contractor to perform or provide the Solution under the existing Statement of Work without the Contract Change;~~

- ~~(ii) require Contractor to continue to negotiate a Change Notice;~~
- ~~(iii) initiate a Dispute Resolution Procedure; or~~
- ~~(iv) notwithstanding any provision to the contrary in a Statement of Work, terminate this Contract under **Subsection 16.1**.~~

~~(d) No Contract Change will be effective until the parties have executed a Change Notice. Notwithstanding the foregoing, no Change Notice executed after the Effective Date will be construed to amend or modify this Contract in any way, unless it specifically states its intent to do so and cites the section or sections amended. Except as the State may request in its Change Request or otherwise in writing, Contractor must continue to perform its obligations in accordance with a Statement of Work pending negotiation and execution of a Change Notice. Contractor will use its best efforts to limit any delays or Fee increases from any Contract Change to those necessary to perform the Contract Change in accordance with the applicable Change Notice. Each party is responsible for its own costs and expenses of preparing, evaluating, negotiating, and otherwise processing any Change Request, Change Proposal, and Change Notice.~~

~~(e) The performance of any functions, activities, tasks, obligations, roles and responsibilities comprising the Solution as described in this Contract are considered part of the Solution and, thus, will not be considered a Contract Change. This includes the delivery of all Deliverables in accordance with their respective Specifications, and the diagnosis and correction of Nonconformities discovered in Deliverables prior to their Acceptance by the State or, subsequent to their Acceptance by the State, as necessary for Contractor to fulfill its associated warranty requirements and its Support Services under this Contract.~~

~~(f) Contractor may, on its own initiative and at its own expense, prepare and submit its own Change Request to the State. However, the State will be under no obligation to approve or otherwise respond to a Change Request initiated by Contractor.~~

2.3 Contractor Personnel:

~~(a) Contractor is solely responsible for all Contractor Personnel and for the payment of their compensation, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments and disability benefits.~~

~~(b) Prior to any Contractor Personnel performing any Services, Contractor will:~~

- ~~(i) ensure that such Contractor Personnel have the legal right to work in the United States;~~
- ~~(ii) upon request, require such Contractor Personnel to execute written agreements, in form and substance acceptable to the State, that bind such Contractor Personnel to confidentiality provisions that are at least as~~

~~protective of the State's information (including all Confidential Information) as those contained in this Contract; and~~

~~(iii) upon request, or as otherwise specified in a Statement of Work, perform background checks on all Contractor Personnel prior to their assignment. The scope is at the discretion of the State and documentation must be provided as requested. Contractor is responsible for all costs associated with the requested background checks. The State, in its sole discretion, may also perform background checks. Pursuant to Michigan law, all agencies subject to IRS Pub. 1075 are required to ask the Michigan State Police to perform fingerprint background checks on all employees, including Contractor and subcontractor employees, who may have Access to any database of information maintained by the federal government that contains confidential or personal information, including, but not limited to, federal tax information. Further, pursuant to Michigan law, any agency described above is prohibited from providing Contractors or subcontractors with the result of such background check. For more information, please see Michigan Public Act 427 of 2018.~~

~~(c) Contractor and all Contractor Personnel will comply with all rules, regulations, and policies of the State that are communicated to Contractor in writing, including security procedures concerning systems and data and remote access, building security procedures, including the restriction of access by the State to certain areas of its premises or systems, and general health and safety practices and procedures.~~

~~(d) The State reserves the right to require the removal of any Contractor Personnel found, in the judgment of the State, to be unacceptable. The State's request must be written with reasonable detail outlining the reasons for the removal request. Replacement personnel for the removed person must be fully qualified for the position. If the State exercises this right, and Contractor cannot immediately replace the removed personnel, the State agrees to negotiate an equitable adjustment in schedule or other terms that may be affected by the State's required removal.~~

~~**2.4 Contractor Project Manager.** Throughout the Term of this Contract, Contractor must maintain a Contractor employee acceptable to the State to serve as Contractor Project Manager, who will be considered Key Personnel of Contractor.~~

~~(a) Contractor Project Manager must:~~

~~(i) have the requisite authority, and necessary skill, experience, and qualifications, to perform in such capacity;~~

~~(ii) be responsible for overall management and supervision of Contractor's performance under this Contract; and~~

~~(iii) be the State's primary point of contact for communications with respect to this Contract, including with respect to giving and receiving all day to day approvals and consents.~~

~~(b) Contractor Project Manager must attend all regularly scheduled meetings as set forth in the Implementation Plan and will otherwise be available as set forth in a Statement of Work.~~

~~(c) Contractor will maintain the same Contractor Project Manager throughout the Term of this Contract, unless:~~

~~(i) the State requests in writing the removal of Contractor Project Manager; or~~

~~(ii) the State consents in writing to any removal requested by Contractor in writing; or~~

~~(iii) the Contractor Project Manager ceases to be employed by Contractor, whether by resignation, involuntary termination or otherwise.~~

~~(d) Upon the occurrence of any event set forth in **Subsections 2.4(e)(i-iii)** above, Contractor will promptly replace its Contractor Project Manager. Such replacement will be subject to the State's prior written approval.~~

2.5 Contractor's Key Personnel:

~~(a) The State has the right to recommend and approve in writing the initial assignment, as well as any proposed reassignment or replacement, of any Key Personnel. Before assigning an individual to any Key Personnel position, Contractor will notify the State of the proposed assignment, introduce the individual to the State Program Managers or their designees, and provide the State with a resume and any other information about the individual reasonably requested by the State. The State reserves the right to interview the individual before granting written approval. In the event the State finds a proposed individual unacceptable, the State will provide a written explanation including reasonable detail outlining the reasons for the rejection.~~

~~(b) Contractor will not remove any Key Personnel from their assigned roles on this Contract without the prior written consent of the State. The Contractor's removal of Key Personnel without the prior written consent of the State is an unauthorized removal ("**Unauthorized Removal**"). An Unauthorized Removal does not include replacing Key Personnel for reasons beyond the reasonable control of Contractor, including illness, disability, leave of absence, personal emergency circumstances, resignation, or for cause termination of the Key Personnel's employment. Any Unauthorized Removal may be considered by the State to be a material breach of this Contract.~~

~~(c) It is further acknowledged that an Unauthorized Removal will interfere with the timely and proper completion of this Contract, to the loss and damage of the State, and that it would be impracticable and extremely difficult to determine and remedy the actual damage sustained by the State as a result of any Unauthorized Removal. Therefore, Contractor and the State agree that in the case of any Unauthorized Removal in respect of which the State does not elect to~~

exercise its rights under ~~Section 16~~, Contractor will issue to the State an amount equal to \$25,000 per individual (each, an “~~Unauthorized Removal Credit~~”).

(d) Contractor acknowledges and agrees that each of the Unauthorized Removal Credits assessed under ~~Subsection 2.5(e)~~ above: (i) is a reasonable estimate of and compensation for the anticipated or actual harm to the State that may arise from the Unauthorized Removal, which would be impossible or very difficult to accurately estimate; and (ii) may, at the State’s option, be credited or set off against any Fees or other charges payable to Contractor under this Contract.

~~2.6 Subcontractors.~~ Contractor must obtain prior written approval of the State, which consent may be given or withheld in the State’s sole discretion, before engaging any Permitted Subcontractor to provide Services to the State under this Contract. Engagement of any subcontractor or Permitted Subcontractor by Contractor does not relieve Contractor of its representations, warranties or obligations under this Contract. Without limiting the foregoing, Contractor will:

(a) be responsible and liable for the acts and omissions of each such subcontractor (including such Permitted Subcontractor and Permitted Subcontractor’s employees who, to the extent providing the Solution, will be deemed Contractor Personnel) to the same extent as if such acts or omissions were by Contractor or its employees;

(b) be responsible for all fees and expenses payable to, by or on behalf of each subcontractor and Permitted Subcontractor in connection with this Contract, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers’ compensation insurance payments and disability benefits; and

(c) notify the State of the location of the Permitted Subcontractor and indicate if it is located within the United States.

3. Notices. All notices and other communications required or permitted under this Contract must be in writing and will be considered given and received: (a) when verified by written receipt if sent by courier; (b) when received if sent by mail without verification of receipt; or (c) when verified by automated receipt or electronic logs if sent by facsimile or email.

If to State:	If to Contractor:
{Name}	{Name}
{Street Address}	{Street Address}
{City, State, Zip}	{City, State, Zip}
{Email}	{Email}
{Phone}	{Phone}

4. Insurance. Contractor must maintain the minimum insurances identified in the Insurance Schedule attached as ~~Schedule C~~.

5. Terms of Use of the Software. ~~[Bidder please select the appropriate license type(s) for the Solution.]~~

5.1 [If the Contractor is providing the State with a license to use its Software indefinitely, then] ~~Perpetual License. If Contractor is providing the State with a license to use its Software indefinitely, then Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty free, perpetual, irrevocable, right and license to use the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:~~

- ~~(a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contract or required to be permitted by law;~~
- ~~(b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;~~
- ~~(c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing;~~
- ~~(d) Title to and ownership of the Software shall at all times remain with Contractor and/or it's licensors, as applicable; and~~
- ~~(e) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.~~

5.1 (alternate) [If Contractor is providing the State a license limited to only the term of the contract.] ~~Term License. Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty free, irrevocable, right and license during the Term to use and reproduce the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:~~

- ~~(a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contractor or required to be permitted by law;~~
- ~~(b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;~~
- ~~(c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing; and~~
- ~~(d) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.~~

5.1 (alternate) [If the Software is offered as SaaS and Contractor is only providing the State access to use it Software during the Term of the Contract only, then] ~~Subscription.~~

- ~~(a) During the Term and such additional periods, if any, the State may:~~
 - ~~(i) access and use the Software, including in operation with other software, hardware, systems, networks and services, for the State's governmental purposes, including for Processing State Data;~~

~~(ii) generate, print, copy, upload, download, store and otherwise Process all GUI, audio, visual, digital and other output, displays and other content as may result from any access to or use of the Software;~~

~~(iii) prepare, reproduce, print, download and use a reasonable number of copies of the Specifications and Documentation for any use of the Software under this Contract; and~~

~~(iv) access and use the Software for all such non-production uses and applications as may be necessary or useful for the effective use of the Software hereunder, including for purposes of analysis, development, configuration, integration, testing, training, maintenance, support and repair, which access and use will be without charge and not included for any purpose in any calculation of the State's or its Authorized Users' use of the Software, including for purposes of assessing any Fees or other consideration payable to Contractor or determining any excess use of the Software as described in **Subsection 5.4** below:~~

~~5.2 Restrictions. The State will not: (a) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer or otherwise make the Software available to any third party, except as expressly permitted by this Contract or in any Statement of Work; or (b) use or authorize the use of the Software or Documentation in any manner or for any purpose that is unlawful under applicable Law:~~

~~5.3 Fees. The State will pay Contractor the corresponding Fees set forth in a Statement of Work or Pricing Schedule for all Authorized Users access and use of the Software. Such Fees will be Contractor's sole and exclusive remedy for use of the Software, including any excess use:~~

~~5.4 Certification. To the extent that a License granted to the State is not unlimited, Contractor may request written certification from the State regarding use of the Software for the sole purpose of verifying compliance with this **Section**. Such written certification may occur no more than once in any 24 month period during the Term of the Contract. The State will respond to any such request within 45 calendar days of receipt. If the State's use is greater than contracted, Contractor may invoice the State for any unlicensed use (and related support) pursuant to the terms of this Contract at the rates set forth in **Schedule B**, and the unpaid license and support fees shall be payable in accordance with the terms of the Contract. Payment under this provision shall be Contractor's sole and exclusive remedy to cure these issues:~~

~~5.5 State License Grant to Contractor. The State hereby grants to Contractor a limited, non-exclusive, non-transferable license (i) to use the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos, solely in accordance with the State's specifications, and (ii) to display, reproduce, distribute and transmit in digital form the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos in connection with promotion of the Services as communicated to Contractor by the State. Use of the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos will be specified in~~

~~the applicable Statement of Work. Contractor is provided a limited license to State Materials for the sole and exclusive purpose of providing the Services.~~

~~**6. Third-Party Components.** At least 30 days prior to adding new third-party components, Contractor will provide the State with notification information identifying and describing the addition. Throughout the Term, on an annual basis, Contractor will provide updated information identifying and describing any third-party components included in the Software. Contractor is responsible for ensuring that all Third-Party Components are properly licensed for the State's use.~~

~~**7. Intellectual Property Rights**~~

~~7.1 Ownership Rights in Software~~

~~(a) For purposes of this **Section 7** only, the term "Software" does not include Customizations.~~

~~(b) Subject to the rights and licenses granted by Contractor in this Contract and the provisions of **Subsection 7.1(e)**:~~

~~(i) Contractor reserves and retains its entire right, title and interest in and to all Intellectual Property Rights arising out of or relating to the Software; and~~

~~(ii) none of the State or Authorized Users acquire any ownership of Intellectual Property Rights in or to the Software or Documentation as a result of this Contract.~~

~~(c) As between the State, on the one hand, and Contractor, on the other hand, the State has, reserves and retains, sole and exclusive ownership of all right, title and interest in and to State Materials, User Data, including all Intellectual Property Rights arising therefrom or relating thereto.~~

~~7.2 The State is and will be the sole and exclusive owner of all right, title, and interest in and to all Work Product developed exclusively for the State under this Contract, including all Intellectual Property Rights. In furtherance of the foregoing:~~

~~(a) Contractor will create all Work Product as work made for hire as defined in Section 101 of the Copyright Act of 1976; and~~

~~(b) to the extent any Work Product, or Intellectual Property Rights do not qualify as, or otherwise fails to be, work made for hire, Contractor hereby:~~

~~(i) assigns, transfers, and otherwise conveys to the State, irrevocably and in perpetuity, throughout the universe, all right, title, and interest in and to such Work Product, including all Intellectual Property Rights; and~~

~~(ii) irrevocably waives any and all claims Contractor may now or hereafter have in any jurisdiction to so called "moral rights" or rights of *droit moral* with respect to the Work Product.~~

~~**8. Software Implementation.**~~

~~8.1 Implementation.~~ Contractor will as applicable; deliver, install, configure, integrate, and otherwise provide and make fully operational the Software on or prior to the applicable Milestone Date in accordance with the criteria set forth in a Statement of Work and the Implementation Plan.

~~8.2 Site Preparation.~~ Unless otherwise set forth in a Statement of Work, Contractor is responsible for ensuring the relevant Operating Environment is set up and in working order to allow Contractor to deliver and install the Software on or prior to the applicable Milestone Date. Contractor will provide the State with such notice as is specified in a Statement of Work, prior to delivery of the Software to give the State sufficient time to prepare for Contractor's delivery and installation of the Software. If the State is responsible for Site preparation, Contractor will provide such assistance as the State requests to complete such preparation on a timely basis.

~~9. Software Acceptance Testing:~~

~~9.1 Acceptance Testing:~~

~~(a) Unless otherwise specified in a Statement of Work, upon installation of the Software, or in the case of Contractor Hosted Software, when Contractor notifies the State in writing that the Solution is ready for use, Acceptance Tests will be conducted as set forth in this **Section 9** to ensure the Software conforms to the requirements of this Contract, including the applicable Specifications and Documentation.~~

~~(b) All Acceptance Tests will take place at the designated Site(s) in the Operating Environment described in a Statement of Work, commence on the Business Day following installation of the Software, or the receipt by the State of the notification referenced in **Subsection 9.1(a)**, and be conducted diligently for up to 30 Business Days, or such other period as may be set forth in a Statement of Work (the "**Testing Period**"). Acceptance Tests will be conducted by the party responsible as set forth in a Statement of Work or, if a Statement of Work does not specify, the State, provided that:~~

~~(i) for Acceptance Tests conducted by the State, if requested by the State, Contractor will make suitable Contractor Personnel available to observe or participate in such Acceptance Tests; and~~

~~(ii) for Acceptance Tests conducted by Contractor, the State has the right to observe or participate in all or any part of such Acceptance Tests.~~

~~9.2 Contractor is solely responsible for all costs and expenses related to Contractor's performance of, participation in, and observation of Acceptance Testing:~~

~~(a) Upon delivery and installation of any application programming interfaces, Configuration or Customizations, or any other applicable Work Product, to the Software under a Statement of Work, additional Acceptance Tests will be performed on the modified Software as a whole to ensure full operability, integration, and compatibility among all elements of the Software ("**Integration**~~

~~Testing"). Integration Testing is subject to all procedural and other terms and conditions set forth in this Section.~~

~~(b) The State may suspend Acceptance Tests and the corresponding Testing Period by written notice to Contractor if the State discovers a material Nonconformity in the tested Software or part or feature of the Software. In such event, Contractor will immediately, and in any case within 10 Business Days, correct such Nonconformity, whereupon the Acceptance Tests and Testing Period will resume for the balance of the Testing Period.~~

~~9.3 Notices of Completion, Non-Conformities, and Acceptance. Within 15 Business Days following the completion of any Acceptance Tests, including any Integration Testing, the party responsible for conducting the tests will prepare and provide to the other party written notice of the completion of the tests. Such notice must include a report describing in reasonable detail the tests conducted and the results of such tests, including any uncorrected Nonconformity in the tested Software.~~

~~(a) If such notice is provided by either party and identifies any Nonconformities, the parties' rights, remedies, and obligations will be as set forth in Subsection 9.4 and Subsection 9.5.~~

~~(b) If such notice is provided by the State, is signed by the State Program Managers or their designees, and identifies no Nonconformities, such notice constitutes the State's Acceptance of such Software.~~

~~(c) If such notice is provided by Contractor and identifies no Non-Conformities, the State will have 30 Business Days to use the Software in the Operating Environment and determine, in the exercise of its sole discretion, whether it is satisfied that the Software contains no Nonconformities, on the completion of which the State will, as appropriate:~~

~~(i) notify Contractor in writing of Nonconformities the State has observed in the Software and of the State's non-acceptance thereof, whereupon the parties' rights, remedies and obligations will be as set forth in Subsection 9.4 and Subsection 9.5; or~~

~~(ii) provide Contractor with a written notice of its Acceptance of such Software, which must be signed by the State Program Managers or their designees.~~

~~9.4 Failure of Acceptance Tests. If Acceptance Tests identify any Non-Conformities, Contractor, at Contractor's sole cost and expense, will remedy all such Nonconformities and re-deliver the Software, in accordance with the requirements set forth in the Contract. Redelivery will occur as promptly as commercially possible and, in any case, within 30 Business Days following, as applicable, Contractor's:~~

~~(a) completion of such Acceptance Tests, in the case of Acceptance Tests conducted by Contractor; or~~

~~(b) receipt of the State's notice under Subsection 9. (a) or (c)(i), identifying any Nonconformities.~~

~~9.5 Repeated Failure of Acceptance Tests.~~ If Acceptance Tests identify any Nonconformity in the Software after a second or subsequent delivery of the Software, or Contractor fails to re-deliver the Software on a timely basis, the State may, in its sole discretion, by written notice to Contractor:

- ~~(a) continue the process set forth in this **Section 9**;~~
- ~~(b) accept the Software as a nonconforming deliverable, in which case the Fees for such Software will be reduced equitably to reflect the value of the Software as received relative to the value of the Software had it conformed; or~~
- ~~(c) deem the failure to be a non-curable material breach of this Contract and a Statement of Work and terminate this Contract in accordance with **Section 16**.~~

~~9.6 Acceptance.~~ Acceptance (“**Acceptance**”) of the Software (subject, where applicable, to the State’s right to Integration Testing) will occur on the date that is the earliest of the State’s delivery of a notice accepting the Software under **Subsection 9.3(b)**, or **(e)(ii)**. Acceptance of the Software may be conditioned upon System Acceptance, if Contractor is providing Hardware, under the terms of this Contract.

~~10. Non-Software Acceptance.~~

~~10.1 If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for delivery, acceptance and warranty of Hardware as set forth in **Schedule H**.~~

~~10.2 System Acceptance.~~ If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for acceptance testing of the Software and Hardware together as a System, as set forth in **Schedule I**.

~~10.3 All other non-Software Deliverables are subject to inspection and testing by the State within 30 calendar days of the State’s receipt of them (“State Review Period”); unless otherwise provided in the Statement of Work. If the non-Software Deliverables are not fully accepted by the State, the State will notify Contractor by the end of the State Review Period that either: (a) the non-Software Deliverables are accepted but noted deficiencies must be corrected; or (b) the non-Software Deliverables are rejected. If the State finds material deficiencies, it may: (i) reject the non-Software Deliverables without performing any further inspections; (ii) demand performance at no additional cost; or (iii) terminate this Contract in accordance with **Section 16**.~~

~~10.4 Within 10 Business Days from the date of Contractor’s receipt of notification of acceptance with deficiencies or rejection of any non-Software Deliverables, Contractor must cure, at no additional cost, the deficiency and deliver unequivocally acceptable non-Software Deliverables to the State. If acceptance with deficiencies or rejection of the non-Software Deliverables impacts the content or delivery of other non-completed non-Software Deliverables, the parties’ respective Program Managers must determine an agreed to number of days for re-submission that minimizes the overall impact to the Contract. However, nothing herein affects, alters, or relieves Contractor of its obligations to correct deficiencies in accordance with the time response standards set forth in this Contract.~~

~~10.5 If Contractor is unable or refuses to correct the deficiency within the time response standards set forth in this Contract, the State may cancel the order in whole or in part. The State, or a third party identified by the State, may provide the non-Software Deliverables and recover the difference between the cost to cure and the Contract price plus an additional 10% administrative fee.~~

~~**11. Assignment.** Contractor may not assign this Contract or any of its rights or delegate any of its duties or obligations hereunder, voluntarily, or involuntarily, whether by merger (regardless of whether it is the surviving or disappearing entity), conversion, consolidation, dissolution, or operation of law to any other party without the prior written approval of the State. Upon notice to Contractor, the State, in its sole discretion, may assign in whole or in part, its rights or responsibilities under this Contract to any other governmental entity if such assignment is made reasonably necessary by operation of controlling law or regulation. If the State determines that a novation of the Contract to a third party is necessary, Contractor will agree to the novation and provide all necessary documentation and signatures.~~

~~**12. Change of Control.** Contractor will notify the State, within 30 calendar days of any public announcement or otherwise once legally permitted to do so, of a change in Contractor's organizational structure or ownership. For purposes of this Contract, a change in control means any of the following:~~

- ~~(a) a sale of more than 50% of Contractor's stock;~~
- ~~(b) a sale of substantially all of Contractor's assets;~~
- ~~(c) a change in a majority of Contractor's board members;~~
- ~~(d) consummation of a merger or consolidation of Contractor with any other entity;~~
- ~~(e) a change in ownership through a transaction or series of transactions;~~
- ~~(f) or the board (or the stockholders) approves a plan of complete liquidation.~~

~~A change of control does not include any consolidation or merger effected exclusively to change the domicile of Contractor, or any transaction or series of transactions principally for bona fide equity financing purposes. In the event of a change of control, Contractor must require the successor to assume this Contract and all of its obligations under this Contract.~~

13. Ordering, Invoices and Payment.

~~13.1 Authorizing Document. The document for the Contract will be a delivery order. No work should start until the delivery order is received by the Contractor.~~

~~13.2 Invoices must conform to the requirements communicated from time to time by the State. All undisputed amounts are payable within 45 days of the State's receipt. Contractor may only charge for the Solution provided as specified in Statement(s) of Work. Invoices must include an itemized statement of all charges.~~

~~13.3 The State has the right to withhold payment of any disputed amounts until the parties agree as to the validity of the disputed amount. The State will notify Contractor of any dispute within a reasonable time. Payment by the State will not constitute a waiver of~~

~~any rights as to Contractor's continuing obligations, including claims for deficiencies or substandard Deliverables. Contractor's acceptance of final payment by the State constitutes a waiver of all claims by Contractor against the State for payment under this Contract, other than those claims previously filed in writing on a timely basis and still disputed.~~

~~13.4 The State will only disburse payments under this Contract through Electronic Funds Transfer (EFT). Contractor must register with the State at <http://www.michigan.gov/SIGMAVSS> to receive electronic fund transfer payments. If Contractor does not register, the State is not liable for failure to provide payment.~~

~~13.5 Right of Setoff. Without prejudice to any other right or remedy it may have, the State reserves the right to set off at any time any amount then due and owing to it by Contractor against any amount payable by the State to Contractor under this Contract.~~

~~13.6 Taxes. The State is exempt from federal excise tax, state, and local sales taxes, and use taxes if the Solution purchased under this Contract is for the State's exclusive use. Contractor will not include the collection of taxes for which the State is exempt in any invoices or payments related to this Contract. The State is not responsible for taxes imposed or assessed on Contractor.~~

~~13.7 Pricing/Fee Changes. Throughout the Term, all Pricing set forth in this Contract will be as set forth in **Schedule B—Pricing Schedule** and will not be increased, unless the State requires additional licenses, in which case the amount of fee per license the additional licenses will also remain fixed at the rates set forth in **Schedule B—Pricing Schedule**.~~

14. Liquidated Damages:

~~14.1 The parties understand and agree that any liquidated damages (which includes but is not limited to applicable credits) set forth in this Contract are reasonable estimates of the State's damages in accordance with applicable law.~~

~~14.2 The parties acknowledge and agree that Contractor could incur liquidated damages for more than one event.~~

~~14.3 The assessment of liquidated damages will not constitute a waiver or release of any other remedy the State may have under this Contract for Contractor's breach of this Contract, including without limitation, the State's right to terminate this Contract for cause and the State will be entitled in its discretion to recover actual damages caused by Contractor's failure to perform its obligations under this Contract. However, the State will reduce such actual damages by the amounts of liquidated damages received for the same events causing the actual damages.~~

~~14.4 Amounts due the State as liquidated damages may be set off against any Fees payable to Contractor under this Contract, or the State may bill Contractor as a separate item and Contractor will promptly make payments on such bills.~~

15. Stop Work Order. The State may suspend any or all activities under the Contract at any time. The State will provide Contractor a written stop work order detailing the suspension:

~~Contractor must comply with the stop work order upon receipt. Within 90 calendar days, or any longer period agreed to by Contractor, the State will either:~~

- ~~(a) issue a notice authorizing Contractor to resume work, or~~
- ~~(b) terminate the Contract or delivery order. The State will not pay for activities that have been suspended, Contractor's lost profits, or any additional compensation during a stop work period.~~

16. Termination, Expiration, Transition. ~~The State may terminate this Contract, the Support Services, or any Statement of Work, in accordance with the following:~~

16.1 Termination for Cause. ~~In addition to any right of termination set forth elsewhere in this Contract:~~

- ~~(a) The State may terminate this Contract for cause, in whole or in part, if Contractor, as determined by the State:~~
 - ~~i) endangers the value, integrity, or security of State Systems, State Data, or the State's facilities or personnel;~~
 - ~~(ii) becomes insolvent, petitions for bankruptcy court proceedings, or has an involuntary bankruptcy proceeding filed against it by any creditor; or~~
 - ~~(iii) breaches any of its material duties or obligations under this Contract. Any reference to specific breaches being material breaches within this Contract will not be construed to mean that other breaches are not material.~~
- ~~(b) If the State terminates this Contract under this **Subsection 16.1**, the State will issue a termination notice specifying whether Contractor must:~~
 - ~~(i) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or~~
 - ~~(ii) continue to perform for a specified period. If it is later determined that Contractor was not in breach of this Contract, the termination will be deemed to have been a termination for convenience, effective as of the same date, and the rights and obligations of the parties will be limited to those provided in **Subsection 16.2**.~~
- ~~(c) The State will only pay for amounts due to Contractor for Services accepted by the State on or before the date of termination, subject to the State's right to set off any amounts owed by the Contractor for the State's reasonable costs in terminating this Contract. Contractor must promptly reimburse to the State any Fees prepaid by the State prorated to the date of such termination, including any prepaid Fees. Contractor must pay all reasonable costs incurred by the State in terminating this Contract for cause, including administrative costs, attorneys'~~

~~fees, court costs, transition costs, and any costs the State incurs to procure the Services from other sources.~~

~~16.2 Termination for Convenience.~~ The State may immediately terminate this Contract in whole or in part, without penalty and for any reason or no reason, including but not limited to, appropriation or budget shortfalls. The termination notice will specify whether Contractor must:

~~(a) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or~~

~~(b) continue to perform in accordance with **Subsection 16.3**. If the State terminates this Contract for convenience, the State will pay all reasonable costs, as determined by the State, for State approved Transition Responsibilities to the extent the funds are available.~~

~~16.3 Transition Responsibilities.~~

~~(a) Upon termination or expiration of this Contract for any reason, Contractor must, for a period of time specified by the State (not to exceed 180 calendar days; the "**Transition Period**"), provide all reasonable transition assistance requested by the State, to allow for the expired or terminated portion of the Contract to continue without interruption or adverse effect, and to facilitate the orderly transfer of the Services to the State or its designees. Such transition assistance may include but is not limited to:~~

~~(i) continuing to perform the Services at the established Contract rates;~~

~~(ii) taking all reasonable and necessary measures to transition performance of the work, including all applicable Services to the State or the State's designee;~~

~~(iii) taking all necessary and appropriate steps, or such other action as the State may direct, to preserve, maintain, protect, and comply with **Section 22**, including without limitation, the return or destruction of State Data at the conclusion of the Transition Period; and~~

~~(iv) preparing an accurate accounting from which the State and Contractor may reconcile all outstanding accounts (collectively, the "**Transition Responsibilities**"). The Term of this Contract is automatically extended through the end of the Transition Period.~~

~~(b) Contractor will follow the transition plan attached as **Schedule G** as it pertains to both transition in and transition out activities.~~

17. Indemnification

~~17.1 General Indemnification.~~ Contractor must defend, indemnify and hold the State, its departments, divisions, agencies, offices, commissions, officers, and employees

~~harmless, without limitation, from and against any and all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to:~~

- ~~(a) any breach by Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable) of any of the promises, agreements, representations, warranties, or insurance requirements contained in this Contract;~~
- ~~(b) any infringement, misappropriation, or other violation of any Intellectual Property Right or other right of any third party;~~
- ~~(c) any bodily injury, death, or damage to real or tangible personal property occurring wholly or in part due to action or inaction by Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable); and~~
- ~~(d) any acts or omissions of Contractor (or any of Contractor's employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable).~~

~~17.2 Indemnification Procedure. The State will notify Contractor in writing if indemnification is sought; however, failure to do so will not relieve Contractor, except to the extent that Contractor is materially prejudiced. Contractor must, to the satisfaction of the State, demonstrate its financial ability to carry out these obligations. The State is entitled to:~~

- ~~(a) regular updates on proceeding status;~~
- ~~(b) participate in the defense of the proceeding;~~
- ~~(c) employ its own counsel; and to~~
- ~~(d) retain control of the defense, at its own cost and expense, if the State deems necessary. Contractor will not, without the State's prior written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. Any litigation activity on behalf of the State or any of its subdivisions must be coordinated with the Department of Attorney General. An attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.~~

~~17.3 The State is constitutionally prohibited from indemnifying Contractor or any third parties.~~

18. Infringement Remedies:

~~18.1 The remedies set forth in this Section are in addition to, and not in lieu of, all other remedies that may be available to the State under this Contract or otherwise, including the State's right to be indemnified for such actions.~~

~~18.2 If any Deliverable, or any component thereof, other than State Materials, is found to be infringing or if any use of any Software or any component thereof is enjoined, threatened to be enjoined or otherwise the subject of an infringement claim, Contractor must, at Contractor's sole cost and expense:~~

~~(a) procure for the State the right to continue to use such Deliverable, or component thereof to the full extent contemplated by this Contract; or~~

~~(b) modify or replace the materials that infringe or are alleged to infringe ("**Allegedly Infringing Materials**") to make the Deliverable and all of its components non-infringing while providing fully equivalent features and functionality.~~

~~18.3 If neither of the foregoing is possible notwithstanding Contractor's best efforts, then Contractor may direct the State to cease any use of any materials that have been enjoined or finally adjudicated as infringing, provided that Contractor will:~~

~~(a) refund to the State all amounts paid by the State in respect of such Allegedly Infringing Materials and any other aspects of the Deliverable provided under a Statement of Work for the Allegedly Infringing Materials that the State cannot reasonably use as intended under this Contract; and~~

~~(b) in any case, at its sole cost and expense, secure the right for the State to continue using the Allegedly Infringing Materials for a transition period of up to 6 months to allow the State to replace the affected features of the Deliverable without disruption.~~

~~18.4 If Contractor directs the State to cease using any Deliverable under **Subsection 18.3**, the State, at its sole discretion, will be entitled to declare such a direction from the Contractor to cease use a material breach of the Contract and may terminate this Contract under **Section 16**. Unless the claim arose against the Deliverable independently of any of the actions specified below, Contractor will have no liability for any claim of infringement arising solely from:~~

~~(a) Contractor's compliance with any designs, specifications, or instructions of the State; or~~

~~(b) modification of the Deliverable by the State without the prior knowledge and approval of Contractor.~~

19. Disclaimer of Damages and Limitation of Liability.

~~19.1 The State's Disclaimer of Damages. THE STATE WILL NOT BE LIABLE, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT FOR CONSEQUENTIAL, INCIDENTAL, INDIRECT, OR SPECIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS AND LOST BUSINESS OPPORTUNITIES.~~

~~19.2 The State's Limitation of Liability. IN NO EVENT WILL THE STATE'S AGGREGATE LIABILITY TO CONTRACTOR UNDER THIS CONTRACT, REGARDLESS OF THE~~

~~FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT, EXCEED THE MAXIMUM AMOUNT OF FEES PAYABLE UNDER THIS CONTRACT.~~

20. Disclosure of Litigation, or Other Proceeding. Contractor must notify the State within 14 calendar days of receiving notice of any litigation, investigation, arbitration, or other proceeding (collectively, "**Proceeding**") involving Contractor, a Permitted Subcontractor, or an officer or director of Contractor or Permitted Subcontractor, that arises during the term of the Contract, including:

- ~~(a) a criminal Proceeding;~~
- ~~(b) a parole or probation Proceeding;~~
- ~~(c) a Proceeding under the Sarbanes-Oxley Act;~~
- ~~(d) a civil Proceeding involving:
 - ~~(i) a claim that might reasonably be expected to adversely affect Contractor's viability or financial stability; or~~
 - ~~(ii) a governmental or public entity's claim or written allegation of fraud; or~~~~
- ~~(e) a Proceeding involving any license that Contractor is required to possess in order to perform under this Contract.~~

21. State Data.

21.1 Ownership. The State's data ("**State Data**"), which will be treated by Contractor as Confidential Information, includes:

- ~~(a) User Data;~~
- ~~(b) Work Product;~~
- ~~(c) all data made available to Contractor for or during the provision of the Solution, including but not limited to all text, sound, video, image files, or software; and~~
- ~~(d) any other data collected, used, Processed, stored, or generated in connection with the Solution, including but not limited to:
 - ~~(i) personally identifiable information ("**PII**") collected, used, Processed, stored, or generated as the result of the Solution, including, without limitation, any information that identifies an individual, such as an individual's social security number or other government issued identification number, date of birth, address, telephone number, biometric data, mother's maiden name, email address, credit card information, or an individual's name in combination with any other of the elements here listed; and~~
 - ~~(ii) protected health information ("**PHI**") collected, used, Processed, stored, or generated as the result of the Solution, which is defined under~~~~

~~the Health Insurance Portability and Accountability Act (“HIPAA”) and its related rules and regulations.~~

~~21.2 State Data is and will remain the sole and exclusive property of the State and all right, title, and interest in the same is reserved by the State.~~

~~21.3 Contractor Use of State Data. Contractor is provided a limited license to State Data for the sole and exclusive purpose of providing the Solution, including a license to collect, process, store, generate, and display State Data only to the extent necessary in the provision of the Solution. Contractor must:~~

~~(a) keep and maintain State Data in strict confidence, using such degree of care as is appropriate and consistent with its obligations as further described in this Contract and applicable law to avoid unauthorized access, use, disclosure, or loss;~~

~~(b) use and disclose State Data solely and exclusively for the purpose of providing the Solution, such use and disclosure being in accordance with this Contract, any applicable Statement of Work, and applicable law;~~

~~(c) keep and maintain State Data in the United States or its territories. For the avoidance of doubt, Offshore Resources are not permitted under this Contract; and~~

~~(d) not use, sell, rent, transfer, mine, distribute, commercially exploit, or otherwise disclose or make available State Data for Contractor’s own purposes or for the benefit of anyone other than the State without the State’s prior written consent. Contractor’s misuse of State Data may violate state or federal laws, including but not limited to MGL 752.795~~

~~21.4 Third-Party Requests. Contractor will immediately notify the State upon receipt of any third-party requests which in any way might reasonably require Access to State Data. Contractor will notify the State Program Managers or their designees by the fastest means available and also in writing. Contractor must provide such notification within twenty-four (24) hours from Contractor’s receipt of the request. Contractor will not respond to subpoenas, service of process, FOIA requests, and other legal requests related to the State without first notifying the State. Upon request by the State, Contractor must provide to the State, its proposed response to the third party request with adequate time for the State to review, and, as it deems necessary, to revise the response, object, or take other action.~~

~~21.5 Loss or Compromise of Data. In the event of any act, error or omission, negligence, misconduct, or breach on the part of Contractor that compromises or is suspected to compromise the security, confidentiality, integrity, or availability of State Data or the physical, technical, administrative, or organizational safeguards put in place by Contractor that relate to the protection of the security, confidentiality, or integrity of State Data, Contractor must, as applicable:~~

~~(a) notify the State as soon as practicable but no later than 24 hours of becoming aware of such occurrence;~~

~~(b) cooperate with the State in investigating the occurrence, including making available all relevant records, logs, files, data reporting, and other materials required to comply with applicable law or as otherwise required by the State;~~

~~(c) in the case of PII or PHI, at the State's sole election:~~

~~(i) with approval and assistance from the State, notify the affected individuals who comprise the PII or PHI as soon as practicable but no later than is required to comply with applicable law, or, in the absence of any legally required notification period, within 5 calendar days of the occurrence; or~~

~~(ii) reimburse the State for any costs in notifying the affected individuals;~~

~~(d) in the case of PII, provide third party credit and identity monitoring services to each of the affected individuals who comprise the PII for the period required to comply with applicable law, or, in the absence of any legally required monitoring services, for no less than 24 months following the date of notification to such individuals;~~

~~(e) perform or take any other actions required to comply with applicable law as a result of the occurrence;~~

~~(f) pay for any costs associated with the occurrence, including but not limited to any costs incurred by the State in investigating and resolving the occurrence, including reasonable attorney's fees associated with such investigation and resolution;~~

~~(g) without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State in connection with the occurrence;~~

~~(h) be responsible for recreating lost State Data in the manner and on the schedule set by the State without charge to the State; and~~

~~(i) provide to the State a detailed plan within 10 calendar days of the occurrence describing the measures Contractor will undertake to prevent a future occurrence. Notification to affected individuals, as described above, must comply with applicable law, be written in plain language, not be tangentially used for any solicitation purposes, and contain, at a minimum: name and contact information of Contractor's representative; a description of the nature of the loss; a list of the types of data involved; the known or approximate date of the loss; how such loss may affect the affected individual; what steps Contractor has taken to protect the affected individual; what steps the affected individual can take to protect himself or herself; contact information for major credit card reporting agencies; and, information regarding the credit and identity monitoring services to be provided by Contractor. The State will have the option to~~

~~review and approve any notification sent to affected individuals prior to its delivery. Notification to any other party, including but not limited to public media outlets, must be reviewed and approved by the State in writing prior to its dissemination.~~

~~21.6 The parties agree that any damages arising out of a breach of the terms set forth in this Section are to be considered direct damages and not consequential damages.~~

22. Non-Disclosure of Confidential Information. The parties acknowledge that each party may be exposed to or acquire communication or data of the other party that is confidential, privileged communication not intended to be disclosed to third parties:

~~22.1 Meaning of Confidential Information. For the purposes of this Contract, the term “Confidential Information” means all information and documentation of a party that: (a) has been marked “confidential” or with words of similar meaning, at the time of disclosure by such party; (b) if disclosed orally or not marked “confidential” or with words of similar meaning, was subsequently summarized in writing by the disclosing party and marked “confidential” or with words of similar meaning; and, (c) should reasonably be recognized as confidential information of the disclosing party. The term “Confidential Information” does not include any information or documentation that was: (a) subject to disclosure under the Michigan Freedom of Information Act (FOIA); (b) already in the possession of the receiving party without an obligation of confidentiality; (c) developed independently by the receiving party, as demonstrated by the receiving party, without violating the disclosing party’s proprietary rights; (d) obtained from a source other than the disclosing party without an obligation of confidentiality; or, (e) publicly available when received, or thereafter became publicly available (other than through any unauthorized disclosure). For purposes of this Contract, in all cases and for all matters, State Data is deemed to be Confidential Information.~~

~~22.2 Obligation of Confidentiality. The parties agree to hold all Confidential Information in strict confidence and not to copy, reproduce, sell, transfer, or otherwise dispose of, give or disclose such Confidential Information to third parties other than employees, agents, or subcontractors of a party who have a need to know in connection with this Contract or to use such Confidential Information for any purposes whatsoever other than the performance of this Contract. The parties agree to advise and require their respective employees, agents, and subcontractors of their obligations to keep all Confidential Information confidential. Disclosure to the Contractor’s subcontractor is permissible where:~~

- ~~(a) the subcontractor is a Permitted Subcontractor;~~
- ~~(b) the disclosure is necessary or otherwise naturally occurs in connection with work that is within the Permitted Subcontractor’s responsibilities; and~~
- ~~(c) Contractor obligates the Permitted Subcontractor in a written contract to maintain the State’s Confidential Information in confidence. At the State’s request, any of the Contractor’s and Permitted Subcontractor’s Representatives may be required to execute a separate agreement to be bound by the provisions of this Subsection 22.2.~~

~~22.3 Cooperation to Prevent Disclosure of Confidential Information.~~ Each party must use its best efforts to assist the other party in identifying and preventing any unauthorized use or disclosure of any Confidential Information. Without limiting the foregoing, each party must advise the other party immediately in the event either party learns or has reason to believe that any person who has had access to Confidential Information has violated or intends to violate the terms of this Contract. Each party will cooperate with the other party in seeking injunctive or other equitable relief against any such person.

~~22.4 Remedies for Breach of Obligation of Confidentiality.~~ Each party acknowledges that breach of its obligation of confidentiality may give rise to irreparable injury to the other party, which damage may be inadequately compensable in the form of monetary damages. Accordingly, a party may seek and obtain injunctive relief against the breach or threatened breach of the foregoing undertakings, in addition to any other legal remedies which may be available, to include, in the case of the State, at the sole election of the State, the immediate termination, without liability to the State, of this Contract or any Statement of Work corresponding to the breach or threatened breach.

~~22.5 Surrender of Confidential Information.~~ Upon termination or expiration of this Contract or a Statement of Work, in whole or in part, each party must, within 5 Business Days from the date of termination or expiration, return to the other party any and all Confidential Information received from the other party, or created or received by a party on behalf of the other party, which are in such party's possession, custody, or control. Upon confirmation from the State, of receipt of all data, Contractor must permanently sanitize or destroy the State's Confidential Information, including State Data, from all media including backups using National Security Agency ("NSA") and/or National Institute of Standards and Technology ("NIST") (NIST Guide for Media Sanitization 800-88) data sanitization methods or as otherwise instructed by the State. If the State determines that the return of any Confidential Information is not feasible or necessary, Contractor must destroy the Confidential Information as specified above. The Contractor must certify the destruction of Confidential Information (including State Data) in writing within 5 Business Days from the date of confirmation from the State.

23. Records Maintenance, Inspection, Examination, and Audit.

~~23.1 Right of Audit.~~ Pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract. Contractor must retain and provide to the State or its designee and the auditor general upon request, all financial and accounting records related to this Contract through the Term of this Contract and for 4 years after the latter of termination, expiration, or final payment under this Contract or any extension ("**Financial Audit Period**"). If an audit, litigation, or other action involving the records is initiated before the end of the Financial Audit Period, Contractor must retain the records until all issues are resolved.

~~23.2 Right of Inspection.~~ Within 10 calendar days of providing notice, the State and its authorized representatives or designees have the right to enter and inspect Contractor's premises or any other places where Services are being performed, and examine, copy, and audit all records related to this Contract. Contractor must cooperate and provide reasonable assistance. If financial errors are revealed, the amount in error must be

~~reflected as a credit or debit on subsequent invoices until the amount is paid or refunded. Any remaining balance at the end of this Contract must be paid or refunded within 45 calendar days.~~

~~23.3 Application. This **Section 23** applies to Contractor, any Affiliate, and any Permitted Subcontractor that performs Services in connection with this Contract.~~

24. Support Services. Contractor will provide the State with the Support Services described in the Service Level Agreement attached as **Schedule D** to this Contract. Such Support Services will be provided:

(a) Free of charge during the Warranty Period.

(b) Thereafter, for so long as the State elects to receive Support, in consideration of the State's payment of Fees for such services in accordance with the rates set forth in the Pricing Schedule.

25. Data Security Requirements. Throughout the Term and at all times in connection to the Solution, Contractor will maintain and enforce an information security program including safety and physical and technical security policies and procedures with respect to its Processing of the State's Confidential Information that comply with the requirements of the State's data security policies as set forth in **Schedule E** to this Contract.

26. Training. Contractor will provide, at no additional charge, training on the Solution provided hereunder in accordance with the times, locations and other terms set forth in a Statement of Work. Upon the State's request, Contractor will timely provide training for additional Authorized Users or other additional training on the Solution for which the State requests such training, at such reasonable times and locations and pursuant to such rates and other terms as are set forth in the Pricing Schedule.

27. Maintenance Releases; New Versions

~~27.1 Maintenance Releases. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all Maintenance Releases, each of which will constitute Software and be subject to the terms and conditions of this Contract.~~

~~27.2 New Versions. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all New Versions, each of which will constitute Software and be subject to the terms and conditions of this Contract.~~

~~27.3 Installation. The State has no obligation to install or use any Maintenance Release or New Versions. If the State wishes to install any Maintenance Release or New Version, the State will have the right to have such Maintenance Release or New Version installed, in the State's discretion, by Contractor or other authorized party as set forth in a Statement of Work. Contractor will provide the State, at no additional charge, adequate Documentation for installation of the Maintenance Release or New Version, which has been developed and tested by Contractor and Acceptance Tested by the State. The State's decision not to install or implement a Maintenance Release or New Version of the~~

~~Software will not affect its right to receive Support Services throughout the Term of this Contract.~~

~~27.4 Supported Third-Party and Open-Source Components. Contractor will utilize only currently supported versions of all Third-Party or Open-Source Components and will notify the State when not using the most recently published Third-Party and Open-Source Components.~~

28. Source Code Escrow.

~~28.1 Escrow Contract. The parties may enter into a separate intellectual property escrow agreement. Such escrow agreement will govern all aspects of Source Code escrow and release. The cost of the escrow will be the sole responsibility of Contractor.~~

~~28.2 Deposit. Within 30 Business Days of the effective date of the escrow agreement, Contractor will deposit with the escrow agent, pursuant to the procedures of the escrow agreement, the Source Code for the Software, as well as the Documentation and names and contact information for each author or other creator of the Software. Promptly after release of any update, upgrade, patch, bug fix, enhancement, new version, or other revision to the Software, Contractor will deposit updated Source Code, documentation, names, and contact information with the escrow agent (all of which is collectively referred to herein as "**Deposit Material**").~~

~~28.3 Verification. At State's request and expense, the escrow agent may at any time verify the Deposit Material, including without limitation by compiling Source Code, comparing it to the Software, and reviewing the completeness and accuracy of all material. If the Deposit Material does not conform to the requirements of **Subsection 28.2** above:~~

~~(a) Contractor will promptly deposit conforming Deposit Material; and~~

~~(b) Contractor will pay the escrow agent for subsequent verification of the new Deposit Material. Any breach of the provisions of this **Section 28** will constitute material breach of this Contract, and no further payments will be due from the State until such breach is cured, in addition to any other remedies the State may have.~~

~~28.4 Deposit Material License. Contractor hereby grants the State a license to use, reproduce, and create derivative works from the Deposit Material, provided the State may not distribute or sublicense the Deposit Material or make any use of it whatsoever except for such internal or governmental uses as necessary to maintain and support the Software. Copies of the Deposit Material created or transferred pursuant to this Contract are licensed, not sold, and the State receives no title to or ownership of any copy or of the Deposit Material itself. The Deposit Material constitutes Confidential Information of Contractor pursuant to **Section 22** (Non-disclosure of Confidential Information) of this Contract (provided no provision of **Subsection 22.4** calling for return of Confidential Information before termination of this Contract will apply to the Deposit Material).~~

29. Contractor Representations and Warranties.

~~29.1 Authority. Contractor represents and warrants to the State that:~~

- ~~(a) It is duly organized, validly existing, and in good standing as a corporation or other entity as represented under this Contract under the laws and regulations of its jurisdiction of incorporation, organization, or chartering;~~
- ~~(b) It has the full right, power, and authority to enter into this Contract, and to perform its contractual obligations;~~
- ~~(c) The execution of this Contract by its Representative has been duly authorized by all necessary organizational action; and~~
- ~~(d) When executed and delivered by Contractor, this Contract will constitute the legal, valid, and binding obligation of Contractor, enforceable against Contractor in accordance with its terms.~~
- ~~(e) Contractor is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.~~

~~29.2 Bid Response.~~ Contractor represents and warrants to the State that:

- ~~(a) The prices proposed by Contractor were arrived at independently, without consultation, communication, or agreement with any other Bidder for the purpose of restricting competition; the prices quoted were not knowingly disclosed by Contractor to any other Bidder to the Solicitation; and no attempt was made by Contractor to induce any other Person to submit or not submit a proposal for the purpose of restricting competition;~~
- ~~(b) All written information furnished to the State by or for Contractor in connection with this Contract, including Contractor's Bid Response, is true, accurate, and complete, and contains no untrue statement of material fact or omits any material fact necessary to make the information not misleading;~~
- ~~(c) Contractor is not in material default or breach of any other contract or agreement that it may have with the State or any of its departments, commissions, boards, or agencies. Contractor further represents and warrants that it has not been a party to any contract with the State or any of its departments that was terminated by the State within the previous 5 years for the reason that Contractor failed to perform or otherwise breached an obligation of the contract; and~~
- ~~(d) If any of the certifications, representations, or disclosures made in Contractor's Bid Response change after contract award, the Contractor is required to report those changes immediately to the Contract Administrator.~~

~~29.3 Software Representations and Warranties.~~ Contractor further represents and warrants to the State that:

- ~~(a) Contractor is the legal and beneficial owner of the entire right, title and interest in and to the Software, including all Intellectual Property Rights relating thereto or is the recipient of a valid license thereto, and that it has and will maintain the full power and authority to grant the Intellectual Property Rights to~~

~~the Software or to use the Software in the Contract (i) without the further consent of any third party and (ii) without conditions or requirements not set forth in this Contract;~~

~~(b) Contractor has, and throughout the Term and any additional periods during which Contractor does or is required to perform the Services will have, the unconditional and irrevocable right, power and authority, including all permits and licenses required, to provide the Services and grant and perform all rights and licenses granted or required to be granted by it under this Contract;~~

~~(c) the Software, and the State's use thereof, is and throughout the license term will be free and clear of all encumbrances, liens and security interests of any kind;~~

~~(d) neither its grant of the license, nor its performance under this Contract does or to its knowledge will at any time:~~

~~(i) conflict with or violate any applicable law;~~

~~(ii) require the consent, approval or authorization of any governmental or regulatory authority or other third party; or~~

~~(iii) require the provision of any payment or other consideration to any third party;~~

~~(e) when used by the State or any Authorized User in accordance with this Contract the Solution as provided, delivered, or installed by Contractor does not or will not:~~

~~(i) infringe, misappropriate, or otherwise violate any Intellectual Property Right or other right of any third party; or~~

~~(ii) fail to comply with any applicable law;~~

~~(f) as provided by Contractor, the Solution does not and will not at any time during the Term contain any:~~

~~(i) Harmful Code; or~~

~~(ii) Third party or Open Source Components or operate in such a way that it is developed or compiled with or linked to any third-party or Open Source Components, other than Approved Third-Party Components.~~

~~(g) all Documentation is and will be complete and accurate in all material respects when provided to the State such that at no time during the license term will the Software have any material undocumented feature; and~~

~~(h) Contractor will perform all Services in a timely, skillful, professional and workmanlike manner in accordance with commercially reasonable industry standards and practices for similar services, using personnel with the requisite skill, experience and qualifications, and will devote adequate resources to meet its obligations under this Contract.~~

~~(i) when used in the Operating Environment (or any successor thereto) in accordance with the Documentation, all Software as provided by Contractor, will be fully operable, meet all applicable specifications, and function in all respects, in conformity with this Contract and the Documentation;~~

~~(j) Contractor acknowledges that the State cannot indemnify any third parties, including but not limited to any third party software providers that provide software that will be incorporated in or otherwise used in conjunction with the Services, and that notwithstanding anything to the contrary contained in any third party software license agreement or end user license agreement, the State will not indemnify any third party software provider for any reason whatsoever;~~

~~(k) no Maintenance Release or New Version, when properly installed in accordance with this Contract, will have a material adverse effect on the functionality or operability of the Software;~~

~~(l) all Configurations or Customizations made during the Term will be forward compatible with future Maintenance Releases or New Versions and be fully supported without additional costs;~~

~~(m) If Contractor Hosted:~~

~~(i) Contractor will not advertise through the Solution (whether with adware, banners, buttons or other forms of online advertising) or link to external web sites that are not approved in writing by the State;~~

~~(ii) the Solution will in all material respects conform to and perform in accordance with the Specifications and all requirements of this Contract, including the Availability and Availability Requirement provisions set forth in the Service Level Agreement;~~

~~(iii) all Specifications are, and will be continually updated and maintained so that they continue to be, current, complete and accurate and so that they do and will continue to fully describe the Solution in all material respects such that at no time during the Term or any additional periods during which Contractor does or is required to perform the Services will the Solution have any material undocumented feature;~~

~~(n) During the Term of this Contract, any audit rights contained in any third party software license agreement or end user license agreement for third party software incorporated in or otherwise used in conjunction with the Solution, will apply solely to Contractor or its Permitted Subcontractors. Regardless of anything to the contrary contained in any third party software license agreement or end user license agreement, third party software providers will have no audit rights whatsoever against State Systems or networks;~~

~~29.4 Work Product Representations and Warranties: Contractor further represents and warrants to the State that:~~

~~(a) Contractor has all necessary rights, title, and/or licenses required to create, develop, or generate Work Product and to transfer all ownership rights in Work Product to the State as set forth in Section 7.~~

~~(b) Contractor has verified that no third-party intellectual property has been incorporated into any Work Product created, developed, or generated by any nonhuman means used by Contractor.~~

~~29.5 Disclaimer. EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH IN THIS CONTRACT, CONTRACTOR HEREBY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, WITH RESPECT TO THIS CONTRACT.~~

~~**30. Conflicts and Ethics.** Contractor will uphold high ethical standards and is prohibited from: (a) holding or acquiring an interest that would conflict with this Contract; (b) doing anything that creates an appearance of impropriety with respect to the award or performance of the Contract; (c) attempting to influence or appearing to influence any State employee by the direct or indirect offer of anything of value including an offer of employment; or (d) paying or agreeing to pay any person, other than employees and consultants working for Contractor, any consideration contingent upon the award of the Contract. Contractor must immediately notify the State of any violation or potential violation of these standards. This Section applies to Contractor, any parent, affiliate, or subsidiary organization of Contractor, and any Permitted Subcontractor that provides the Solution in connection with this Contract.~~

~~**31. Compliance with Laws.** Contractor, its subcontractors, including Permitted Subcontractors, and their respective Representatives must comply with all laws in connection with this Contract.~~

~~**32. Nondiscrimination.** Under the Elliott Larsen Civil Rights Act, 1976 PA 453, MCL 37.2101, *et seq.*, the Persons with Disabilities Civil Rights Act, 1976 PA 220, MCL 37.1101, *et seq.*, and Executive Directive [2019-09](#), Contractor and its subcontractors agree not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions, or privileges of employment, or a matter directly or indirectly related to employment, because of race, color, religion, national origin, age, sex, height, weight, marital status, partisan considerations, any mental or physical disability, or genetic information that is unrelated to the person's ability to perform the duties of a particular job or position. Breach of this covenant is a material breach of the Contract.~~

~~**33. Unfair Labor Practice.** Under MCL 423.324, the State may void this Contract if the name of the Contractor, or the name of a subcontractor, manufacturer, or supplier of the Contractor, subsequently appears on the Unfair Labor Practice register compiled under MCL 423.322.~~

~~**34. Governing Law.** This Contract is governed, construed, and enforced in accordance with Michigan law, excluding choice of law principles, and all claims relating to or arising out of this Contract are governed by Michigan law, excluding choice of law principles. Any dispute arising from this Contract must be resolved in the Michigan Court of Claims. Contractor waives any objections, such as lack of personal jurisdiction or *forum non conveniens*. Contractor must appoint an agent in Michigan to receive service of process.~~

~~**35. Non-Exclusivity.** Nothing contained in this Contract is intended nor is to be construed as creating any requirements contract with Contractor, nor does it provide Contractor with a right of~~

~~first refusal for any future work. This Contract does not restrict the State or its agencies from acquiring similar, equal, or like Services from other sources.~~

36. Force Majeure

36.1 Force Majeure Events. ~~Neither party will be liable or responsible to the other party, or be deemed to have defaulted under or breached the Contract, for any failure or delay in fulfilling or performing any term hereof, when and to the extent such failure or delay is caused by: acts of God, flood, fire or explosion, war, terrorism, invasion, riot or other civil unrest, embargoes or blockades in effect on or after the date of the Contract, national or regional emergency, or any passage of law or governmental order, rule, regulation or direction, or any action taken by a governmental or public authority, including imposing an embargo, export or import restriction, quota or other restriction or prohibition (each of the foregoing, a "Force Majeure Event"), in each case provided that: (a) such event is outside the reasonable control of the affected party; (b) the affected party gives prompt written notice to the other party, stating the period of time the occurrence is expected to continue; (c) the affected party uses diligent efforts to end the failure or delay and minimize the effects of such Force Majeure Event.~~

~~36.2 State Performance; Termination. In the event of a Force Majeure Event affecting Contractor's performance under the Contract, the State may suspend its performance hereunder until such time as Contractor resumes performance. The State may terminate the Contract by written notice to Contractor if a Force Majeure Event affecting Contractor's performance hereunder continues substantially uninterrupted for a period of 5 Business Days or more. Unless the State terminates the Contract pursuant to the preceding sentence, any date specifically designated for Contractor's performance under the Contract will automatically be extended for a period up to the duration of the Force Majeure Event.~~

~~36.3 Exclusions; Non-suspended Obligations. Notwithstanding the foregoing or any other provisions of the Contract or this Schedule:~~

~~(a) in no event will any of the following be considered a Force Majeure Event:~~

~~(i) shutdowns, disruptions or malfunctions of the Solution or any of Contractor's telecommunication or internet services other than as a result of general and widespread internet or telecommunications failures that are not limited to the Solution; or~~

~~(ii) the delay or failure of any Contractor Personnel to perform any obligation of Contractor hereunder unless such delay or failure to perform is itself by reason of a Force Majeure Event.~~

~~(b) no Force Majeure Event modifies or excuses Contractor's obligations under **Section 21** (State Data), **22** (Non-Disclosure of Confidential Information), or **17** (Indemnification) of the Contract, Disaster Recovery and Backup requirements set forth in the Service Level Agreement, Availability Requirement (if Contractor Hosted) defined in the Service Level Agreement, or any data retention or security requirements under the Contract.~~

37. ~~Dispute Resolution.~~ The parties will endeavor to resolve any Contract dispute in accordance with this provision. The dispute will be referred to the parties' respective Contract Administrators or Program Managers. Such referral must include a description of the issues and all supporting documentation. The parties must submit the dispute to a senior executive if unable to resolve the dispute within 15 Business Days. The parties will continue performing while a dispute is being resolved, unless the dispute precludes performance. A dispute involving payment does not preclude performance. Litigation to resolve the dispute will not be instituted until after the dispute has been elevated to the parties' senior executive and either concludes that resolution is unlikely or fails to respond within 15 Business Days. The parties are not prohibited from instituting formal proceedings: (a) to avoid the expiration of statute of limitations period; (b) to preserve a superior position with respect to creditors; or (c) where a party decides that a temporary restraining order or other injunctive relief is the only adequate remedy. This Section does not limit the State's right to terminate the Contract.

38. ~~Media Releases.~~ News releases (including promotional literature and commercial advertisements) pertaining to this Contract or project to which it relates must not be made without the prior written approval of the State, and then only in accordance with the explicit written instructions of the State.

39. ~~Severability.~~ If any part of this Contract is held invalid or unenforceable, by any court of competent jurisdiction, that part will be deemed deleted from this Contract and the severed part will be replaced by agreed upon language that achieves the same or similar objectives. The remaining Contract will continue in full force and effect.

40. ~~Waiver.~~ Failure to enforce any provision of this Contract will not constitute a waiver.

41. ~~Survival.~~ Any right, obligation, or condition that, by its express terms or nature and context is intended to survive, will survive the termination or expiration of this Contract; such rights, obligations, or conditions include, but are not limited to, those related to transition responsibilities; indemnification; disclaimer of damages and limitations of liability; State Data; non-disclosure of Confidential Information; representations and warranties; insurance and bankruptcy.

42. ~~Administrative Fee and Reporting.~~

Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract including transactions with MiDEAL members, and other states (including governmental subdivisions and authorized entities). Administrative fee payments must be made online by check or credit card at: <https://www.thepayplace.com/mi/dtmb/adminfee>

Contractor must submit an itemized purchasing activity report, which includes at a minimum, the name of the purchasing entity and the total dollar volume in sales. Reports should be mailed to MiDeal@michigan.gov.

The administrative fee and purchasing activity report are due within 30 calendar days from the last day of each calendar quarter.

43. ~~Extended Purchasing Program.~~ This contract is extended to MiDEAL members. MiDEAL members include local units of government, school districts, universities, community colleges,

and nonprofit hospitals. A current list of MiDEAL members is available at www.michigan.gov/mideal.

Upon written agreement between the State and Contractor, this contract may also be extended to: (a) other states (including governmental subdivisions and authorized entities) and (b) State of Michigan employees.

If extended, Contractor must supply all Contract Activities at the established Contract prices and terms. The State reserves the right to impose an administrative fee and negotiate additional discounts based on any increased volume generated by such extensions.

Contractor must submit invoices to, and receive payment from, extended purchasing program members on a direct and individual basis.

44. Contract Modification. This Contract may not be amended or modified in any way, except by a properly signed **Change Notice**. Notwithstanding the foregoing, no subsequent Statement of Work or Change Notice executed after the Effective Date will be construed to amend this Contract unless it specifically states its intent to do so and cites the section or sections amended.

45. Accessibility Requirements.

45.1 All Software provided by Contractor under this Contract, including associated content and documentation, must at all times conform to the Digital Accessibility Standards. Throughout the Term of the Contract, Contractor must:

- (a) maintain compliance with the Digital Accessibility Standards;
- (b) comply with plans and timelines approved by the State to achieve conformance in the event of any deficiencies;
- (c) ensure that no Maintenance Release, New Version, update or patch, when properly installed in accordance with this Contract, will have any adverse effect on the conformance of Contractor's Software to the Digital Accessibility Standards;
- (d) promptly respond to and resolve any complaint the State receives regarding accessibility of Contractor's Software;
- (e) upon the State's written request, provide evidence of compliance with this Section by delivering to the State Contractor's most current PAT for each product provided under the Contract; and
- (f) participate in the State of Michigan Digital Standards Review described below.

45.2 State of Michigan Digital Standards Review.

Throughout the Term, Contractor must assist the State, at no additional cost, with development, completion, and on-going maintenance of an accessibility plan, which requires Contractor, upon request from the State, to submit evidence to the State to review and validate Contractor's accessibility and compliance with the Digital Accessibility Standards. Prior to the Solution going live a State of Michigan Digital

~~Standards Review is required, and Contractor must remediate all accessibility issues identified in such review at no additional cost.~~

~~Additional State of Michigan Digital Standards Reviews may be required thereafter on an annual basis, or as otherwise required by the State. At no additional cost, Contractor must remediate all issues identified from any such review pursuant to plans and timelines that are approved in writing by the State.~~

~~45.3 Contractor must, without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State arising out of its failure to comply with the foregoing accessibility standards.~~

~~45.4 Failure to comply with the requirements in this **Section 45** shall constitute a material breach of this Contract.~~

~~**46. Further Assurances.** Each party will, upon the reasonable request of the other party, execute such documents and perform such acts as may be necessary to give full effect to the terms of this Contract.~~

~~**47. Relationship of the Parties.** The relationship between the parties is that of independent contractors. Contractor, its employees, and agents will not be considered employees of the State. No partnership or joint venture relationship is created by virtue of this Contract. Contractor, and not the State, is responsible for the payment of wages, benefits and taxes of Contractor's employees and any subcontractors. Prior performance does not modify Contractor's status as an independent contractor. Neither party has authority to contract for nor bind the other party in any manner whatsoever.~~

~~**48. Headings.** The headings in this Contract are for reference only and do not affect the interpretation of this Contract.~~

~~**49. No Third-party Beneficiaries.** This Contract is for the sole benefit of the parties and their respective successors and permitted assigns. Nothing herein, express or implied, is intended to or will confer on any other person or entity any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Contract.~~

~~**50. Equitable Relief.** Each party to this Contract acknowledges and agrees that (a) a breach or threatened breach by such party of any of its obligations under this Contract may give rise to irreparable harm to the other party for which monetary damages would not be an adequate remedy and (b) in the event of a breach or a threatened breach by such party of any such obligations, the other party hereto is, in addition to any and all other rights and remedies that may be available to such party at law, at equity or otherwise in respect of such breach, entitled to seek equitable relief, including a temporary restraining order, an injunction, specific performance and any other relief that may be available from a court of competent jurisdiction, without any requirement to post a bond or other security, and without any requirement to prove actual damages or that monetary damages will not afford an adequate remedy, until or unless required by that court. Each party to this Contract agrees that such party will not oppose or otherwise challenge the appropriateness of equitable relief or the entry by a court of competent~~

~~jurisdiction of an order granting equitable relief, in either case, consistent with the terms of this Section.~~

51. Effect of Contractor Bankruptcy. ~~All rights and licenses granted by Contractor under this Contract are and will be deemed to be rights and licenses to “intellectual property,” and all Deliverables are and will be deemed to be “embodiments” of “intellectual property,” for purposes of, and as such terms are used in and interpreted under, Section 365(n) of the United States Bankruptcy Code (the “Code”). If Contractor or its estate becomes subject to any bankruptcy or similar proceeding, the State retains and has the right to fully exercise all rights, licenses, elections, and protections under this Contract, the Code and all other applicable bankruptcy, insolvency, and similar laws with respect to all Deliverables. Without limiting the generality of the foregoing, Contractor acknowledges and agrees that, if Contractor or its estate will become subject to any bankruptcy or similar proceeding:~~

~~(a) all rights and licenses granted to the State under this Contract will continue subject to the terms and conditions of this Contract, and will not be affected, even by Contractor’s rejection of this Contract; and~~

~~(b) the State will be entitled to a complete duplicate of (or complete access to, as appropriate) all such intellectual property and embodiments of intellectual property comprising or relating to any Deliverables, and the same, if not already in the State’s possession or in escrow, if applicable, will be promptly delivered to the State, unless Contractor elects to and does in fact continue to perform all of its obligations under this Contract.~~

52. Schedules. ~~All Schedules that are referenced herein and attached hereto are hereby incorporated by reference. The following Schedules are attached hereto and incorporated herein:~~

Schedule A	Statement of Work
Schedule B	Pricing Schedule
Schedule C	Insurance Schedule
Schedule D	Service Level Agreement
Schedule E	Data Security Requirements
Schedule F	Disaster Recovery Plan
Schedule G	Transition Plan
Schedule J	Federal Provision Addendum

53. Counterparts. ~~This Contract may be executed in counterparts, each of which will be deemed an original, but all of which together are deemed to be one and the same agreement and will become effective and binding upon the parties as of the Effective Date at such time as all the signatories hereto have signed a counterpart of this Contract. A signed copy of this Contract delivered by facsimile, e-mail or other means of electronic transmission (to which a signed copy is attached) is deemed to have the same legal effect as delivery of an original signed copy of this Contract.~~

54. Entire Agreement. ~~These Terms and Conditions, including all Statements of Work and other Schedules and Exhibits (again collectively the “Contract”) constitutes the sole and entire agreement of the parties to this Contract with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings and agreements, representations and warranties, both written and oral, with respect to such subject matter. In the event of any inconsistency between the statements made in the Terms and Conditions, the Schedules, Exhibits, and a Statement of Work, the following order of precedence governs: (a) first, these Terms and Conditions and (b) second, Schedule E — Data Security Requirements and (c) third, each Statement of Work; and (d) fourth, the remaining Exhibits and Schedules to this Contract. NO TERMS ON CONTRACTOR’S INVOICES, WEBSITE, BROWSE WRAP, SHRINK WRAP, CLICK WRAP, CLICK THROUGH OR OTHER NON NEGOTIATED TERMS AND CONDITIONS PROVIDED WITH ANY OF THE SERVICES, OR DOCUMENTATION HEREUNDER, EVEN IF ATTACHED TO STATE’S DELIVERY OR PURCHASE ORDER, WILL CONSTITUTE A PART OR AMENDMENT OF THIS CONTRACT OR IS BINDING ON THE STATE OR ANY AUTHORIZED USER FOR ANY PURPOSE. ALL SUCH OTHER TERMS AND CONDITIONS HAVE NO FORCE AND EFFECT AND ARE DEEMED REJECTED BY THE STATE AND THE AUTHORIZED USER, EVEN IF ACCESS TO OR USE OF SUCH SERVICE OR DOCUMENTATION REQUIRES AFFIRMATIVE ACCEPTANCE OF SUCH TERMS AND CONDITIONS.~~

SCHEDULE A – STATEMENT OF WORK

BIDDER INSTRUCTIONS:

This schedule identifies the anticipated requirements of any Contract resulting from this Solicitation. The term “Contractor” in this document refers to a bidder responding to this Solicitation.

Bidder must respond to each requirement or question marked “BIDDER RESPONSE” below and explain how it will fulfill each requirement. Attach any supplemental information and appropriately reference within your response.

1. DEFINITIONS

The following terms have the meanings set forth below. All initial capitalized terms that are not defined in this Schedule shall have the respective meanings given to them in Section 1 of the Contract Terms and Conditions.

Term	Definition
Artificial Intelligence (AI)	Refers to systems that display intelligent behavior by analyzing their environment and taking actions – with some degree of autonomy – to achieve specific goals.
Cloud Services:	The capability must be a first-party offering. The capability is offered directly by the provider being evaluated. That means that it is marketed, sold, serviced, and supported by that provider, and is within the audit/compliance scope for that provider’s offering. The capability must be cloud based. They are delivered to the State as a whole; they are not one-offs. They are software-defined; they must be capable of delivery of services without on-site hosted hardware appliances or virtual appliances that the State must configure. The capability will be fully in production and available to all customers. The capability will be generally available and cannot be restricted to certain customers. Managed services, delivered by provider or third-party personnel, are not Cloud Services.

	See SCHEDULE A – TABLE 1 - Business Specification Worksheet for more details, including more specific requirements for integration.
Direct Cloud Service Provider	The provider of network services, infrastructure, and/or business applications in the cloud. Specifically having the ability to provide all three service models of IaaS, PaaS, and SaaS services. While using a Public Cloud deployment model. The Provider must use a cloud computing model, which is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and one deployment model. Essential Characteristics: On-demand self-service. The State can unilaterally provision and deprovision computing capabilities, such as server time and network storage, as needed automatically without requiring human interaction from any cloud service provider. Broad network access. Capabilities are available over the network and accessed through standard mechanisms that promote use by heterogeneous thin or thick client platforms (e.g., mobile phones, tablets, laptops, and workstations). Resource pooling. The provider's computing resources are pooled to serve multiple consumers using a multi-tenant model, with different physical and virtual resources dynamically assigned and reassigned according to consumer demand. There is a sense of location independence in that the customer generally has no control or knowledge over the exact location of the provided resources but must be able to specify location at a higher level of abstraction (e.g., country, state, or datacenter). Examples of resources include storage, processing, memory, and network bandwidth. Rapid elasticity. Capabilities can be elastically provisioned and released, in some cases automatically, to scale rapidly outward and inward commensurate with demand. To the consumer, the capabilities available for provisioning often appear to be unlimited and can be appropriated in any quantity at any time. Measured service. Cloud systems automatically control and optimize resource use by leveraging a metering capability at some level of abstraction appropriate to the type of service (e.g.,

	storage, processing, bandwidth, and active user accounts). Resource usage can be monitored, controlled, and reported, providing transparency for both the provider and consumer of the utilized service. Deployment Model: Public cloud. The cloud infrastructure is provisioned for open use by the general public. It may be owned, managed, and operated by a business, academic, or government organization, or some combination of them. It exists on the premises of the cloud provider
Integrated IaaS / Infrastructure as a Service (IaaS)	The capability provided to the consumer is to provision processing, storage, networks, and other fundamental computing resources where the consumer is able to deploy and run arbitrary software, which can include operating systems and applications. The consumer does not manage or control the underlying cloud infrastructure but has control over operating systems, storage, and deployed applications; and possibly limited control of select networking components (e.g., host firewalls). (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Marketplace	A cloud marketplace is an online storefront where customers can purchase software and services that easily integrate with or are built on the cloud provider's offerings. It also offers cloud-native applications that customers can purchase and manage on the platform. Third Party offerings will require a separate license agreement executed between the State and the Third Party provider.
Integrated PaaS / Platform as a Service	The capability provided to the consumer is to deploy onto the cloud infrastructure consumer-created or acquired applications created using programming languages, libraries, services, and tools supported by the provider.³ The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, or storage, but has control over the deployed applications and possibly configuration settings for the application-hosting environment. (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Software as a Service (SaaS)	The capability provided to the consumer is to use the provider's applications running on a cloud infrastructure¹. The applications are accessible from various client devices through either a thin client interface, such as a web browser (e.g., web-based email), or a program interface. The consumer does not manage or control

	the underlying cloud infrastructure including network, servers, operating systems, storage, or even individual application capabilities, with the possible exception of limited user-specific application configuration settings. (See “SCHEDULE A – TABLE 1 - Business Specification Worksheet” for details of what each of these services entails.)
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2. BACKGROUND

The State of Michigan issued a solicitation for Statewide Integrated IaaS on 11/20/2020 RFP# 171 – 210000000312, and Contracts were established with Amazon Web Services and Google LLC in December of 2022. The State intends to refresh this program as well as expand the scope of the program to include offerings beyond IaaS and as described below. Existing and new Contractors may provide a response to be considered for Contract award under this program. If existing contractors choose not to reply to this solicitation, their Contracts will be limited to infrastructure only.

3. PURPOSE

The State is seeking to establish a contract that will allow the State to consume on-demand, scalable computing resource Cloud Services from one or more Direct Cloud Service Providers. In the effort to avoid multiple cloud service hosting contracts with varying terms, the State of Michigan’s Department of Technology, Management and Budget (DTMB) desires to setup a program with universal terms for all native cloud service products. This will provide a level playing field to all vendors across the entire State of Michigan IT Public Cloud space.

DTMB hosts and supports most of its computer applications on its own servers. The State is looking for the ability to transition hosting to the cloud when appropriate. DTMB is creating a State Digital Service (SDS) with product ownership of digital, technology and Cloud Services for the State of Michigan. The State Digital Service will be responsible for Cloud Services provided to State agencies. Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance based on the following criteria:

- Feature
- Integrations
- Development knowledge and ease of use
- Service Level
- Risk Profile
- Cost

While not required, the State, at its sole discretion, may decide to “refresh” this program (in whole or in part) at any point to allow for new vendors, products/services, update pricing, etc. At any point and at its sole discretion, the State may limit the number of vendors.

Term of the Agreement: 5 Base Years with 5, 1-Year Options

4. RESERVED

5. ADA COMPLIANCE

The State is required to comply with the Americans with Disabilities Act of 1990 (ADA) and has adopted standards and procedures regarding accessibility requirements for websites and software applications. All websites, applications, software, and associated content and documentation provided by the Contractor as part of the Solution must comply with the Digital Accessibility Standards.

Bidder must provide a description of conformance with World Wide Web Consortium (W3C) Web Content Accessibility Guidelines (WCAG) 2.1 Level AA specifications by providing a completed PAT for the Solution. If the Solution is comprised of multiple products, a PAT must be provided for each product. In addition to PATs, Bidders may include a verification of conformance certified by an industry-recognized third-party. If the Bidder is including any third-party products in the Solution, Bidder must obtain and provide the third-party PATs as well.

Each PAT must state exactly how the product meets the specifications. All "Not Applicable" (N/A) responses must be fully explained. Contractor must address each standard individually and with specificity; and clarify whether conformance is achieved throughout the entire product (for example – user functionality, administrator functionality, and reporting), or only in limited areas. A description of the evaluation methods used to support WCAG 2.1 Level AA conformance claims, including, if applicable, any third-party testing, must be provided. For each product that does not fully conform to WCAG 2.1 Level AA, Bidder must provide detailed information regarding the plan to achieve conformance, including timelines.

Bidder must provide details of how they will meet these requirements.

BIDDER RESPONSE: Google prioritizes accessibility, especially in the public sector. Section 508 and WCAG requirements guide our best practices.

Accessibility is core to our development process. Google's mission is to make information universally accessible and useful. We provide a VPAT (WCAG 2.0 A/AA, WCAG 2.1 A/AA, and Revised Section 508) for our Cloud SDK - gcloud Command Line Tool. You can find it on our website. This VPAT covers the underlying Google Cloud services outlined in this document.

Details to individual VPAT details are provided here as a link
:<https://cloud.google.com/security/compliance/vpat?hl=en&e=48754805>

Google suggests that the parties leverage the existing contract and its schedules, including the Addendum to Contractor Terms for Cloud and Infrastructure as a Service (IAAS) products - Sections 2.14 (Accessibility Requirements), Contract Notice No. 230000000200.

Google is willing to discuss any contract-specific modifications that the State of Michigan may propose for this opportunity.

6. RESERVED

7. ACCESS CONTROL AND AUTHENTICATION

The Contractor's solution must implement identity federation with the State's IT Identity and Access Management (IAM) environment as described in the State of Michigan Administrative Guide ([1340.00.020.08 Enterprise Identity and Access Management Services Standard \(michigan.gov\)](#)).

To support federation with the SOM MILogin solution, the Contractor's solution must support SAML, OpenID or OAuth federated identity protocols.

Solutions running within the States internally managed IT environment may be suitable for integration with the State's Active Directory services as identified in the 1340.00.020.08 standard.

Bidder must explain how they will meet the requirements for Access Control and Authentication.

BIDDER RESPONSE: Google acknowledges and agrees with this section of the proposal. We support MILogin, the State's preferred authentication protocols, and Active Directory (AD) integration in the following ways:

- **Access Control, Authentication, and Active Directory Integration** - To meet access control and authentication requirements, MILogin integrates with the State's existing AD infrastructure using Google Cloud. Google Cloud supports SAML, OpenID, or OAuth identity protocols. It functions as an Identity Provider (IdP) for many State of Michigan projects. Notably, **MILogin itself operates on Google Cloud, demonstrating success.**
- **Future Proofing** - Google Cloud further offers flexibility for the future by supporting integration with all leading industry-standard third-party IdPs. This approach offers flexibility. If the State's needs change, or you decide to migrate from AD, you can do so without compromising security or user experience.

8. REQUIRED FUNCTIONALITY RELATING TO DATA RETENTION, DISPOSAL, AND RETRIEVAL

The State has legal obligations to retain, dispose, and retrieve State Data along with obligations to manage and secure State Data. To meet these obligations, the Solution must allow the State to:

- 1) retain all data for the entire length of the Contract.
- 2) delete its data or request the deletion of its data, even data that may be stored offline or in backups.
- 3) transfer its data back to the State or to a new vendor or new solution.
- 4) transfer its data to the Archives of Michigan as may be required by a retention and disposal schedule.
- 5) retrieve data, even data that may be stored offline or in backups.

Except as otherwise stated in the Contract, Contractor will not dispose of, delete, or destroy State Data without the prior written approval of the State.

Bidder must review and explain how the data retention, disposal, and retrieval requirements will be met by the solution and describe its data management capabilities (storage limitations, duration, etc.). If the Solution does not allow the State to perform these activities itself, the bidder must explain how it will support the State's compliance with these requirements.

BIDDER RESPONSE: In the event the admin or project owner needs to delete data, Google Cloud secures data deletion through a multi-stage process. Data is stored in active and backup systems, with replication across data centers for high availability. Data is encrypted at rest for security. Deletion requests initiate the process, followed by a soft deletion period of up to 30 days, allowing for potential recovery. Then, logical deletion removes data from active and backup systems, often using cryptographic erasure, which deletes encryption keys, rendering the data unreadable. Backups are also eliminated using overwriting and cryptographic techniques. Google's media sanitization program tracks storage equipment, overwrites or destroys retired drives, and prevents unauthorized access to them.

Google Cloud offers various storage services, including Cloud Storage for object storage, Persistent Disk for block storage, and Cloud Filestore for shared file services

In the event the admin or project owner needs to transfer its data back to the State or to a new vendor or new solution or to the Archives of Michigan, Google Cloud offers multiple methods for data transfer, allowing seamless transitions:

Data Portability: Open and Standard formats - Google cloud supports open and industry-standard data formats (e.g., CSV, JSON, Parquet) when exporting data. This would avoid vendor lock-in, ensuring the State can easily import data into other systems.

Flexible Export Options: Tools such as Cloud Storage transfer services, BigQuery export functions, Cloud Dataflow pipelines would allow the State to export data in various formats and through different methods, based on their needs and destination.

API Access: APIs enable the state to efficiently and flexibly extract and transfer large datasets programmatically, automating the data transfer process.

Data can be retrieved during the soft deletion period, but after that, it's unrecoverable. Google aims to delete all customer data within a maximum period of six months (180 days), including time for the deletion marking, potential recovery, logical deletion, and backup expiration. Storage services like Cloud Storage and Persistent Disk are scalable. Data locality can be controlled using regions and zones.

9. END USER AND IT OPERATING ENVIRONMENT

The SOM IT environment includes FedRAMP authorized major cloud providers and on-premises market leading virtualization environments, with supporting platforms that includes enterprise storage, monitoring, and management running in house and in cloud hosting provides.

Contractor must accommodate the latest browser versions (including mobile browsers) as well as some pre-existing browsers. To ensure that users are able to access online services,

Contractor must ensure applications and websites display and function accurately in, at minimum, the two most recent major versions of the following browsers, without reliance on special plugins or extensions:

- Google Chrome
- Microsoft Edge
- Firefox
- Safari

Contractor must support the current and future State standard environment at no additional cost to the State.

Bidder must describe the optimal IT environment, supported browsers, and user interfaces.

BIDDER RESPONSE: Google confirms the Google Cloud Console and any applicable dashboards are compatible with all modern web browsers, including those outlined above by the State of Michigan (Google Chrome, Microsoft Edge, Firefox, and Safari) without requiring plugins or extensions. The functionality and user interface are consistent across these browsers. We also support mobile access. Google provides this at no additional cost.

Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations.

BIDDER RESPONSE: Google Cloud is a suite of cloud computing services offered by Google. Essentially, it's Google's way of enabling the State of Michigan to leverage their powerful infrastructure and software to build and run applications, store data, and analyze information, all without needing to own and maintain the physical hardware yourself. We do not require access to state hardware, network infrastructure, or software, however should the State's needs change over time, our software can access State networks if desired.

Through a Google Cloud solution, the State of Michigan will have complete autonomy in implementing architecture. Once the State sets up a Billing Account, it can immediately start using Google Cloud services and features over the internet.

For low-volume data connections, a common approach is to utilize Cloud VPN. This solution offers encrypted public internet connectivity with speeds ranging from 1.5-3.0 Gbps and allows for flexible routing configurations, both static and dynamic.

However, for scenarios demanding higher bandwidth or a preference for a private connection, the State can explore Partner Interconnect and Dedicated Interconnect options. These technologies enable the establishment of private cloud traffic connections to Google Cloud at any of its points of presence (PoPs), supporting capacities of up to 2x 100 Gbps.

Bidder must describe if it can comply with the current environment and how it intends to comply with any future changes to the IT environment. And if not, describe what IT and end user operating environment its Solution supports.

BIDDER RESPONSE: Google Cloud is designed to be compliant with a broad range of industry and governmental regulations. This includes regulations that are relevant to state-level environments like Michigan. With the highly configurable and flexible architecture, we can integrate with existing systems and technologies. Google Cloud services such as IaaS, PaaS and SaaS can be integrated with MiLogin and SOM Azure AD SSO.

Bidder must describe how it communicates changes to its software and architecture.

BIDDER RESPONSE: Google Cloud uses a multi-faceted communication strategy to keep customers informed about changes. They leverage official documentation, blog posts, dashboards, email notifications, community forums, and in-product messaging to reach different audiences with the right level of detail and timeliness. The emphasis is on transparency, clarity, and actionable guidance to ensure a smooth and informed experience for their users.

Bidder must describe how customers collaborate with your organization in the decision-making process for upgrades, maintenance, and change control.

BIDDER RESPONSE: Upgrades and maintenance are pushed out automatically with little to no down time in service per our terms and conditions. In most instances, Google Technical Account Manager (TAM) would assign to the State to be the main point of contact to capture Customer feedback for the solution capabilities and engage with the Google Product team(s), as needed. However, this may change depending on the project/task order/instance.

10. SOFTWARE

Software requirements are identified in **Schedule A – Table 1 Business Specification Worksheet**.

Contractor must provide a Software Bill of Materials (SBOM) containing details and supply chain relationships of various components used in the Solution. The SBOM will contain all open source and third-party components, libraries, and dependencies included with or used in connection with the Solution. This information must be provided to the State in a mutually agreed format on a quarterly basis and for new components at least 30 days prior to being added to the Solution.

Look and Feel Standards

All software items provided by the Contractor must adhere to the State of Michigan Application/Site standards which can be found at <https://www.michigan.gov/standards>.

Mobile Responsiveness

If the software will be used on a mobile device as define in Schedule A – Table 1, Business Specification Worksheet, the Software must utilize responsive design practices to ensure the application is accessible via a mobile device.

SOM IT Environment Access

Contractor must access State environments using one or more of the following methods:

- State provided VDI (Virtual Desktop Infrastructure) where compliant.
- State provided and managed workstation device.
- Contractor owned and managed workstation maintained to all State policies and standards.
- Contractor required interface with State Systems which must be maintained in compliance with State policies and standards as set forth in **Schedule E – Data Security Requirements**.
- Contractor will not access State environments or State Systems from locations outside the United States or the jurisdiction territories of the United States.

Bidder must provide a detailed description of the Solution to be provided under the resulting Contract including, but not limited to, a detailed description of the proposed Software (name, type, version, release number, licensing structure [Perpetual vs Subscription], etc.), its functionality including the information architecture and functional design of the system, such as functionality maps, architectural maps, training materials, visual aids including screen shots, actions performed by the system, and any behind the scenes processing, optional add-on modules and plugins. The level of detail provided will be such so that anyone is able to read it and understand how the software works. Additionally, clearly define the Bidder's services and the Solution's ability to be rapidly configured or scaled as the State's business or technical demands change.

BIDDER RESPONSE: Google Cloud is made up of hundreds of "services" running solely within Google's global private network. For this specific use case, the solutions being provided under this contract will run in US based data centers, just like we are under our existing IaaS contract. The services in general can be consumed via a couple of different ways. (1) as a pay per use model, where you would be invoiced monthly in arrears based on your actual usage, less any enterprise discounts applicable to the project; or (2) as a fixed-price model, known as a "Google Subscription Agreement for Public Sector". Under this model, Google takes on the risk, and allows the customer to leverage all of Google's product portfolio in aid of a pre-defined business use case, with no financial risk.

The Benefits of Partnering with Google Cloud are:

- **Global Infrastructure:** Google Cloud is built on the same infrastructure that powers Google's own services, providing a high level of flexibility for load balancing and reducing latency by having interconnects close to users. Google operates a global network of peering points of presence, allowing customer traffic to travel within the Google network until it's close to its destination. Google Cloud has been designed to operate globally and conducts maintenance and upgrades 24/7/365 without inconveniencing users.
- **Scalability and Flexibility:** Compute Engine offers scalable and flexible virtual machine computing capabilities, allowing users to utilize specific CPUs, GPUs, or Cloud TPUs to solve large-scale processing and analytic problems. Cloud Load Balancing provides

scaling, high availability, and traffic management for both internet-facing and private applications.

- **Data Analytics:** Google Cloud provides a variety of data analytics services, including BigQuery, a data warehouse for business agility and insights. It also offers tools for data migration, data lake modernization, stream analytics, and marketing analytics.
- **AI and ML:** Google Cloud offers a wide array of AI and machine learning services, such as the Vertex AI Platform for managing the AI and machine learning development lifecycle. Additionally, there are services for conversational AI, document processing, and vision AI.
- **Application Modernization:** Google Cloud provides tools and services for assessing, planning, implementing, and measuring software practices to modernize and simplify business application portfolios. These include tools for migrating from PaaS, mainframe, and virtual machines to Google's managed container services.
- **Security:** Google Cloud offers a variety of security features, including Identity and Access Management (IAM) for managing cloud resources and Access Context Manager for defining fine-grained access control. There are also tools for detecting, investigating, and responding to online threats.
- **Hybrid and Multicloud:** Google Cloud provides solutions for running applications across hybrid cloud environments. GKE Enterprise is designed for building and managing applications across hybrid cloud environments.
- **Cost Efficiency:** Google Cloud offers a pay-as-you-go pricing model with automatic savings based on monthly usage, and discounted rates for prepaid resources. There are also tools to monitor and control costs.
- **Developer Tools:** Google Cloud provides a range of developer tools, such as Artifact Registry for managing container images and packages, and Cloud Build for executing builds on Google Cloud infrastructure. The Google Cloud SDK provides the primary programmatic interfaces to Google Cloud Platform.
- **Serverless Computing:** Google Cloud offers serverless computing options such as Cloud Run for running stateless containers and Cloud Functions for creating event-based functions.

Overall, Google Cloud aims to provide a comprehensive platform that allows organizations to innovate, scale, and manage their infrastructure, data, and applications effectively.

Bidder must identify any unique software requirements to full fill the terms of the Contract.

BIDDER RESPONSE: Google Cloud is a suite of cloud computing services offered by Google. These services run on the same infrastructure that Google uses internally for its end-user products, such as Google Search, Gmail, and YouTube. It doesn't require specific software installations on user workstations beyond a compatible web browser.

Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations.

BIDDER RESPONSE: The State of Michigan can readily leverage Google Cloud without requiring any new state system access. Michigan already utilizes several Google Cloud services, demonstrating its compatibility with the state's existing systems.
Bidder must describe any custom software required to support internal SOM systems. BIDDER RESPONSE: There are no custom software requirements.
Bidder must identify any third-party components, including open source components included with or used in connection with the proposed Solution. BIDDER RESPONSE: There are no third-party components required. However, the use of open source components are often leveraged on top of Google Cloud services to deliver customized solutions to fit a specific use case an agency might have
Bidder must identify and describe the use of AI leveraging State Data to develop the solution BIDDER RESPONSE: Any AI tools used for state projects with state data are confined to those specific projects. All processed data remains within the state's secure Google Cloud environment. No data leaves the state's secure Google environment period, nor is it used by Google for model training or any other purpose.
Bidder must identify and describe any AI capable offerings to the State proposed under the response. BIDDER RESPONSE: There are several AI offerings Michigan can take advantage of. AI is deeply integrated into many Google Cloud services, providing intelligent features and automation. Google Cloud offers a comprehensive suite of AI tools and platforms for building, deploying, and managing AI models. The use of AI in Google Cloud improves performance, reduces costs, and simplifies development processes. AI is not just a separate service; it's a foundational element that permeates many of Google Cloud's offerings. The majority of which are already being used in production instances at the State of Michigan today. For example: 1. AI & Machine Learning Services (Dedicated AI Platform): ● Vertex AI: This is the flagship platform for building, deploying, and managing machine learning (ML) models. AI is integral to: ○ AutoML: Automatically trains high-quality custom ML models with minimal coding, handling tasks like data pre-processing, model selection, and hyperparameter tuning. ○ Pre-trained APIs: Offers access to powerful, pre-trained models for tasks like vision, language, and speech, allowing developers to quickly integrate AI into their applications without needing to build models from scratch. ○ Model Training & Management: Provides tools and infrastructure for building custom ML models, including distributed training, model versioning, and monitoring. ○ Model Deployment: Simplifies deploying ML models to various environments, including cloud, edge, and mobile devices. ○ AI Platform Notebooks: Offers managed Jupyter notebooks for experimentation and model development.

- AI Hub: Facilitates collaboration and sharing of pre-trained models, datasets, and AI solutions within organizations and the wider community.
- Cloud Vision API: Enables image analysis, including object detection, facial recognition, optical character recognition (OCR), and more.
- Cloud Natural Language API: Provides text analysis capabilities like sentiment analysis, entity recognition, and language detection.
- Cloud Speech-to-Text API: Transcribes audio into text with high accuracy.
- Cloud Text-to-Speech API: Converts text into natural-sounding speech.
- Cloud Translation API: Translates text between different languages.
- Dialogflow: Allows developers to build conversational interfaces (chatbots and virtual assistants) powered by natural language understanding.

2. Data & Analytics Services:

- BigQuery: Google Cloud's data warehouse is enhanced with AI for:
 - BigQuery ML: Enables running ML models directly within BigQuery using SQL, simplifying data analysis and prediction tasks.
 - Auto-tuning: Optimizes query performance based on historical data and workload patterns.
 - Anomaly Detection: Identifies unusual patterns and potential issues in datasets.
- Cloud Dataflow: AI helps with:
 - Auto-scaling: Automatically adjusts resources based on workload demands.
 - Data quality assessment: Can detect potential data quality issues.
- Dataproc:
 - Auto-scaling: Similar to Dataflow, automatically scales Hadoop and Spark clusters.
 - Resource optimization: Uses AI to optimize cluster resource utilization.
- Looker: AI capabilities within Looker help with:
 - Natural Language Queries: Allows users to ask questions in plain language to explore data.
 - Data insights & recommendations: Suggests relevant data visualizations and analyses.

3. Infrastructure & Networking Services:

- Compute Engine:
 - Auto-scaling: Predicts resource needs and automatically adjusts VM instances.
 - Live Migration: AI-powered predictions help with smooth and efficient VM migrations.
- Cloud Load Balancing:
 - Traffic management: Uses AI to distribute traffic based on real-time performance and health metrics.
 - Anomaly detection: Identifies and mitigates potential traffic spikes.
- Cloud DNS:
 - Intelligent routing: Can route DNS queries based on latency and availability.

○ Network Intelligence Center: Leverages AI for network monitoring, analysis, and troubleshooting. 4. Application Development & Deployment: ● Cloud Functions: ○ Auto-scaling: Automatically scales serverless functions based on demand. ● Cloud Run: ○ Auto-scaling: Automatically scales containers based on incoming requests. ○ Cloud Code: Provides IDE integrations that use AI for code completion, error detection, and code suggestions. 5. Security Services: ● Chronicle: Uses AI to detect and analyze security threats across organizations. ● Security Command Center: Provides AI-powered insights and recommendations to improve security posture. ● ReCAPTCHA: Uses AI to distinguish between humans and bots to prevent fraudulent activities.
Bidder must provide a list of all mobile devices that are compatible with the Solution. BIDDER RESPONSE: The solution provides support for all Android and IOS devices.
Bidder must provide list of features that can be performed via a mobile device. BIDDER RESPONSE: The Google Cloud console can be accessed via a web browser and mobile application, but the solution can also do the following things via mobile device: 1. Visual IVR 2. AI-driven Routing 3. Agent Desktop 4. Mobile and Web SDKs 5. Mobile App Integration 6. SMS Messaging 7. File transfer 8. Biometrics-based Authentication

11. RESERVED

12. RESERVED

13. RESERVED

14. TRAINING SERVICES

The Contractor must provide administration and end-user training for implementation, go-live support, and operational handoff.

The Bidder must provide available training options and include details such as: typical class size, materials to be provided, class duration, on-site or web based. The Bidder must provide a training plan for go-live support and transition to self-support, including options and details

such as the number of dedicated personnel, staff location, hours available and duration of go-live support.

BIDDER RESPONSE:

There are a number of different training and enablement opportunities we could offer the State of Michigan. Our proposal would be to copy the broader training and enablement program we are providing to the State of Michigan employees as part of the IaaS contract. In which, we have provided access to 500 employees to our official training platform, and access to certifications.

Additionally, if there are specific topics that want to be covered at a deeper level, or for a broader audience, we can do an in-person session, or virtual, if the state prefers. We've done a number of these for DTMB over the last few years and they have been extremely well received.

Bidder must provide details on, and examples of, clearly written instructions and documentation to enable State administrators and end-users to successfully operate the Solution without needing to bring in additional Bidder support.

BIDDER RESPONSE:

As per Michigan's purpose stated above "Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance", thus Google cannot provide relevant training documentation until each instance is described in detail. Once specific projects, task orders, statements of works, or statements of objectives are released then specific documents and instructions can be crafted to meet the specific need.

In general documentation can include:

- Documented/Printed Training Materials, and
- User Guides .

15. TRANSITION RESPONSIBILITIES

Bidder must provide a detailed transition-in and transition-out plan in Schedule G – Transition In and Out Plan, including any roles or responsibilities expected of the State. The plan must demonstrate the steps to migrate between Bidder's Solution and third-party Solutions.

BIDDER RESPONSE:

If at some point you choose to leave Google Cloud, we do not charge for Data Egress Fees. Google was the first cloud provider in the industry to eliminate these costs. Expensive "move away" fees create customer lock-in. This limits customer choice. Google believes customers should have the freedom to choose their cloud provider. We don't impose penalties for switching. This gives the State long-term flexibility when this contract ends.

16. DOCUMENTATION

Contractor must provide all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Software.

Contractor must develop and submit for State approval complete, accurate, and timely Solution documentation to support all users, and will update any discrepancies, or errors through the life of the contract.

The Contractor's user documentation must provide detailed information about all software features and functionality, enabling the State to resolve common questions and issues prior to initiating formal support requests.

Bidder must provide details on, and examples of, documentation to meet the requirements set forth in this section.

BIDDER RESPONSE:

Google Cloud team has led large scale and complex engagements for the implementation of our Cloud native products and technologies. Google professional services team provides expertise in implementing these solutions while leveraging a wealth of internal resources, including the documentation from a very broad range of past projects and tailor those to each Customer's unique needs. The expertise, knowledge and past experiences provide us with a unique perspective and a valuable starting point so that we can focus on Customer specific scenarios and solving for the unique challenges that come with each of our engagements.

Documentation provided is specific to each instance or project. In General, Google professional services team may work closely with State of MI stakeholders to conduct a detailed discovery and design activities and may create and deliver the following documents:

- Implementation Requirements document that outlines your unique scenarios, integrations/dependencies, business, technical and functional requirements
- Technical Design Document (TDD), which outlines the detailed technical architecture, design considerations, integration configurations, details on various other Google Cloud Platform ("Google Cloud") specific configurations and leading practices to operate the environment
- Release Strategy: Google will create a release strategy plan to implement the solution and to scale it up

The architecture from approved TDD will be implemented and our team may create various artifacts as part of the implementation activities, including:

- Test Plans that outline the test scenarios for various functionality and features of the delivered solution
- Production roll-out plan which will outline various aspects of production readiness and deployment planning
- User Guide
- The Customer may also have access to common failure scenarios, community based resources, access to Google Premium support and a Technical Account Manager

(TAM) who will be available to point the Customer to the right documentation, as needed and/or help create any support tickets for the product support. • Knowledge Transfer documentation which includes access to the business and technical documentation created during the project and all relevant links to user manuals. • Training documentation
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17. RESERVED

18. CONTRACTOR PERSONNEL

Contractor Contract Administrator. Contractor resource who is responsible to(a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

Contractor
Name: Veronica Romero Address: Phone: 650-448-8733 Email: romeroveronica@google.com

19. CONTRACTOR NAMED PERSONNEL

Contractor Security Officer. Contractor resource who is responsible to respond to State inquiries regarding the security of the Contractor's Solution. This person must have sufficient knowledge of the security of the Contractor Solution and the authority to act on behalf of Contractor in matters pertaining thereto. Contractor must inform the State of any change to this resource.

Contractor
Name: n/a Address: Phone: Email:

Contractor Program Manager. Contractor resource who is responsible to serve as the primary contact with regard to services who will have the authority to act on behalf of the Contractor in matters pertaining to receipt and processing of Support Requests and the Support Services.

Contractor
Name: n/a Address: Phone:

Email:

20. CONTRACTOR PERSONNEL REQUIREMENTS

Background Checks. Contractor must present certifications evidencing satisfactory ICHAT and drug test results for all staff identified for assignment to this project to the State of Michigan Program Manager designated for this Contract. In addition, proposed Contractor personnel will be required to complete a Michigan State Police background check and/or submit an RI-8 Fingerprint Card for the National Crime Information Center (NCIC), if required by project.

Annually, Contractor must perform an ICHAT for all staff identified for assignment to this project. Annual background check results will be reported to the State of Michigan Program Manager designated for this Contract.

Contractor, while employed with DTMB, will disclose to the State of Michigan Program Manager for this Contract, in writing at or before the beginning of the next scheduled duty shift:

- a. A felony or misdemeanor court conviction, whether by guilty plea, no contest plea or trial.
- b. A felony arraignment.
- c. Restriction, suspension, or loss of driving privileges for any reason, if the employee's current position requires possession of a valid driver's license.

Contractor will pay for all costs associated with ensuring its staff meet all requirements.

Contractor must notify the State Program Manager(s) prior to removing or replacing any Contractor Personnel with access to State Data under this Contract. Contractor must also provide written certification to the State Program Manager(s) that Contractor Personnel's access to State Data has been terminated. Contractor must notify the State in advance of allocating Contractor Personnel to multiple State Contracts or Projects. Contractor must provide detail of how a given Contractor Personnel meets the resource experience requirements in advance of replacing a Contractor Personnel. Contractor must provide monthly summary of Contractor Personnel allocation for all Contractor Personnel who have access to State Data.

Contractor must seek approval from the State prior to removing or replacing any Contractor Personnel with access to State Data.

Disclosure of Offshore Resources and Subcontractors.

Bidder must confirm that they will disclose all offshore resources and subcontractors and describe State Data Access of each. Please explain.

BIDDER RESPONSE: Google needs the flexibility and ability to choose its personnel and/ or subcontractors globally as it is unable to get individual customer consents before engaging offshore personnel or subcontractors.

Google chooses personnel to staff projects based on (1) available personnel resources, (2) regional considerations, (3) cost, and (4) expertise depending on the deal which may include onshore and/or offshore resources. For personnel who will be on premise or have direct access as part of a particular SOW to State of Michigan systems, Google will have its

employees iCHAT and, if necessary, submitting an RI-8 to the NCIC. Google cannot require drug tests of its employees. That being said, if the Customer has an objection to a particular staffing decision, Google will make an effort to address the Customer's concerns.

21. STATE RESOURCES

The State will provide the following resources as part of the implementation and ongoing support of the Solution.

State Contract Administrator. The State Contract Administrator is the individual appointed by the State to (a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

State Contract Administrator
Name: Address: Phone: Email:

Program Manager. The DTMB Program Manager (or designee) will approve all Deliverables and day to day activities.

DTMB Program Manager
Name: Address: Phone: Email:

22. MEETINGS

At start of the engagement, the Contractor Project Manager must facilitate a project kick off meeting with the support from the State's Project Manager and the identified State resources to review the approach to accomplishing the project, schedule tasks and identify related timing, and identify any risks or issues related to the planned approach. Contractor will facilitate monthly meetings (or more or less frequently if determined necessary by the parties) to ensure ongoing support success.

Bidder must describe how they will meet the meeting requirements set forth above and note any exceptions for successful implementation and ongoing support of the Solution.

If Bidder has an alternative planned approach for project meetings provide details, including purpose, roles and responsibilities, and proposed frequency.

BIDDER RESPONSE:

As per Michigan's purpose stated above "Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance", thus Google cannot provide details on meetings until each instance is described in detail. Once specific projects, task orders, statements of works, or statements of objectives are released then specific project meetings can be crafted to meet the specific need.

23. PROJECT CONTROL & REPORTS Bidder must describe specific reports the Contractor will provide after contract execution and during the lifecycle of the contract, including all required scheduled reporting and details around the how and when metrics are captured/validated.

BIDDER RESPONSE:

As per Michigan's purpose stated above "Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance", thus Google cannot provide details on controls and reports until each instance is described in detail. Once specific projects, task orders, statements of works, or statements of objectives are released then specific controls and reports can be crafted to meet the specific need.

24. RESERVED

25. RESERVED

26. ADDITIONAL INFORMATION

The State reserves the right to purchase any additional services or products from the Contractor during the duration of the Contract.

SCHEDULE A – ATTACHMENT 1 – BUSINESS SPECIFICATION WORKSHEET

Instructions for Completing the Business Specifications Worksheet

Contractors must respond to each business Specification on how they will meet the requirements in the document provided. Contractor must not alter the document.

The Business Specifications Worksheet contains columns and is defined as follows:

Column A: Business Specification number.

Column B: Business Specification description.

Column C: Bidder must indicate how it will comply with the Business Specification. Contractor must enter **"X"** to one of the following:

- **Current Capability** – This capability is available in the proposed Solution with no additional configuration or cost
- **Not Available** – This capability is not currently available.

Column D: The Bidder must also fully disclose how they will meet the requirements in their proposal response. This column is for Bidder to describe how they will deliver the business Specification. Description must be no more than 250 words for each Business Specification.

A	B	C		D
Business Specification Number	Business Specification	Current Capability	Not Available	Contractor to explain how they will deliver the Business Specification.
Base Level Criteria				
1.0	Unified self-service experience: All components of the offered services exist within the same portal and service catalog, in a fully integrated fashion — not merely as part of an “umbrella” portal that contains subportals for the offerings. The (Command Line Interface (CLI) and API (Application Programming Interface) will be consistent across these components. Any Integrated Development Environment (IDE) integration should be similarly consistent. They look and feel like a seamless whole. This provides a better user experience than nonintegrated offerings. It is permissible to have an additional, specialized portal experience for a capability, with greater depth of functionality than is exposed through the integrated offering’s portal.	X		Google Cloud provides a unified experience through the Google Cloud Console, a centralized portal for all Google Cloud services. The CLI (gcloud) and APIs are consistently designed. The Cloud SDK and its integrated development environment, Cloud Workstations, allow for seamless integration.
2.0	Unified identity and access management: The same identity is used to access all components of the offered	X		Google Cloud uses Google Cloud Identity and Access Management (IAM) which allows for a single, unified system for

	services, with unified authentication and authorization (including Role Based Access Control (RBAC)) for the portal, CLI and API. The use of a single IAM system prevents the need for either the Contractor or the State to federate identity across components of the offered services. This ensures that identity can be managed across the solution as a unified whole, thus simplifying user management as well as security.			access. Users can access the portal, CLI, and APIs with the same credentials. IAM allows role based access using principals and provides granular control over resource access without the need for cross federation For all of our existing Google Cloud projects at the state, we are integrated into the state's Active Directory, as well as MiLogin where applicable.
3.0	Single integrated low-latency network context: The cloud service components will exist within the same network, with low local-area network (LAN) latency. The components will be able to communicate within the boundaries of a secure, microsegmented, State-controlled, software-defined virtual network. This will allow the State to design unified network topologies and apply consistent network security across the components. However, services do not need to support private networks unless otherwise noted.	X		Google Cloud projects create virtual networks that are logically isolated and low latency within the same project. It allows secure, microsegmented networks through the use of Virtual Private Clouds (VPCs). This will allow the state to control and design network topologies as needed. Private networks are supported when specifically noted in the contract. Over the last few years, our team has spent a considerable amount of time working with Michigan's networking specialists to ensure successful deployments on Google Cloud's VPCs. Most notably deploying MiLogin as such on Google Cloud.
4.0	Unified security: The State will be able to apply security controls across all components of the Cloud Services. The security context will be unified so that there is visibility and control across the entire environment.	X		Google Cloud integrates security controls across all services. It offers visibility and control of the environment through Cloud Logging and Cloud Monitoring. Security posture management is used to ensure adherence to policy.
5.0	Enterprise-class support: The Contractor will offer a support option that includes 24/7 coverage, live support via phone and instant messaging, incident response times of 15 minutes or less, and a dedicated technical account manager. The State will be able to submit, review, and update billing and technical support tickets through the portal.	X		Today, the state of Michigan is leveraging Google Cloud's Enhanced Support option for all of its workloads, across the enterprise. As part of this, Michigan receives 24/7 global support with options including live chat, phone, and incident response times of 15 minutes or less for P1 incidents, with account managers available. Billing and support tickets are managed through the Google Cloud Console.

6.0	RBAC: The Contractor will have an Identity Access Management (IAM) service. The State will be able to have multiple users and API keys. The Contractor will have a self-service capability that allows the State to assign granular permissions to these identities.	X		Google Cloud IAM provides a self service interface that allows the state to manage users, API keys, and granular permissions. API keys can be created, rotated and managed. Granular permissions can be set using roles and policies, allowing fine-grained control over access to resources at the project, folder, and organization level. The State will be able to manage all of these features through the provided interfaces.
Resilience				
7.0	Data centers: The Contractor will must have three regions within the United States, separated by a minimum of 200 km (125 miles apart) and on different power grids.	X		Comply. Google Cloud strategically distributes its US data centers across multiple regions, each with isolated zones containing clusters of servers and network equipment. This ensures low latency, high availability, and minimizes the impact of regional disruptions. Regions are chosen based on access to high-capacity networks, renewable energy, and efficient cooling, with consideration for natural disaster risks. Redundant power systems, including diverse sources, on-site generators, and UPS, guarantee uninterrupted operation. This strategic placement and focus on redundancy enable Google Cloud to provide reliable cloud services throughout the US. *See 8.0 below for more details on regions and zones
8.0	Regional service consistency: Contractor will publish the following: • A classification of all regions into tiers, with a maximum of five tiers. • An explanation, for each tier, of the traits that can be expected in this tier, including any architectural differences between the tiers.	X		Comply. Google does not use the term “tiered”, nor do we deliver our service offerings in a tiered approach for various data centers. Google Cloud organizes its infrastructure into regions and zones for high availability, low latency, and fault tolerance. While not explicitly defined, regions can be thought of in tiers based on their maturity, features, and available capacity.

				Google does however publish the list of all of the regions, zones, and services offered in each location, as seen in the link below: https://cloud.google.com/about/locations
9.0	Data center proximity: The Contractor will must have at least two data centers that are logically and physically distinct. The network performance between these data centers will be sufficient to accomplish synchronous replication. Furthermore, the Contractor's virtual networks will be able to span these data centers so that the State can build highly available architectures.	X		Google Cloud provides multiple data centers across US regions that are both logically and physically distinct. These data centers are connected through Google's robust and low-latency networking infrastructure which can enable synchronous replication as required. Google Cloud's Virtual Private Cloud (VPC) allows the creation of virtual networks that can span across multiple availability zones and regions enabling the building of highly available architectures. The State of Michigan is currently running their Google Cloud production workloads in US-East-4 (Ashburn, Virginia), and leveraging US-CENTRAL-1 (Council Bluffs, Iowa) as a secondary, under the terms our two parties have negotiated as part of the direct "IaaS" Infrastructure as a Service contract
10.0	Continuously available critical services: The control plane (the software that controls the services and provides internal and external APIs), IAM service and KMS are critical services. They will be architected for resilience and continuous availability, and distributed across regions. No customer may have a critical service dependency on a single logical or physical data center, even if the service can fail over to another data center. The Contractor will be able to conduct maintenance activities without making any critical service temporarily unavailable to any customer. This includes continuous availability for all self-service interfaces.	X		Google Cloud's control plane, IAM and KMS services are built for high availability and are distributed across multiple regions. These services are designed to be resilient to failures and are continuously monitored. Maintenance activities are performed in a way that does not interrupt services. The self-service interfaces are also designed for continuous availability. Google Cloud publishes the uptime of the services.

11.0	Monitoring service: The Contractor will offer a serverless monitoring service that, at minimum, contains the following capabilities: • Collectors: There will be a collector capable of ingesting metrics, events or other monitoring data from other services. Ingestion is required in near real time. Granularity of at least one minute is required for metrics. Use of a Contractor-supplied agent on compute instances is permissible. The State will be able to script a collector for custom metrics. • Alarms: When a monitoring event occurs (for instance, a metric is outside its acceptable range, or a service event is received), the monitoring service will execute any alarms within one minute of the monitoring service receiving and confirming the triggering event. Alternatively, the monitoring service will execute any alarms within five minutes of the triggering event itself. The State will be able to configure multiple alarms (i.e., actions to take per triggering event). Action types will include generating an alert. • Export: The State will be able to make an API query for the latest metric of each type. All collected data will be exportable, both to another service within one minute of collection, as well as for download in bulk.	X		Google Cloud provides the serverless Cloud Monitoring service for collecting and ingesting metrics, events and log data from other services and custom metrics using agents on compute. Metrics are collected and updated in near real-time with at least one minute granularity. Alarms are configurable and can trigger multiple actions and generate alerts. Collected data is exportable through the API and can be downloaded in bulk.
12.0	Instance maintenance/failure notifications: The Contractor will be able to notify the State of potentially instance-impacting actions that the Contractor will perform, such as live migrations, instance restarts or memory-preserving maintenance. At a minimum, an	X		Google Cloud provides the ability to notify the state of instance-impacting actions, although the granularity varies depending on whether you use IaaS (Compute Engine), GKE (something of a hybrid) or pure PaaS solutions (App Engine, Cloud Run). It supports email notifications and offers configurable

	option for email notification will exist. The State will be able to opt in or out of this communication, including an option to only receive communications relevant to the State's environment (such as those related to data centers or instances in use).			options for opting in/out and filtering notifications for your environment using Cloud Logging and Cloud Monitoring.
Security				
13.0	Published audits: The Contractor will complete biannual Service Organization Control (SOC) 1, SOC 2 and SOC 3 audits, as well as maintain FedRAMP Authorization and ISO/IEC 27001 certification for all data centers that host State of Michigan data. The reports must be provided to the State, via Contractor's administrative portal and the State will not be required to execute a separate Non-Disclosure Agreement (NDA) if the parties agree to relevant confidentiality provisions in any Contract that may result from this Bid. At least one of these reports will document the measures the Contractor takes to protect State data from access by personnel. These measures will, at the State's request, include background checks, logging of administrative access to the Contractor's infrastructure and services by the Contractor's personnel.	X		Google Cloud publishes SOC 1, SOC 2 and SOC 3 audit reports, maintains FedRAMP Authorization and is certified for ISO/IEC 27001. These reports are available through Google Cloud administrative portal. The reports demonstrate measures used by Google Cloud to protect all customer data. These reports cover the entire Google Cloud environment. These reports are made available to all customers using a shared responsibility model with shared security responsibilities.
14.0	Data sanitization: The Contractor will have documented evidence that it adheres to the National Institute of Standards and Technology Special Publication (NIST SP) 800-88 using the purge processes for data sanitization and disposal. These processes apply when the Contractor retires or otherwise disposes of physical storage devices (such as disks, tapes, SSD's. and arrays). The Contractor's policy will apply not just to all storage services, but also to all services that store State Data (such as database services). In addition,	X		Google Cloud adheres to NIST SP 800-88 guidelines for data sanitization and disposal when retiring or disposing of physical storage media. This includes a thorough process to purge and destroy storage devices and data to prevent any possibility of data recovery. Google's documentation for data sanitization is publicly available. This applies to all services that store customer data. All Google services that store state data provide cryptographic data erasure and key escrow. https://cloud.google.com/docs/security/deletion

	Contractor will have cryptographic erase with key escrow.			
15.0	Initial administrative access credentials: The default administrative access credentials for every newly deployed compute instance will be automatically generated and able to be reset or chosen at the point of provisioning by the State. Automatically generated credentials will be retrievable in a secure fashion appropriate to the self-service provisioning mechanism. Email is unacceptable.	X		Google Cloud provides the option for automatically generated default administrative access credentials for newly deployed compute instances. These credentials can be retrieved securely through the Google Cloud console or API and can be reset at any point in time. The method to retrieve these generated credentials is not email.
16.0	Trusted boot: The Contractor will ensure firmware security on its servers. The Contractor will use a hardware-based root of trust (for example, a security co-processor or trusted platform module [TPM]), secure boot (per the Unified Extensible Firmware Interface [UEFI] specification, or another means of preventing firmware updates from the main system processors), and measured boot. To accomplish the measured boot, the Contractor will securely store checksums for each system — thus enabling attestation to whether the system has changed since the last boot — and verify checksums prior to each boot.	X		Google Cloud servers use hardware based root of trust, secure boot and measured boot to ensure firmware security. This prevents unauthorized firmware updates. This creates an immutable firmware for each Google Cloud server. Google Cloud continually verifies the firmware checksum to detect any possible alterations.
17.0	Identity federation and SSO: The Contractor will support federated identity between The State's directory and its native IAM. The Contractor will allow single sign-on (SSO) login access to the portal, CLI and API through Security Assertion Markup Language (SAML) assertions or via a third-party SSO service that supports OpenID Connect.	X		Google Cloud supports federated identity through SAML and OpenID Connect allowing users to access the portal, CLI and API via single sign-on using State of Michigan's directory. Google Cloud allows both SAML and OpenID connect integrations. This configuration is self-managed through the IAM interface.
18.0	MFA administrative access control: There will be the option to secure both portal and API access via	X		Google Cloud allows multifactor authentication for portal and API access using it's native IAM service. Google Cloud allows the use

	multifactor authentication (MFA), via the Contractor's native IAM. This may use either hardware- or software-based secure tokens, and HOTP or TOTP (hashed message authentication code [HMAC]-based or time-based one-time passwords). At least one Multi-Factor Authentication method available and configurable as required will support compliance with all NIST 800-63 AAL3 requirements. To secure API access via MFA, it is permissible for the user to use an MFA-enabled authentication method to retrieve a secure token that can then be used for API calls.			of software and hardware tokens. Google Cloud meets the NIST 800-63 AAL3 requirements for MFA. Google Cloud allows an MFA token or a device that is MFA enabled to be used to retrieve temporary credentials for API access.
19.0	Granular RBAC policies: All services will support RBAC via the Contractor's IAM service. Policies will be definable at the following levels of granularity: Platform-level: A role can have a permission-set that applies broadly across the whole platform. For instance, users might be either full users ("read/write" everything) or read-only users (typically used for management and billing admins). Service-level: A role can have a permission set that applies broadly across one service within the platform. For instance, the compute, storage and database services might each offer administrator, developer and billing-admin permission sets. API-level: A role can be given access to a specific API call (or equivalently narrow portal functionality). This may be at an even more granular level — for instance, particular restrictions on use of that API call, such as the ability to call it only with certain parameters.	X		Google Cloud IAM provides granular RBAC at the platform, service, and API levels. Roles can be assigned with varying permission sets to control access to the platform, services, and specific API calls.

20.0	RBAC policies for resource groups: The State will be able to create an RBAC policy that applies to a resource group. Groups consist of multiple elements that have been grouped together and collectively given an associated keyword, like “mobile.” Groups are typically used to associate elements with a particular business project (such as grouping all infrastructure associated with a particular application). A partition may be used as a resource group if an account can have multiple partitions.	X		Google Cloud offers a powerful mechanism for managing access control through Identity and Access Management (IAM) policies. A key feature is the ability to apply these policies not just to individual resources, but also to resource groups, significantly simplifying administration and ensuring consistency. These resource groups can be defined using folders and projects, allowing for hierarchical control over access. For example, you might create a "Marketing Projects" resource group and grant specific team members read-only access to all the projects within that group. Similarly, a folder containing multiple development environments could be assigned a single policy controlling access to all of them. By leveraging resource groups for IAM policies, you improve operational efficiency, reduce administrative overhead, and enhance security posture across your Google Cloud environment.
21.0	DDoS mitigation: The Contractor will automatically detect and mitigate volumetric distributed denial of service (DDoS) attacks at OSI Model Layer 4 and below, for the State. The mitigation service will be free. The service may operate without the State’s control, visibility or actionable reporting, but reporting of incidents to the State is required.	X		Google Cloud uses a global network with DDoS mitigation at OSI Layer 3 & 4 that will automatically detect and mitigate attacks without the need for state intervention. Reporting of incidents will be provided to the state.
Operations and Governance				
22.0	Basic cost management: The Contractor will offer, at no cost, basic cloud service expense management. This will include the following capabilities, with billing data visibly updated at least every 24 hours: Tagged bills: The State will be able to access billing data for the previous and current month at any	X		Google Cloud provides basic cloud service expense management at no cost including billing data every 24 hours with exports in a CSV format with tags. Per-partition monthly budgets are available with alerts and projections of cost overruns.

	time. Exports of billing data will be in a programmatically readable format such as CSV, and include the State's resource groups or tags for each line item. Budgets: The State will be able to set a per-partition monthly budget, and generate an alert when the budget is projected to be exceeded as well as when the budget is actually exceeded.			
23.0	Cost forecasting: The State will be able to forecast what they are likely to spend. The Contractor will offer a web-based calculator or downloadable Excel-compatible spreadsheet that predicts the monthly cost of a solution based on a State-defined model. This model will be able to include, at minimum, core infrastructure assets, KMS and monitoring. Finally, the Contractor will provide a pricing API, so the State can programmatically obtain current costs for all services.	X		Google Cloud provides tools for cost modeling: a web-based cost calculator and a pricing API. These allow users, like a state entity, to estimate expenses. The web calculator offers a user-friendly interface for specifying resource needs – such as infrastructure components (virtual machines, storage), Key Management Service (KMS), and monitoring services. The calculator then provides an estimated cost breakdown based on those inputs. Alternatively, the pricing API allows programmatic access to cost information, enabling more advanced, automated cost modeling scenarios, like integrating estimates into existing financial systems. Essentially, the state can use these tools to understand the financial implications of different resource configurations, allowing them to optimize costs. However, even though the state has access to these tools to provide themselves high level estimations of what list cost might be for a given project, we ask that you always reach out to the Google team responsible for the state of Michigan to provide applicable discounts and business incentives for the opportunity.
Vendor Management and Audit				
24.0	Service health dashboard: The Contractor will offer a public dashboard that displays the health of each of its services, on a regional basis, updated at least every	X		Google Cloud provides a public dashboard displaying the health of its services on a regional basis updated at least every five minutes. It will also be available to query through an API. During

	five minutes. Current health will also be programmatically quarriable. During an incident, the dashboard will also display information about the incident. The Contractor will make a root cause analysis (RCA) available for all major outages.			an incident, the dashboard displays information about the incident as well as public RCAs for significant incidents. Customers may also leverage Cloud Logging and Cloud Monitoring for granular service health information.
25.0	Event management: The Contractor will offer at least one support plan that includes event management, for use with important events such as a planned application release or high-volume usage period (e.g., the holiday shopping period). This will include pre-event planning, guaranteed fast support response during the event, and post-event review. In addition, the Contractor will offer a support plan in which the State and Contractor agree to and practice a communication and response plan for crisis scenarios. This plan will include time-critical actions to be performed by the Contractor in the case of State unavailability.	X		The State currently has Google's enhanced support standardized across all of its projects that run on Google Cloud. As part of this service offering, there are contractually defined SLAs and timelines we are contractually obligated to communicate under. From an operational perspective, the Google and SOM CTO group has spent an exhausting amount of time working through an end to end model that ensures not only communication and support, but a broader partnership that includes training and enablement for DTMB technical and business users. Additionally, under Enhanced Support, we have options that include proactive and reactive support engagement. For planned events, we offer pre-event planning, guaranteed response, and post-event review. Google Cloud can collaborate with the State to establish a communication and response plan for crisis scenarios to ensure fast response in the event of a service outage based on the severity and type of event. As it relates to scalability, Google owns its own global private networks, and given the broader scope of what we do with services like search and gmail globally, we have the ability to handle massive scale.
26.0	Support ticket API: The Contractor will have a State-facing API for the case management system that is used for billing and technical support requests. At minimum, there will be APIs to open a ticket, update a ticket, close a ticket, view (obtain fields of) a ticket, and list all open tickets.	X		Google Cloud offers the Case Management API (https://cloud.google.com/support/docs/case-management-api). This API allows the State to interact with Google's support system programmatically. It allows for creating, updating, closing, querying, and listing tickets. This API will allow for integration of the case management system into the state's own internal systems, providing the ability to meet all requirements.

27.0	Release notes: The State will be able to track new services and features. The Contractor will publicly publish online release notes that list all new and updated capabilities. Each item will be dated and tagged with the affected services. The State will be able to easily see a chronological list of changes to each service. Release notes will be available for a minimum of three years.	X		Google Cloud publishes comprehensive release notes, with details on new features, updated capabilities, and bug fixes to services in one location. These notes are categorized, dated, and tagged with affected services. This data will be retained for the minimum timeframe required.
28.0	Decommissioning Account: The Contractor will allow the State to close an account in its entirety. Doing so will immediately stop all cost-accruing services and stop billing, with no need for the State to stop anything below the account level. The State will have the ability to require interaction with support or account management to initiate or confirm account closure.	X		Google Cloud allows the State to close an entire billing account via the Cloud Console or the Billing API (https://cloud.google.com/billing/docs/how-to/close-account). Closing an account stops all cost accruals immediately. The state has the option to have support confirmation as required. There is no need to remove/stop resources below the billing account level..
29.0	Decommissioning Order: The Contractor will allow the State to close an order in part or in its entirety. Doing so will immediately stop all cost-accruing services and stop billing.	X		Google Cloud allows the State to stop individual service orders at the Project level via the Cloud Console or the Resource Management API (https://cloud.google.com/resource-manager/docs/creating-managing-projects). Doing so will immediately stop all billing for those services. The State will have complete control to stop cost accrual by project. Projects can be treated as specific orders.
30.0	Service change notification: The Contractor will implement a minimum of one year of notice for any "breaking changes." This will include service discontinuations, changes that break backward compatibility or remove features in active use, and API changes that require the State to update its code. The terms of service will guarantee this notification.	X		Google Cloud will implement a minimum of one year notice for any changes considered "breaking changes." These changes may include service discontinuations, changes that cause backward compatibility issues, or features removed from active usage. If API changes are being made, this notification will allow the State to update their code. The Google Cloud terms of service will ensure this notification is provided.

31.0	Published compliance assistance: The Contractor will offer published guidance that supports the State in meeting common compliance needs. The Contractor will publicly publish a consolidated list of all compliance programs that its services can support, along with detailed supporting documentation for obtaining compliance in each program.	X		Google Cloud publicly provides documentation and guidance to support State compliance requirements. This includes a list of compliance programs its services support, along with documentation on how to meet requirements for each program. A consolidated list is available of all compliance programs. Detailed supporting documentation is also made public. As part of the existing “IaaS” contract, and workloads running on Google today, we are already working with the State of Michigan’s security and networking teams to ensure compliance and state standards are being met
Technical Requirements				
1.0	All State Data for IT Environment Services including backups and Disaster Recovery will reside within the United States of America.	X		The Government would need to purchase services with Assured Workloads, and would need to select the correct Zones and Regions to meet this requirement.
2.0	1. If the State requires FTI (Federal Tax Information) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign form Pub 1075, Exhibit 7 with the State. 2. If the State requires STI (State Tax Information) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign Michigan form “SAFEGUARD REQUIREMENTS OF CONFIDENTIAL TAX DATA” with the State. See “SCHEDULE E, Attachment 1 – Tax Regulation”	X		Google has successfully negotiated addenda covering data that is FTI, IRS Pub 1075, and State Tax information with numerous states. Google can meet the statutory requirements here and will embody that commitment in a mutually agreeable form upon award. Google proposes that the Parties take advantage of the existing contract and schedules therein, which for this Schedule E - Attachment 1 would mean that Schedule A, Attachment 1 Google Cloud Platform - Internal Revenue Service Publication 1075 Addendum of Contract No. 230000000200 shall supersede and replace this Schedule E - Attachment 1 in its entirety. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations.

3.0	If the State requires CJIS (Criminal Justice Information System) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign a Security Addendum with Michigan State Police (MSP). See "SCHEDULE E, Attachment 2 - FEDERAL BUREAU OF INVESTIGATION CRIMINAL JUSTICE INFORMATION SERVICES SECURITY ADDENDUM"			Google Cloud offers security controls to protect and store CJI through Assured Workloads for Google Cloud. The State of Michigan can achieve compliance with the CJIS Security Policy by implementing these controls for the in-scope Google Cloud services identified at Google Cloud Platform. For additional information about Google Criminal Justice Information Services Compliance, please visit https://cloud.google.com/security/compliance/cjis
4.0	If the State requires Centers for Medicare & Medicaid Services (CMS) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign a Security Agreement with the State per CMS MARS-E requirements.		X	Google has implemented and will maintain technical, organizational, and physical safeguards to protect Customer Data, as further described in the Cloud Data Processing Addendum at https://cloud.google.com/terms/data-processing-addendum?e=48754805&hl=en For further information about Google security practices, please visit https://cloud.google.com/docs/security/overview/whitepaper?e=48754805&hl=en Google is unlikely to commit to any additional requirements or standards as these will have operational impacts across billions of users. For further discussion or negotiation please reach out to your Google point of contact.
5.0	If the State desires to host data within the CSP which is subject to other similar security standards, the Cloud Service Provider will sign a security agreement according to such standards.		X	Google has implemented and will maintain technical, organizational, and physical safeguards to protect Customer Data, as further described in the Cloud Data Processing Addendum at

			https://cloud.google.com/terms/data-processing-addendum?e=48754805&hl=en For further information about Google security practices, please visit https://cloud.google.com/docs/security/overview/whitepaper?e=48754805&hl=en Google is unlikely to commit to any additional security agreements or standards as these will have operational impacts across billions of users. For further discussion or negotiation please reach out to your Google point of contact.				
6.0	Contractor will provide a link to rate calculator that will show all services to the State and their current rate and will include any fixed or periodic subscription costs, and for consumption-based costs, the billing unit, the cost per billing unit, any information on minimum orderable quantities, minimum billable time segments, or tiered pricing, along with the following information for each service: <table><tr><th>Service type</th><th>Information required</th></tr><tr><td>Compute</td><td>Cloud region; processor family and type; processor speed; processor and core counts; total or per core memory quantity in GB; supported and excluded operating system families and versions</td></tr></table>	Service type	Information required	Compute	Cloud region; processor family and type; processor speed; processor and core counts; total or per core memory quantity in GB; supported and excluded operating system families and versions		Customer can estimate the price for Google services by using the public calculator available at https://cloud.google.com/products/calculator?e=13802955&hl=en Google will use Carahsoft Technology Corporation (Google’s distributor) as the billing agent/partner for the Google services bid under this proposal. Service Level information is located in Schedule D. Google Cloud organizes its infrastructure into regions and zones for high availability, low latency, and fault tolerance. The State chooses the regions and zones. As of January 14, 2025 All Google Cloud regions covered by FedRAMP High are also covered by FedRAMP Moderate. Oregon (us-west1) - FedRAMP High
Service type	Information required						
Compute	Cloud region; processor family and type; processor speed; processor and core counts; total or per core memory quantity in GB; supported and excluded operating system families and versions						

	Storage	Cloud region; storage type; connection type; read and write speeds; high availability/redundancy service level; data backup and recovery service level, ingress, egress, and bulk data migration support			Los Angeles (us-west2) - FedRAMP High Salt Lake City (us-west3) - FedRAMP High Las Vegas (us-west4) - FedRAMP High Iowa (us-central1) - FedRAMP High Oklahoma (us-central2) - FedRAMP High South Carolina (us-east1) - FedRAMP High Northern Virginia (us-east4) - FedRAMP High Columbus (us-east5) - FedRAMP High Dallas (us-south1) - FedRAMP High Montreal (northamerica-northeast1) - FedRAMP Moderate São Paulo (southamerica-east1) - FedRAMP Moderate Belgium (europe-west1) - FedRAMP Moderate London (europe-west2) - FedRAMP Moderate Frankfurt (europe-west3) - FedRAMP Moderate Netherlands (europe-west4) - FedRAMP Moderate Finland (europe-north1) - FedRAMP Moderate Mumbai (asia-south1) - FedRAMP Moderate Singapore (asia-southeast1) - FedRAMP Moderate Taiwan (asia-east1) - FedRAMP Moderate Tokyo (asia-northeast1) - FedRAMP Moderate Sydney (australia-southeast1) - FedRAMP Moderate Zurich (europe-west6) - FedRAMP Moderate Warsaw (europe-central2) - FedRAMP Moderate Jakarta (asia-southeast2) - FedRAMP Moderate
	Network	Sustained and, if applicable, burst circuit speeds for both upload and download; physical and virtual dedicated connections. included and excluded network features such as routing, vLANS, firewalls, inspection and associated costs			
	Relational database services	Cloud region; database family and type; processor or core count; memory quantity in GB; high availability/redundancy service level; data backup and recovery service level			
	Containers	Cloud region; clusters, Instance Series; supported an excluded operating system families and version; managed OS Disks in GB;			
	Data warehouse services	Cloud region; database family and type; processor or core count; memory quantity in GB; high availability/redundancy service level; data backup and recovery service level			
	Functions as a service	Cloud region; memory quantity in GB; connection speed; high availability/redundancy service level; included and excluded web service features such as libraries and			

	frameworks, WAF, SSL, traffic inspection, and associated costs			Osaka (asia-northeast2) - FedRAMP Moderate Seoul (asia-northeast3) - FedRAMP Moderate
	<i>Please note: It is the responsibility of the Contractor to continually provide accurate, up-to-date, and understandable service and rate information. If the State cannot understand the costs for offered Cloud Services, accurately and fairly compare them to those of other Contractors, and avoid unanticipated limitations or unexpected costs, we are under no obligation to accept them or select them when deploying solutions.</i> Rate sheets will be provided in a format that facilitates easy ingestion into the State's rate engine.			Due to the length of the response to answer the Information Required in the table, we have attached our detailed response in Appendix 1 Details Answers for Schedule A - Technical Req 6.0
7.0	Contractor provides a reporting console which will allow the State to view current and projected usage/ consumption.	X		Google Cloud provides the "Cloud Billing" console, which offers detailed reports and visualizations of current usage and costs. It also provides tools for cost analysis and forecasting. Billing data can also be exported to BigQuery for customized reporting and analysis. Budgets can be set and alerts configured to track spending against projected usage
8.0	Direct Cloud Service Providers contracted services will be listed as 'FedRAMP Authorized' in the General Services Administration (GSA) FedRAMP Marketplace at Impact Level 'Low', 'Moderate', or 'High' and a Service Model that includes 'IaaS' and 'PaaS'. The authorization will be continuously maintained by the Contractor throughout participation in the program. Changes to FedRAMP status will be communicated to	X		Google Cloud has many services with FedRAMP authorization at various impact levels. Google Cloud maintains continuous authorization and actively monitors compliance requirements. With Assured Workloads, customers are notified within the console, and they have to accept the changes to the new services. The official FedRAMP listing can be found on the GSA FedRAMP marketplace. https://www.fedramp.gov/marketplace/

	DTMB by Contractors within seven days, and will result in a reevaluation by the State of their qualifying status. Until their compliance status is validated by the State, no new services will be initiated with the Contractor.			
9.0	The Contractor will furnish, in a format that facilitates easy ingestion into the Common Controls Framework (CCF), the set of controls from the catalog in NIST SP 800-53 r4 and r5 within one year of release, Security and Privacy Controls for Federal Information Systems and Organizations, that have been attested by a third-party assessment organization (3PAO) as either provided or inheritable from the provided Cloud Services. Changes to this control set will be made available via self-service portal so that the CCF can be updated to reflect the change and the State can communicate them to its customers at will. Compliance controls required outside the FedRAMP framework (such as from Pub 1075, MARS-E, etc) will also be validated by a qualified independent third-party audit organization and provide in a similar format to 800-53 controls.	X		Under NDA, which Google and the State of Michigan have, Google is able to provide a copy upon request of any of the security and compliance reports required for review or record keeping. For the last 5 years, we have been working with State of Michigan enterprise architects and security team members to provide this information and have a well defined process in place to provide these reports when needed
10.0	Unified billing and support: The Cloud Services capabilities are part of a single commercial offering construct, under a single brand. The State will be able to buy all of the procured cloud service components on	X		Google Cloud service capabilities are part of a single commercial offering under the Google Cloud brand. Google Cloud provides multiple support plans and unified billing options. All usage is compiled on one bill with a central management tool. SaaS offerings are billed separately with third party vendors.

	a single contract, with the exception of specific Software as a Service, offerings			
silience				
11.0	Metrics for core services: The Contractor's core services will have the following built-in monitoring metrics: • Compute metrics: Health (up/down) status, CPU and memory utilization, disk and network I/O. • Block storage service metrics: Bytes read and written, and I/O operations. • Load balancer (LB) service metrics: Request count, request latency, and a measure of successful and failed back-end requests. The latter should preferably offer a count of response codes received from the back-end by category (2xx, 3xx, 4xx, 5xx). • Relational DBaaS metrics: Database connections and latency. If the database service is not seamlessly scalable, the monitoring tool will also report I/O operations, CPU utilization and memory utilization.	X		Google Cloud's Operations Suite provides comprehensive built-in monitoring for all core services. Compute Engine offers metrics on VM health, CPU, memory, disk I/O, and network traffic. Persistent Disk provides metrics on bytes read/written and I/O operations. Cloud Load Balancing provides metrics on request count, latency, and backend status with detailed error codes. Cloud SQL provides database connection metrics, latency, and I/O utilization. Custom Metrics and dashboards are available
12.0	Compute instance anti-affinity: Anti-affinity rules help the State achieve greater application availability by reducing the possibility that a single physical failure event will impact multiple instances. The Contractor's multitenant VM compute instance offering will support: • Automatic anti-affinity: When the State provisions a new VM, the default placement algorithm will automatically attempt to place the VM on a physical host that isn't used by any of the State's other VMs.	X		Google Compute Engine supports anti-affinity rules to ensure high availability. Automatic anti-affinity is the default behavior placing new VMs on different physical hosts. Explicit host anti-affinity can be achieved by specifying "hostAffinity" policies on VM configurations. While direct power zone affinity is not directly configurable, similar results can be achieved through placement groups in different zones to reduce the chance of shared dependencies.

	With this approach, the State's VMs are distributed among as many different physical hosts as possible (but are not guaranteed to be on different physical hosts). • Explicit host anti-affinity: The State will be able to explicitly set anti-affinity rules for individual VMs that need to be placed on different physical hosts from one another. The physical hosts will be within the same logical data center. • Explicit power anti-affinity: The State will be able to explicitly specify that compute instance "A" be in a different section of the same logical data center than instance "B," such that the two instances do not share fully identical power dependencies. The Contractor may offer this for groups of instances rather than individual instances.			
13.0	VM-preserving host maintenance: The Contractor will be able to perform maintenance on a compute host with minimal disruption to running VMs on that host. Such maintenance includes performing a kernel upgrade or a hypervisor upgrade. Minimizing VM disruption may be accomplished by a variety of means, such as live migration to another host or memory-preserving maintenance.	X		Google Compute Engine uses live migration for planned maintenance events, which allows VMs to seamlessly migrate to another host without interruption. This minimizes disruption, allowing for host kernel and hypervisor upgrades while maintaining continuous application availability.
14.0	VM-preserving data center maintenance: If the Contractor needs to perform maintenance that impacts the physical compute host, it will do so without disruptively impacting running VMs on that host. Such maintenance includes replacing and upgrading hardware, and performing power maintenance that eliminates power to the host. Live migration would be	X		Google Cloud minimizes service disruptions during planned maintenance like hardware upgrades and power updates by using live migration. This technology seamlessly moves running virtual machines (VMs) between physical servers without downtime, ensuring applications remain operational. Live migration is a standard practice within Google Cloud, requiring no user intervention or special controls. It's automatically employed during planned maintenance, allowing

	the standard way to avoid VM disruption. The State does not need to have any control over this capability.			Google to maintain infrastructure and update systems without impacting VM availability. This approach ensures high service reliability and allows users to focus on their applications without worrying about underlying maintenance activities.
15.0	VM host failure recovery: The VM service will be architected to automatically restart VMs on a healthy host if the original physical host fails. This capability is often referred to as “VM restart.” The service may automatically attempt to reboot the original physical host and restart VMs on it. However, if that fails, the service will be able to automatically restart the VMs on a healthy host. The failure detection will occur within one minute, and if the host cannot be immediately recovered, the process of automatically restarting the VM on another host will begin within five minutes.	X		Google Cloud keeps your virtual machines (VMs) running even if the underlying hardware fails. It does this with automatic restart. If a server hosting your VM crashes, Google's systems detect it quickly (within one minute). Initially, Google tries to reboot your VM on the same server. If this fails within five minutes, Google moves your VM to a healthy server and restarts it there. This process of detecting failure and either restarting locally or migrating ensures that your application experiences minimal disruption and downtime due to hardware issues. This built-in resilience simplifies infrastructure management and keeps your applications available.
Security				
16.0	Key management service: The Contractor will offer a KMS that allows the State to create, control, and audit cryptographic key usage. It will facilitate life cycle management of keys (key expiration and rotation). The service will enable the State to comply with the National Institute of Standards and Technology (NIST) Federal Information Processing Standard (FIPS) 140-2 and applicable NIST key management publications. The cryptographic component will be FIPS 140-2 validated (independently audited), at a minimum of Level 1. The KMS will support BYOK and may support HYOK; the State will be able to import their own master keys into the KMS, including keys they have generated on-premises.	X		Google Cloud Key Management Service (KMS) allows the State to create, control, and manage cryptographic keys used for protecting data. It supports FIPS 140-2 validated modules for cryptographic operations. Key lifecycle management, including expiration and rotation, is configurable. KMS supports Bring Your Own Key (BYOK) and also supports Hold Your Own Key (HYOK) capabilities. This allows the import of on-premises keys for secure use within Google Cloud.

17.0	Certificate management service: The Contractor will offer a service that manages obtaining, renewing and deploying FIPS compliant SSL/TLS certificates. This will support certificates from a certificate authority (CA) and not just self-signed certificates. This will be integrated with all load-balancing services that terminate SSL/TLS if required when configured by the State, as well as the CDN (if it supports SSL/TLS).	X		Google Cloud Certificate Manager enables the State to manage certificates for TLS/SSL through its load balancers and CDN (Cloud CDN) services. It supports both Google-managed certificates from the CA as well as importing certificates issued from a user owned CA. It provides automatic certificate renewal for Google-managed certificates. All load balancers and Cloud CDN can be configured to use the deployed certificates. Certificates comply with FIPS 140-2 standards
18.0	Stateful network firewall: The State will be able to filter ingress and egress traffic — including both north-south and east-west traffic — via firewall rules. The State will be able to create multiple rules associated with each subnet and vNIC. The State will also be able to group compute instances and associate multiple rules with the group rules Traffic filtering tools will be stateful. All rule updates will apply immediately, without reprovisioning or restarting any services. It is permissible to provide these capabilities as part of different services.	X		Google Cloud Virtual Private Cloud (VPC) firewalls are stateful and allow granular filtering of ingress/egress traffic based on network tags. The State can create and apply multiple firewall rules to specific subnets and network interfaces (vNICs). Instance grouping is supported using network tags for simplified rule application. Firewall rule changes are applied immediately without any service restart.
19.0	Network forensics: The Contractor will enable the State to log metadata about network traffic that is permitted and denied by firewall rules and other network policies. The data will be available at an interval of 10 minutes or less, and the State will be able to export the data for external analysis. The State will be able to generate alerts based on logged events.	X		Google Cloud VPC Flow Logs capture metadata about network traffic, including packets permitted and denied by firewall rules. Logs are sent to Cloud Logging. Flow logs are generated at least every five minutes or less. Data can be exported to other locations or for integration with third party solutions. Cloud Logging also supports alert creation for specific events
Operations and Governance				
20.0	Completeness of self-service interfaces: The Contractor will support all capabilities in the API, CLI	X		Google Cloud provides consistent support for its services across the Cloud Console (portal), gcloud CLI, and REST APIs. New API

	and portal, to the extent that each capability makes sense in all three modalities. The Contractor will publicly publish a policy that indicates that new capabilities that are initially released only as APIs will be represented in the portal and CLI within 180 days of GA release. In addition, the Contractor will support SDKs that wrap its APIs in at least three different programming languages, with documentation and sample code. The Contractor will offer free plug-ins/extensions for integrated development environments (IDEs); these will, at minimum, support deploying applications into VMs. The CLI will be available for Linux, macOS, and Windows.			capabilities are usually represented in the portal and gcloud CLI within 180 days of GA. Google Cloud provides client SDKs for popular programming languages including Python, Java, and Go, as well as documentation and samples. IDE plugins for various editors are also available to streamline development. The gcloud CLI is supported on Linux, macOS, and Windows.
21.0	Metadata tagging of resources: The State will be able to set metadata tags on all core infrastructure assets. A tag consists of a State-defined key and a value. The State will be able to attach at least seven tags per asset, with no limit on the total number of tags per partition. All tags will be searchable and filterable within all service interfaces. Tags will be visible and exportable within billing interfaces.	X		Google Cloud supports applying metadata tags to most infrastructure resources, which includes compute instances, disks, and networks. Tags consist of a key and a value, and multiple tags can be added to a resource. There is no limit to the total number of tags. Tags are searchable and filterable within the Cloud Console, gcloud CLI, and API. Tags are included in billing data exports to allow cost analysis by tag.
22.0	Centralized policy management: The Contractor will offer a centralized capability for managing multiple partitions. The State will be able to organize partitions into a multilevel branching hierarchy at least three levels deep below the root of the master account, apply policies at the upper levels, and have those policies cascade down automatically. The State will be able to apply policies that restrict a partition's access to particular services. This will include the ability to enforce configuration rules for cloud resources. The Contractor will allow policies and standards to be set and enforced on a per-partition basis, including per-partitions exceptions to policies inherited from	X		Google Cloud Organization and Resource Manager provide a hierarchical structure allowing policies to be applied at the organization, folder, and project levels. Policies automatically cascade down the hierarchy. Resource-based policies limit resource usage, access, and configuration. Organization policies can be used to enforce configuration controls, and policy exceptions can be made on a per-partition basis. Google Cloud's Identity and Access Management (IAM) controls and policies can be used for more granular access to specific resources. You can nest folders up to 10 levels deep. This means you can have a maximum of 10 folders nested within each other

	higher up in the hierarchy. This may be implemented as a centralized service that serves as an umbrella over multiple services that handle different types of policies, or incorporated across the Contractor's IAM capabilities.			
23.0	Distributed logging service: The Contractor will offer a highly scalable logging service that aggregates the State's application and system logs into a consistently time-ordered stream. The State will be able to centrally view, search, filter and archive the logs, as well as generate alerts based on pattern-matching against log entries. Log ingestion may use mechanisms like Fluentd, a protocol such as syslog, or a compute instance agent. The State will be able to stream log events in real time to other data-ingestion services or State industry standard Security tools for processing. The Contractor will also provide other security information and event management (SIEM) capabilities including support for State use of Contractor tools. It will integrate with other SIEM products.	X		Google Cloud Logging provides a centralized and scalable logging service. Application and system logs can be ingested from various sources including syslog, fluentd, and agent based. Logs are streamed in real-time and can be searched, filtered, and archived. Alerts can be configured based on log data. Logs can be exported to external SIEM solutions. Google Cloud also provides integration with security analytics solutions and other SIEM solutions.
24.0	Audit logs: The Contractor will offer a central service that aggregates logs of portal, CLI and API actions that result in provisioning or deprovisioning resources, access control changes, or changes to service configurations. At minimum, this will support all compute services, all storage services and other services that store data (such as database services), all networking, and all security services. The State will also be able to log all IAM actions in detail, and all logged actions will be associated with a responsible identity. The State will be able to export these logs for retention.	X		Google Cloud Audit Logs captures all API calls and changes to resources. Logs include actions related to provisioning, deprovisioning, access control, and service configuration. Logs capture the identity of the user that made the change and includes all Google Cloud services. Logs are streamed to Cloud Logging and can be exported for long term retention.

25.0	Provisioning templates: The Contractor will offer an orchestration template service that provisions multiple resources and services, including a combination of compute instances, block storage volumes, networking elements, software infrastructure services, monitoring configurations and security configurations. The State will be able to define dependencies including authorization (so provisioning occurs in the correct order), provide parameters at provisioning time and use conditionals within the template. The Contractor will enable provisioning a template across multiple logical data centers and regions. The service will offer a template catalog, and access will be governed via RBAC.	X		Google Cloud Deployment Manager allows the State to define templates for provisioning multiple resources and services including compute instances, storage, networks, and monitoring. Templates allow for parameterization, dependencies, and conditional logic. The templates can be used across different regions. Access control can be governed via IAM role based access controls and can be managed with a template catalog.
26.0	Directory service: The Contractor will offer a serverless, resilient Active Directory (AD)-compatible service. This is not directory federation. The service will support, at minimum, domain-joining for Windows and Linux compute instances, user identity and group memberships, group policy, and SSO. The service operation will allow the State to maintain compliance with NIST SP 800-53 moderate controls and other applicable federal security standards.	X		Google Cloud Managed Service for Microsoft Active Directory offers a managed AD-compatible service that is not a directory federation. It is serverless and highly resilient. The service supports Windows and Linux domain-joining, user identity, group management, and group policies. It is compliant with NIST SP 800-53 moderate controls, and other applicable federal security standards.
Vendor Manage ment and Audit				
27.0	Training and certification: The Contractor will offer distinct multilevel training and certification paths for solution architects, operators and developers. The State will have access to free online training for the first-level certification of each path, as well as an introduction to the platform that is suitable for users	X		Google Cloud offers multiple training paths for solution architects, operators, and developers. Free online training is available for the first-level certification of each path, as well as introductions to the platform. Training may be offered first-party or through authorized third parties. Certifications require a proctored exam. Training

	within the business who need to be acquainted with fundamental platform concepts. Free training may be either first-party or through a Contractor authorized third party. Certifications will require a proctored exam, whether taken in-person or online. Training services will maintain compliance with applicable contractual privacy and security controls.			services maintain compliance with applicable contractual privacy and security controls. Under the state's infrastructure as a service contract, Google has already provided no-cost access to Google's professional training platform, which includes the ability to obtain certifications. These usage grants were for up to 500 employees.
28.0	Reference architectures: The Contractor will provide publicly published guidance for what constitutes best practices for application architecture on its platform, including guidance for availability, performance and security. In addition, the Contractor will publish a library of reference architectures for at least 20 common application stacks and architectural patterns. The library will also include at least 50 "quick start" provisioning templates, each of which is accompanied by documentation that explains the solution's implementation and operation.	X		Google Cloud publishes extensive documentation for best practices for application architecture, availability, performance and security. A library of reference architectures is available with more than 20 common architectural patterns. Quick start deployment templates are available, including documentation, to simplify deployments. https://cloud.google.com/architecture
29.0	Marketplace offering: The Contractor will offer a marketplace that contains prebuilt templates and images that are offered by Independent Software Vendor (ISVs) and can be deployed by the State. The Contractor bills the State for marketplace-related consumption as part of the State's regular cloud bill, and compensates the ISV. The marketplace will be divided into categories, filterable and searchable. Marketplace offerings published by the contractor will follow the terms and conditions set forth in this contract. Any ISV offerings if terms and conditions are not covered under the terms of this contract can still be purchased with approval of a secondary contract with the ISV itself.	X		Google Cloud Marketplace provides access to prebuilt templates, images, and software from independent software vendors. Billing for marketplace products is integrated into the Google Cloud billing and consolidated with the State's regular cloud usage. The marketplace offers categorization, filtering, and search features. Marketplace offerings published by Google adhere to the terms and conditions of this contract. ISV solutions can be procured via a separate agreement with the ISV.

compute				
30.0	Rapid provisioning of VMs: Near-instant provisioning is important not only for productivity, but also for on-demand scaling and disaster recovery. Provisioning of multiple VMs will be simultaneous, not sequential — the Contractor's self-service interfaces and control plane will be able to provision a large number of instances for multiple customers at the same time, without dependencies between those provisioning jobs. The interval between the provisioning action and the point where the State can log in to the VM will be within a certain threshold, 99% of the time. These provisioning thresholds are as follows, for VMs and storage: • Less than one minute for a single Linux VM • Less than three minutes for a single Windows Server VM • Less than ten minutes in total for 20 Linux VMs • Less than thirty minutes for a 20 Windows Server VMs	X		Google Compute Engine is designed for rapid provisioning. Multiple VMs can be provisioned simultaneously. Provisioning intervals are often within the stated thresholds for individual and batch operations. The ability for the state to log into a VM is dependent on operating system configuration, and a VM is considered operational for use when the OS has completed booting. Google Cloud has high performance networks with very low latency.
31.0	Large-scale provisioning of VMs: The ability to provision a large number of VMs, very rapidly, is critical for disaster recovery, batch computing and scaling on demand. The State also need the assurance that its Contractor has sufficient scale and spare capacity to	X		Google Cloud has global infrastructure with capacity for large-scale provisioning with multiple sizes, operating systems and locations. Google Cloud supports rapid provisioning of VMs. Google Cloud uses live migration and regional resources to ensure high availability. A variety of images are available, with a minimum diversity of 5% Linux and 5% Windows. Capacity can be reserved on demand in advance without running a VM or with a committed use discount.

	handle these common use cases. To meet this criterion, the Contractor will support: • Image diversity: Performing disaster recovery, the State will be able to achieve a provisioning time of less than 15 minutes, with an individual VM provisioning failure rate of less than 0.5%, for 1,000 VMs of different sizes, using a diverse set of images. The minimum diversity requirement is 5% Linux images and 5% Windows. Contractor will support at least four VM sizes using the following distribution of minimum sizes (vCPU x approximate GB RAM): 50% 1 x 4 VMs, 25% 2 x 8 VMs, 20% 4 x 16 VMs, and 5% 8 x 32 VMs. • Adequate capacity: The Contractor will have at least one logical data center, in each region, where any customer is able to on-demand provision 1,000 VMs. The State will not need to give prior notice or have a capacity reservation. • Reservations: The State will have a means to guarantee that a certain amount of capacity will be available in a particular logical data center, without needing to preprovision that capacity or otherwise pay the fee for a running VM. If a reservation fee is required for this purpose, such fee will be included in pricing schedules, with the minimum term length to be no longer than one year. The maximum size of a reservation will be no less than 1,000 VMs (in aggregate, at least 1,000 vCPUs and 4,000GB of RAM).			
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32.0	State-controlled oversubscription: The Contractor will offer at least one VM instance type or tier of service where the State can decide to oversubscribe compute resources. Oversubscribed instances will be priced below standard instances. A standard VM instance cannot be oversubscribed. The Contractor will not sell more virtual compute cores or RAM than physically exists on the host.	X		Google Cloud offers preemptible VMs (spot instances) that are priced lower than standard VMs. These VMs can be configured with any amount of CPU and RAM, as long as the amount does not exceed the amount that is available physically. The State will have the ability to oversubscribe resources via the spot instances.
33.0	Large VM sizes: The State will be able to provision VM with at least 64 vCPUs as well as ~512GB of RAM. This VM configuration will exist within the general-purpose compute service, without the requirement to obtain this VM through a specialized service such as a batch computing or analytics service.	X		Google Cloud Compute Engine offers instances with at least 64 vCPUs and at least 512GB of RAM as part of its general-purpose compute service. This removes any need for a specialized service for accessing VMs with large compute and memory configurations.
34.0	Customizable container orchestration service: The State may want to run containers on a cluster that it controls, but with reduced management effort. The Contractor will offer a container orchestration service, such as a Kubernetes-based service, with the following capabilities: • The service launches containers that are automatically scheduled and placed into a pool of infrastructure — compute instances used as container hosts — based on resource needs (such as CPU, memory or availability). • The service will have the capability to be scalable (multinode cluster) and highly available. • The State will be able to customize the OS image that is used on the container hosts (for instance, the Kubernetes worker nodes). The service will	X		Google Cloud Google Kubernetes Engine (GKE) is a managed Kubernetes service. GKE automatically schedules containers on compute nodes (VMs), placing them based on resource needs. GKE clusters are scalable, highly available and multi-node. The OS on the GKE worker node can be customized to use a State-managed image and support a single OS image type (either Linux or Windows). GKE also has support for a variety of deployment managers such as Terraform.

	support Linux or Windows, but may support only a single OS. - There will be an automatic upgrade capability for the orchestrator, but it is acceptable to require the State to update the compute nodes. - Container hosts will be able to attach volumes from the Contractor's block storage service or file storage service. Container hosts will be able to use the Contractor's virtual networking capabilities, including IP address management, routing, security tools, and firewalls. Private networks will be supported.			
35.0	Private image catalog: The Contractor will allow the State to maintain a private image catalog of instances that is not accessible to other cloud customers. The State will be able to provision a compute instance from this catalog. An image can be added to the catalog via customizing and saving the image of an existing compute instance, or importing an image in Open Virtualization Format (OVF or OVA), Virtual Machine Disk (VMDK) or Virtual Hard Disk (VHD) format. The State will be able to use their own custom Linux kernel in the image, and the process and dependencies for doing so will be publicly published.			Google Cloud Compute Engine provides a private image catalog where the State can store custom images. These images are not available to other customers. The State can provision compute instances using these images. Images can be added by customizing and saving an image of an instance, or importing an image using OVF, OVA, VMDK or VHD format. The State can use their own custom Linux kernel in the image. Google Cloud will provide the public process and dependencies.
36.0	Two-generation OS support: In its catalog of OS images, the Contractor will offer current and "n - 1" long-term support (LTS) versions of the following server operating systems: At least one enterprise Linux distribution (including Red Hat Enterprise Linux Server)	X		Google Cloud provides images of current LTS releases of operating systems including Red Hat Enterprise Linux, CentOS, Debian, Ubuntu, and Red Hat Enterprise Linux Atomic Host. Google also provides access to older LTS versions (n-1) of these distributions

	At least one commonly used free Linux distribution (such as CentOS, Debian or Ubuntu) At least one commonly used container-oriented Linux distribution (such as Red Hat Enterprise Linux Atomic Host)			
37.0	Instance metadata service: The Contractor will offer a local instance metadata key-value store that is API-queryable from within a compute instance. The metadata store contains information about the compute instance, set by the Contractor. At minimum, this will include the instance ID and at least one hostname, location (such as a region or AZ identifier) and network interfaces. The State will also be able to launch a compute instance with arbitrary State-supplied metadata that will be saved in the metadata store.	X		Google Compute Engine provides a local metadata service accessible through a REST API within a compute instance. The instance retrieves this information by sending HTTP GET requests to this IP address and specific path. The data is organized hierarchically, allowing you to drill down into instance details like hostnames, region, and network interface configurations. Notably, users can inject custom metadata as key-value pairs during instance creation. These user-defined key-value pairs become accessible through the same metadata server, enabling application configuration and customization based on the instance environment. This system offers a secure and flexible way to manage and access instance properties.
38.0	Post-provisioning hooks: The State needs a way to run commands after a newly provisioned compute instance has completed booting. The Contractor will support cloud-init on Linux compute instances, including being able to pass parameters to cloud-init. The Contractor will also support an equivalent capability on Windows compute instances.	X		Google Compute Engine supports cloud-init for Linux VMs to run commands after the first boot. The cloud-init capability supports passing parameters. It also supports Windows VMs and running custom scripts upon startup.
39.0	Horizontal autoscaling: Autoscaling is the ability to automatically adjust compute instance capacity, based on specified conditions. This service will have the following capabilities:	X		Google Compute Engine provides autoscaling capabilities to increase or decrease the number of VMs within a managed instance group based on conditions. The autoscale configuration will create or remove VMs as needed. Google Cloud auto-scaling automatically updates load balancers to reflect changes in instance group capacity.

	It will automatically autoscale — provision and deprovision — VMs as necessary. The State will not need to preprovision a compute pool. It will automatically reconfigure the Contractor's load-balancing service when VMs are added or subtracted.			
Storage				
40.0	Data migration appliance: The State need a means to cost-effectively, simply and securely migrate data into the Contractor, without encountering network bandwidth or latency challenges. Therefore, the Contractor will offer a service that allows the State to load its data onto a Contractor-owned physical appliance and ship it to the Contractor via traditional express-mailing techniques (e.g., FedEx or United Parcel Service [UPS]). There will be a shipment-receipt endpoint in each of the regions. When the appliance is received, the State will be able to import the data into one or more services that store data. At minimum, the Contractor's object storage service will be supported. The appliance will have the following traits: Shippable: The appliance will be suitable for shipping, or will be enclosed in a ruggedized case when shipped. Either the appliance or its case will be tamper-resistant or tamper-evident. Encrypted: All data stored on the appliance will be automatically encrypted.	X		Google Cloud Transfer Appliance provides a means to cost-effectively migrate data using physical appliances. The State loads the data onto a Google Cloud appliance and ships it via standard carriers. Appliances are shipped to a region specific shipment-receipt endpoint where data is then imported. Appliances support object storage as the target for transfer. All appliances are shippable in ruggedized, tamper-evident cases and the data is automatically encrypted. At least one appliance will be available with 50TB or more. Appliances will have a 10 Gbps network interface. Data will be eradicated using NIST 800-88 guidelines before shipping to the next customer. For data export, Google Cloud will provide a physical appliance that the State loads with data from its environment to be shipped and retrieved. The export appliances will be shippable, encrypted, large capacity and eradicated. All data transport will comply with State requirements. https://cloud.google.com/transfer-appliance/docs/4.0/specifications

	• Large capacity: At least one model of the appliance will have a capacity of 50TB or more. The appliance will have at least one 10 Gbps network interface for the purposes of data transfer. • Eradicated after use: Data on the appliance will be eradicated in accordance with NIST 800-88 media sanitization guidelines, using the purge process, before the appliance is shipped to another customer. Data export appliance: The State need to have a means to cost-effectively, simply and securely retrieve their data from the Contractor, without network constraints. The provider will offer a service by which the State can load cloud data onto a Contractor-owned physical appliance, ship it to the location of their choice via express mail and retrieve the data. The appliance will be shippable, encrypted, large-capacity and eradicated after use. Data transport will comply with all State controls for shipping applicable data.			
Block Storage Service Criteria				
41.0	Block storage service: The Contractor will offer a scalable and elastic instance-independent block storage service. At minimum, it will have the following capabilities:	X		Google Cloud's Compute Engine persistent disks provide scalable, elastic block storage. Volumes can be mounted on any type of compute instance and can be reassigned to other instances without reprovisioning. SSD volumes are supported from 1TB and up. Data is synchronously replicated within the same zone for durability. Lower durability options can be provided by using standard HDD drives and zonal disks.

	- A volume will be mountable on any type of compute instance. A nonboot volume will be reassignable to any other compute instance without requiring that either instance be reprovisioned. - The service will support all-solid-state-drive (SSD) storage volume sizes of at least 1TB. The storage will be highly durable by default. All data within the block storage service will be synchronously replicated, so that a minimum of two copies of each volume are stored within a logical data center. The two copies will be stored on different devices. Lower-durability storage may be offered as an option.			
42.0	Flexible block storage volumes: The State will be able to modify attributes of an existing block storage volume, without having to provision a new volume or copy the data. This will include increasing its size and changing its performance tier.	X		Persistent Disk allows for resizing volumes and changing the performance tier (e.g., moving between SSD and HDD). It can also be done without requiring reprovisioning and without copying the data, however, if the change is a decrease in size there will be downtime.
43.0	Block storage performance target: The State will be able to choose and achieve an expected I/O performance target for a block storage volume. The Contractor may define targets either in terms of IOPS or throughput. The Contractor will offer either a direct correlation between volume size and an explicit performance target, multiple tiers of block storage with explicit performance targets, or the ability to choose a specific performance target. These targets will be independent of compute instance type, although there may be limits to the options based on instance size and type.	X		Google Cloud persistent disks provide performance tiers, such as standard, balanced, and extreme SSD, allowing the State to choose I/O performance based on needs. Performance scales with the size of the disk and the type of disk selected.
44.0	Encrypted block storage: The block storage service will either encrypt all volumes, or offer the State the option	X		Google Cloud offers transparent, automatic encryption of all persistent disks at rest with encryption keys managed by Google

	of encrypting specified volumes. An encrypted volume's data is both encrypted at rest, and encrypted in transit between the block storage service and compute instances. Snapshots of encrypted volumes will also be encrypted. All encryption will meet federal FIPS 140-2 standards.			(or with customer-managed keys - BYOK). Data is encrypted in transit between compute instances and block storage. Encryption meets FIPS 140-2 standards.
45.0	Block storage snapshots: The block storage service will support crash-consistent snapshots (point-in-time incremental backups) of any storage volume, regardless of whether the volume is attached to a running compute instance. A snapshot can be used to create a new volume with that data.	X		Google Cloud supports crash-consistent snapshots of persistent disks that can be used to create new volumes or restore volumes. Snapshots are incremental and are global.
46.0	Block storage data eradication: All eradication methods must be compliance with NIST 800-88 requirements. The block storage service will automatically use one of the following two forms of data eradication: • Immediate eradication: This method immediately overwrites the data associated with a storage volume, when the storage volume is deprovisioned or otherwise released by the State. This allows the State to be assured that the data has been eradicated from the physical disks. The State will be offered a choice to opt into or out of this eradication. • Eventual overwrite: This method guarantees that data deleted by the State cannot be accessed, and that deleted data is eventually overwritten. This means that nobody has access to read a deleted block again until that block is overwritten. Furthermore, if the State deprovisions or otherwise	X		Google Cloud Persistent Disk implements automatic deletion and garbage collection of data blocks, which provides a level of protection. Google Cloud will guarantee eventual overwrites, ensuring data cannot be accessed once it is no longer part of the disk. Additionally, Google Cloud has a secure data deletion feature that can be used to ensure immediate overwrite of deleted data, and the State will have a choice to opt in or out of immediate deletion before reprovisioning.

	releases a storage volume, those blocks will be overwritten before that storage is made available again (whether to the State or to another customer).			
Object Storage Service Criteria				
47.0	Object storage service: The Contractor will offer an object storage service that supports an object size of at least 1TB and has the following capabilities: • Objects will be organized into “buckets,” though the object hierarchy may be otherwise flat. The State will be able to assign multiple custom metadata tags to an object. • When an object is stored (PUT), the service will not inform the State the PUT operation has been successful until at least two copies of the object have been successfully written Both copies may be in the same data center. In regions with AZs, the State will be able to choose a tier of object storage where the object is stored in at least two AZs within the region. In regions without AZs, the State will be able to choose a tier of object storage where the object is stored in at least two logical data centers in the same country. • The State will be able to provide a hash-based integrity check (using a common algorithm such as MD5) for the object in the header of a PUT request. The service will compute this on the uploaded	X		Google Cloud's Cloud Storage service supports objects larger than 1TB. Objects are organized into buckets with a flat namespace. The State can assign custom metadata to objects. Objects are replicated across at least two zones in the same region. Object storage is offered in multiregional storage classes where the data is written to multiple regions.

	object, and if the hashes do not match, it will discard the object and return an error. When an object is retrieved (GET), the State will be able to do so via HTTPS. The service will send, in a header, an MD5 hash (or equivalent) for the object, so the State can verify the object's integrity.			
48.0	Object permissions: The object storage service will support an RBAC scheme for object or bucket access, including GET, PUT and LIST permission. These RBAC policies may be applied at either the bucket or individual object level. The policies will support granting access to an individual user, granting access to groups of users (based on an attribute such as a role) and granting access to users in a third-party organization. This RBAC will be integrated with the IAM service used by the State.	X		Google Cloud Storage uses Cloud IAM for fine-grained access control, applying policies at the bucket or object level. Permissions can be granted to individual users, groups and users from third-party organizations using attributes. The integrated IAM service provided by Google Cloud will be the same service used by the State for other services.
49.0	Durable object storage: To achieve greater durability, the State will be able to choose a tier of object storage that automatically replicates the object to three or more locations, in at least two logical data centers. Data integrity will be periodically verified through the use of checksums or the like. Furthermore, the Contractor will implement erasure coding or a similar scheme that tolerates multiple concurrent failures. Erasure coding is a method of data protection by which data is fragmented, expanded and encoded with redundant data pieces, and then stored across a set of different locations.	X		Google Cloud Storage provides regional and multi-regional storage classes that provide replication in at least three locations in at least two logical data centers in the same country. Data integrity is periodically verified through the use of checksums. Cloud Storage uses erasure coding to tolerate multiple concurrent failures.

50.0	Encrypted object storage: The object storage service will either offer service-side encryption (SSE) of all objects at rest, or allow the State to opt into SSE of specific objects (or buckets of objects) at rest. The SSE capability will support BYOK, and may support HYOK.	X		Google Cloud Storage encrypts all objects at rest using server-side encryption. Users can opt into SSE with Google Managed keys, Customer Managed Keys (BYOK) or Customer Supplied Keys (HYOK). Users can opt into SSE of specific objects or buckets.
51.0	Cross-region object replication: The State will be able to select a tier or opt-in capability of object storage that automatically replicates an object into another region of their choice. Such replication will be near-real-time but may be asynchronous. If the Contractor offers encrypted object storage, this capability will be able to replicate encrypted objects.	X		Google Cloud Cloud Storage supports cross-region object replication for multi-regional buckets to other regions using Storage Transfer Service and can be performed asynchronously. This feature will also replicate encrypted data.
52.0	Resilient object transmission: The object storage service will provide a capability for resumable object uploads, so that a network failure does not require reuploading the entire object. This capability may be API-only. For example, this may be accomplished via an API that allows uploading multiple parts of an object and reassembling them into a single object. Furthermore, the API will support downloading a specified portion of an object.	X		Cloud Storage supports resumable uploads using a multipart API to resume failed uploads where they were interrupted. The API can download a portion of an object through the content-range header.
53.0	Log object operations: The Contractor will enable the State to log object storage access requests; this logging may be best-effort, without guarantees for timeliness or completeness of logs. In addition, the Contractor will enable the State to log and audit operations on objects. This will include, at minimum, any operation that creates, deletes, or alters an object or bucket. Audit and access operations may be separate logs.	X		Cloud Storage provides logging through Cloud Logging. These logs track access requests and data lifecycle events. Audit logs can be enabled to track who accessed the data and the results of the operations.

File Storage Service Criteria				
54.0	File storage service: The Contractor will offer a file storage service that allows the State to obtain network file shares. The service will have the following capabilities: • A file system within the service will be mountable on any type of compute instance, including compute instances in a different region. • The service will support either NFSv3 or SMB 3.0 (or higher). The service may also support older NFS or SMB versions. For NFSv3, the Contractor will support a means of restricting what hosts can access the file share. For SMB 3.0 or higher, the Contractor will support built-in authentication, ACLs or directory service integration. • The storage will be highly durable by default. All data within the file storage service will be synchronously replicated, so that a minimum of two copies of each file are stored within a logical data center. The two copies will be stored on different devices. Lower-durability storage may be offered as an option. • The storage and communications will meet federal encryption requirements.	X		Google Cloud Filestore provides fully managed file shares that can be mounted to any Compute Engine instance, even across different regions, using NFS v3. Filestore also has SMB support. It supports older versions of NFS. The service provides built-in authentication for SMB and exports restriction for NFS v3 to limit which hosts access the file share. File shares are synchronously replicated within a zone with different storage classes. Encryption is at rest and in transit.
work				

55.0	Virtual networking: The Contractor will offer software-defined LAN and WAN services, allowing the State full flexibility to configure a multi-segment hierarchical network topology that is independent of compute instances. At minimum, the following capabilities will be supported: • Routing: The State will be able to define a gateway and custom routing for each virtual network. The State will be able to have at least 20 virtual networks per region. • Subnets: The State will be able to define subnets within a virtual network. The State will be able to have a minimum of 25 subnets per virtual network. Private networks: The State will be able to define virtual networks that are fully isolated and not externally routable, with their choice of RFC 1918 private IP address blocks. Traffic routed between the State's private networks within the same logical data center will have the capability to remain within private IP space. The traffic will not cross the public internet.	X		Google Cloud's Virtual Private Cloud (VPC) service provides software-defined LAN and WAN. State can create many virtual networks using Cloud Router. Subnets and gateways are configurable per region. Private IP ranges can be configured per virtual network using RFC 1918 addresses. Private networks do not traverse the internet. State can create up to 200 VPCs per project.
56.0	Private networks between regions: All traffic between the Contractor's general-purpose data centers will remain on the Contractor's private WAN (though this does not require private fiber). It cannot use the internet, even if the traffic is tunneled. Furthermore, traffic routed between any of the State's private networks, including those in different logical data centers or different regions, will have the capability to remain within private IP space.	X		Google Cloud's private network provides connectivity between multiple Google Cloud data center regions on its private, global network. Traffic between regions using Private IP Addresses will be kept within private IP space and will not traverse the public internet.

57.0	Private networks for compute instances: The Contractor will support the following capabilities, to the extent that the OS of the compute instances permit: • All compute instances will be able to have only private IP addresses. • All compute instances will be able to have at least two IP addresses, and simultaneously have public and private IPs. The State will be able to independently route each IP. All VM instances will be able to have multiple virtual network interface cards (vNICs), each with its own Media Access Control (MAC) address.	X		Google Cloud compute instances can have multiple private network interfaces (vNICs), and a mix of public and private IPs, which can be routed independently. Virtual network interfaces can have unique MAC addresses. Compute instances can be configured to have only private IPs.
58.0	Private networks for data-handling services: The State will be able to keep traffic between their compute instances and data services within a private network. The following services will support private networks, if the Contractor has such a service: the key management service, the object storage service, at least one relational DBaaS, and the data warehouse service.	X		Google Cloud data handling services including key management, object storage, relational database services and data warehouse services support private networks. Compute Instances and services can be placed in a private network and communicate using private IP addresses without passing through the public internet.
59.0	Private networks between organizations: The State will be able to route traffic between two private networks within two different partitions. The State will also be able to route traffic between two private networks that belong to different cooperating organizations (including accounts held by completely separate entities). Traffic routed between private virtual networks will have the capability to remain within private IP space.	X		Google Cloud VPC service can connect different VPCs using VPC peering or through Shared VPCs. This will ensure the data is in private space. VPC peering is possible for different accounts and organizations in Google Cloud.

				Again, we have spent a considerable amount of time working with networking specialists at the State of Michigan to set up VPC peering on our existing projects
60.0	Private State connectivity: The State will be able to connect their private WAN with their cloud virtual networks, as follows: The State will be able to obtain private WAN connectivity into the cloud Contractor via a carrier or colocation facility. (WAN connectivity can take a number of forms, such as Ethernet, Multiprotocol Label Switching [MPLS], virtual private LAN service [VPLS] or a direct cross-connect.) Contractors will offer at least two connectivity facility options per general-purpose region. The State will be able to have at least two private connections per region, and per virtual network. Service capabilities, such as routing features, will support both multisite customers with multiple regional gateways, as well as customers that want redundant multicarrier connectivity into a single logical data center.	X		Google Cloud offers partner interconnect and dedicated interconnect options. Partner interconnect allows for private WAN connectivity with the usage of a third party. Dedicated Interconnect allows for a direct connection to Google Cloud. Multiple connections in a region and per VPC are supported. The State of Michigan already has a dedicated interconnect with Google Cloud that you are leveraging for some of your tier 1 applications running in Google Cloud Platform.
61.0	Site-to-site VPN gateway: The Contractor will offer a site-to-site VPN service that connects the State's virtual networks to their premises over the public internet, via an IPsec or SSL/TLS VPN tunnel. A virtual network will be able to have at least two VPN connections. VPN connections will support redundant Contractor termination points.	X		Google Cloud VPN service allows for the creation of secure site-to-site IPsec tunnels over the public internet between on premise and cloud networks. Users can create more than two VPN connections per virtual network. Google Cloud VPN is redundant.

62.0	Transit hub: The State will be able to route a virtual network's traffic through a centralized private network connection point for use with centralized gateways or security appliances that require a hub-and-spoke topology. The Contractor will offer a transit routing service capability that allows the State to redirect virtual network traffic through a security function, such as a State VM running a virtual security appliance, in support of such requirements. The transit routing service will support the capability to assign different routing tables per virtual network.	X		Google Cloud offers centralized routing of virtual networks to a central VPC using Network Connectivity Center through route appliances or partner interconnects. It allows for a hub and spoke model.
63.0	Reliable WAN performance: The Contractor's WAN will deliver consistently acceptable performance between regions. The Contractor will deliver a minimum of 50 Mbps of throughput, along with an average TCP RTT time below an acceptable threshold, between compute instances, located in different regions. The maximum acceptable TCP RTT times between any region is 75 ms.	X		Google Cloud Platform (Google Cloud) achieves consistent inter-region performance through its private backbone network. This backbone consists of a global, fiber-optic network dedicated solely to Google services, bypassing the public internet for internal traffic. This reduces latency and variability. However, testing, monitoring, and best-practice network configurations will allow you to meet the described performance metrics and consistently achieve throughput above 50 Mbps and RTT below 75 ms between any US Google Cloud regions.
64.0	Web load balancing: The Contractor will offer load balancer (LB) services that distribute HTTP and HTTPS traffic to compute instances and have the following capabilities: • Basic load distribution: The default algorithm used for load distribution will be published. The service will be aware of instance health to avoid sending requests to nonresponsive compute instances. • Session persistence: The LB will support connection multiplexing and keep-alive to compute	X		Google Cloud Load Balancer can distribute HTTP and HTTPS traffic. The load balancer has configurable health checks to determine availability of compute instances. Session affinity can be configured to route users to the same compute instance. Session affinity can be based on hashing connection information or session cookies.

	instances. The LB will also support sticky sessions, so a user can be consistently routed to the same compute instance. This may be accomplished through algorithmic means (for instance, hashing connection information) or through session cookies. SSL offload: The LB will have the capability to terminate SSL connections, so that the State VMs do not have to perform SSL encryption/decryption.			
65.0	Layer 7 load balancing: The Contractor will offer a Layer 7 LB service that distributes HTTP and HTTPS traffic to compute instances and has the following capabilities: • Basic load balancing: The LB supports public and private networks, basic load distribution, session affinity and SSL offload. (See the “Web load balancing” criterion.) • URI-based routing: The LB can route requests based on State-defined unified resource identifier (URI) patterns. • X-Forwarded-For: The load balancer will support the configuration and use of X-Forwarded-For by the State if needed. HTTP/2: The LB can deliver content via HTTP/2 to clients that support HTTP/2, while supporting a HTTP/1.1 back end.	X		Google Cloud Load Balancer offers a layer 7 load balancing service that supports public and private networks, basic load balancing with health checks, session affinity and SSL offload. URL based routing is supported as well. HTTP/2 is supported with HTTP/1.1 backend support. X-Forwarded-For headers are supported.
66.0	Static IP addresses: If a compute instance is dynamically assigned an IP address, that address will	X		Google Cloud allows for static and ephemeral IP address assignment to VMs. Ephemeral IP addresses will stay with the

	remain the same across the lifetime of the instance (unless the State wants to change it). Furthermore, the State will be able to obtain an indefinitely persistent private or public IP address that can be assigned to a compute instance or LB, and that is reassignable on demand. The Contractor must be able to support portable virtual NICs, where the State can opt to move a vNIC from one instance to another, which reassigns the MAC address and associated IP addresses.			instance unless explicitly deleted by the state. Static IPs can be allocated and attached to a compute instance or load balancer and can be remapped to another resource if required. Users can move vNICs between instances, which reassigns MAC and associated IP addresses.
67.0	DNS service: The Contractor will offer DNS as a service. The State will have the option of designating this DNS service as an authoritative (i.e., primary or secondary) DNS for a zone. Furthermore, if the State uses the Contractor's IP addresses, the State will be able to create reverse DNS (PTR) records for those IP addresses when they are assigned to compute instances.	X		Google Cloud's Cloud DNS service can act as authoritative DNS. The State can create zones, and PTR records. The DNS service provides public and private zone options with multiple types of record sets, including a record.
Software Infrastructure Services				
68.0	Relational DBaaS: The Contractor will offer a serverless relational database as a service (rDBaaS). Minor version updates and major version upgrades may have different levels of automation and necessary downtime. The State will be able to configure and schedule automated backups with a retention policy, as well as export a database dump. At a minimum, the service will support one common open-source database and one common proprietary database.	X		Google Cloud offers Cloud SQL as a serverless relational database service. It includes minor and major version upgrades with varied downtime and automation levels. It supports automated backups with configurable retention policies and has export capabilities for database dumps. It supports MySQL, PostgreSQL and SQL Server databases.
69.0	Relational DBaaS read replicas: At least one of the Contractor's serverless rDBaaS offerings will scale beyond a single instance. The Contractor will either	X		Cloud SQL can be scaled using read replicas that can be configured and created by the State. Replicas can be promoted

	provide automatically scaled capacity or the State will be able to opt into database read replicas.			to the master if necessary. Read replicas are implemented in MySQL and PostgreSQL.
70.0	Relational DBaaS synchronous replication: To achieve higher availability, at least one of the Contractor's serverless rDBaaS offerings will offer synchronous replication of a State's database into another logical data center. This may be an active-active or automatic failover architecture, but the application will see only a single endpoint.	X		Google Cloud SQL offers automatic failover for some databases and is designed to be highly available with synchronous replication in multiple zones within a region. The application will connect to a single endpoint, but can transparently failover to another zone.
71.0	Data warehouse service: The Contractor will offer a serverless data warehouse service. It will be ANSI SQL-compatible, and there will be ODBC and JDBC drivers. There will be documented integrations with common business intelligence (BI) tools, such as MicroStrategy and Tableau Software.	X		Google Cloud's BigQuery service is an ANSI SQL-compatible, serverless data warehouse. It has ODBC and JDBC drivers. There are integrated connections to several BI tools, including MicroStrategy and Tableau.
72.0	Functions as a service: The Contractor will offer a service for the execution of event-triggered functions. This seamlessly scalable and resilient serverless offering executes State-provided code on demand with support for at least three programming languages. It charges only for the resources used, has a limited execution time, scales rapidly, handles concurrency and availability across networks, and provides an error-handling mechanism. The Contractor's monitoring or notification service (i.e., a service that invokes or handles alert-generation mechanisms) will be able to invoke a function, so that functions can be used for operational needs.	X		Google Cloud Functions is an event-triggered, serverless service. It supports multiple languages including Python, Go, Java, Node.js. The service is billed based on resource use and has a limited execution time, has a concurrency model and handles error handling. Cloud Functions can be triggered by other Google Cloud services and can interact with logging and other monitoring services.

SCHEDULE B - PRICING

Bidder is encouraged provide a percentage discount off list pricing for all offerings requested under this solicitation.

BIDDER RESPONSE:

There will not be a discount included up front as part of this \$0 contract. However, discounting will be determined and provided at the time of purchase, and will be variable based on the volume of the investment, at the time of investment.

Additional Pricing Terms

The Contractor is encouraged to offer quick payment terms. The number of days must not include processing time for payment to be received by the Contractor's financial institution.

Quick payment terms: ___N/A___ % discount off invoice if paid within ___N/A___ days after receipt of invoice.

If Contractor reduces its prices, or offers a lower price to any other entity, private or public, for any of the Solution during the term of this Contract, the State shall have the immediate benefit of such lower prices for new purchases. Contractor shall send notice to the State's Contract Administrator with the reduced prices within fifteen (15) Business Days of the reduction taking effect.

Invoice Requirements

All invoices submitted to the State must include: (a) date; (b) purchase order or delivery order; (c) quantity; (d) description of the Solution; (e) unit price; (f) shipping cost (if any); (g) Contractor-generated invoice number and (h) total price.

Travel and Expenses

The State does not pay for overtime or travel expenses.

SCHEDULE C - INSURANCE REQUIREMENTS

Request For Proposal No. 250000000414

Cloud Services RFP

BIDDER INSTRUCTIONS

Do you accept these Insurance provisions as presented?

BIDDER RESPONSE: The Insurance coverage outlined in Schedule B - Insurance Schedule of the existing services agreement, Contract No. 230000000200, should be used for this contract, because it has worked in the prior contract.. Google proposes that the parties take advantage of the existing contract and schedules therein, which for insurance would mean that Schedule B of Contract No. 230000000200 shall supersede and replace this Schedule C in its entirety. Google is open to discussing potential modifications including adjusting insurance coverage limits as the State of Michigan may propose for this opportunity during negotiations.

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

1. General Requirements. Contractor, at its sole expense, must maintain the insurance coverage as specified herein for the duration of the Term. Minimum limits may be satisfied by any combination of primary liability, umbrella or excess liability, and self insurance coverage. To the extent damages are covered by any required insurance, Contractor waives all rights against the State for such damages. Failure to maintain required insurance does not limit this waiver.

2. Qualification of Insurers. Except for self insured coverage, all policies must be written by an insurer with an A.M. Best rating of A - VII or higher unless otherwise approved by DTMB Enterprise Risk Management.

3. Primary and Non-Contributory Coverage. All policies for which the State of Michigan is required to be named as an additional insured must be on a primary and non-contributory basis.

4. Claims Made Coverage. If any required policies provide claims made coverage, Contractor must:

a. Maintain coverage and provide evidence of coverage for at least 3 years after the later of the expiration or termination of the Contract or the completion of all its duties under the Contract;

b. Purchase extended reporting coverage for a minimum of 3 years after completion of work if coverage is cancelled or not renewed, and not replaced with another claims made policy form with a retroactive date prior to the Effective Date of this Contract.

5. Proof of Insurance.

Michigan.gov/MiProcurement

- a. Insurance certificates showing evidence of coverage as required herein must be submitted to DTMB-RiskManagement@michigan.gov within 10 days of the contract execution date.
- b. Renewal insurance certificates must be provided on annual basis or as otherwise commensurate with the effective dates of coverage for any insurance required herein.
- c. Insurance certificates must be in the form of a standard ACORD Insurance Certificate unless otherwise approved by DTMB Enterprise Risk Management.
- d. All insurance certificates must clearly identify the Contract Number (e.g., noted under the Description of Operations on an ACORD form).
- e. The State may require additional proofs of insurance or solvency, including but not limited to policy declarations, policy endorsements, policy schedules, self insured certification/authorization, and balance sheets.
- f. In the event any required coverage is cancelled or not renewed, Contractor must provide written notice to DTMB Enterprise Risk Management no later than 5 Business Days following such cancellation or nonrenewal.

6. Subcontractors. Contractor is responsible for ensuring its subcontractors carry and maintain insurance coverage.

7. Limits of Coverage & Specific Endorsements.

Required Limits	Additional Requirements
Commercial General Liability Insurance	
Minimum Limits: \$1,000,000 Each Occurrence \$1,000,000 Personal & Advertising Injury \$2,000,000 Products/Completed Operations \$2,000,000 General Aggregate	Contractor must have their policy endorsed to add "the State of Michigan, its departments, divisions, agencies, offices, commissions, officers, employees, and agents" as additional insureds using endorsement CG 20 10 11 85, or both CG 20 10 12 19 and CG 20 37 12 19.
Automobile Liability Insurance	
If a motor vehicle is used in relation to the Contractor's performance, the Contractor must have vehicle liability insurance on the motor vehicle for bodily injury and property damage as required by law.	
Workers' Compensation Insurance	
Minimum Limits: Coverage according to applicable laws governing work activities.	Waiver of subrogation, except where waiver is prohibited by law.



Required Limits	Additional Requirements
Employers Liability Insurance	
Minimum Limits: \$500,000 Each Accident \$500,000 Each Employee by Disease \$500,000 Aggregate Disease	
Privacy and Security Liability (Cyber Liability) Insurance	
Minimum Limits: \$10,000,000 Each Occurrence \$10,000,000 Annual Aggregate	Contractor must have their policy cover information security and privacy liability, privacy notification costs, regulatory defense and penalties, and website media content liability.
Professional Liability (Errors and Omissions) Insurance	
Minimum Limits: \$5,000,000 Each Occurrence \$5,000,000 Annual Aggregate	

8. Non-Waiver. This Schedule C is not intended to and is not to be construed in any manner as waiving, restricting or limiting the liability of either party for any obligations under this Contract, including any provisions hereof requiring Contractor to indemnify, defend and hold harmless the State.



SCHEDULE D - SERVICE LEVEL AGREEMENT (CONTRACTOR HOSTED)

BIDDER INSTRUCTIONS

Bidder is to provide link to their Service Level Agreement.

BIDDER RESPONSE: The Service Level Agreements for the following Google Cloud Platform services are described at <https://cloud.google.com/terms/sla?e=48754805&hl=en>

The Service Level Agreements for the following SecOps services are described at <https://cloud.google.com/terms/secops/sla>.



SCHEDULE D – ATTACHMENT 1 – CONTACT LIST

BIDDER INSTRUCTIONS

Bidder must provide a current list of Contractor contacts and telephone numbers to enable the State to escalate its Support Requests, including: (a) the first person to contact; and (b) the persons in successively more qualified or experienced positions to provide the support sought.

BIDDER RESPONSE:

For overall contract support the contact persons are:

A) Charlie Henderson, Enterprise Account Manager

micharlie@google.com

312-852-2020

B) Brad Hoffman, Director State & Local

bradhoffman@google.com

801-230-5072

SCHEDULE E – DATA SECURITY REQUIREMENTS

BIDDER INSTRUCTIONS

Do you accept these Data Security Requirements as presented?

BIDDER RESPONSE: Google proposes that the Parties take advantage of the existing contract and schedules therein, which for this Schedule E would mean that Schedule A - Data Security Schedule of the existing Terms of Services, Contract No. 230000000200, shall supersede and replace this Schedule E in its entirety. Google is open to discussing any non-material, contract-specific modifications the State of Michigan may propose for this opportunity during negotiations.

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

~~1. Definitions. For purposes of this Schedule, the following terms have the meanings set forth below. All initial capitalized terms in this Schedule that are not defined in this Schedule shall have the respective meanings given to them in the Contract.~~

~~"Contractor Security Officer" has the meaning set forth in Section 2 of this Schedule.~~

~~"FedRAMP" means the Federal Risk and Authorization Management Program, which is a federally approved risk management program that provides a standardized approach for assessing and monitoring the security of cloud products and services.~~

~~"FISMA" means The Federal Information Security Modernization Act of 2014 (Pub.L. No. 113-283 (Dec. 18, 2014)).~~

~~"Hosting Provider" means any Permitted Subcontractor that is providing any or all of the Hosted Services and/or Operating Environment under this Contract.~~

~~"NIST" means the National Institute of Standards and Technology.~~

~~"PCI" means the Payment Card Industry.~~

~~"PSP" or "PSPs" means the State's IT Policies, Standards and Procedures.~~

~~"SSAE" means Statement on Standards for Attestation Engagements.~~

~~"Security Accreditation Process" has the meaning set forth in Section 6 of this Schedule~~

2. Security Officer. Contractor will appoint a Contractor employee to respond to the State's inquiries regarding the security of the Solution who has sufficient knowledge of the security of

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the Solution and the authority to act on behalf of Contractor in matters pertaining thereto (“**Contractor Security Officer**”).

3. Contractor Responsibilities. Contractor is responsible for establishing and maintaining a data privacy and information security program, including physical, technical, administrative, and organizational safeguards, that is designed to:

- (a) ensure the security and confidentiality of the State Data;
- (b) protect against any anticipated threats or hazards to the security or integrity of the State Data;
- (c) protect against unauthorized disclosure, access to, or use of the State Data;
- (d) ensure the proper disposal of any State Data in Contractor’s or its subcontractor’s possession; and
- (e) ensure that all Contractor Personnel comply with the foregoing.

The State has established Information Technology (IT) PSPs to protect IT resources under the authority outlined in the overarching State 1305.00 Enterprise IT Policy. In no case will the safeguards of Contractor’s data privacy and information security program be less stringent than the safeguards used by the State, as documented in the State IT policies and standards, of which the publicly available ones are at https://www.michigan.gov/dtmb/policies/it_policies.

This responsibility also extends to all service providers and subcontractors with access to State Data or an ability to impact the Solution. Contractor responsibilities are determined from the PSPs based on the services being provided to the State, the type of IT solution, and the applicable laws and regulations.

4. Acceptable Use Standard. To the extent that Contractor has access to the State’s IT environment, Contractor must comply with the State’s Acceptable Use Standard, see <https://www.michigan.gov/dtmb/-/media/Project/Websites/dtmb/Law-and-Policies/IT-Policy/13400013002-Acceptable-Use-of-Information-Technology-Standard.pdf>. All Contractor Personnel will be required, in writing, to agree to the State’s Acceptable Use Standard before accessing State systems or Data. The State reserves the right to terminate Contractor’s and/or subcontractor(s) or any Contractor Personnel’s access to State Systems if the State determines a violation has occurred.

5. Protection of State’s Information. Throughout the Term and at all times in connection with its actual or required performance of the Services, Contractor will:

5.1 If Hosted Services are provided by a Hosting Provider, ensure each Hosting Provider maintains FedRAMP authorization for all Hosted Services environments throughout the Term, and in the event a Hosting Provider is unable to maintain FedRAMP authorization, the State, at its sole discretion, may either a) require the Contractor to move the Software and State Data to an alternative Hosting Provider selected and approved by the State at Contractor’s sole cost and expense without any increase in Fees, or b) immediately terminate this Contract for cause;

5.2 for Hosted Services provided by the Contractor, maintain either a FedRAMP authorization or an annual SSAE 18 SOC 2 Type II audit based on State required NIST

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~~Special Publication 800-53 MOD Controls using identified controls and minimum values as established in applicable State PSPs;~~

~~5.3 ensure that the Software and State Data is securely stored, hosted, supported, administered, Accessed, and backed up in the United States or its territories. The use of Offshore Resources is not permitted;~~

~~5.5 ensure the data center(s) in which Software and State Data resides minimally meets Uptime Institute Tier 3 standards (<https://www.uptimeinstitute.com/>), or its equivalent;~~

~~5.6 maintain and enforce an information security program including safety and physical and technical security policies and procedures with respect to its Processing of the State Data that complies with the requirements of the State's data security policies as set forth in this Contract, and must, at a minimum, remain compliant with FISMA and NIST Special Publication 800-53 MOD Controls using identified controls and minimum values as established in applicable State PSPs;~~

~~5.7 Throughout the Term, Contractor must not provide any part of the Solution from the list of excluded parties in the [System for Award Management \(SAM\)](#) for entities excluded from receiving federal government awards for "covered telecommunications equipment or services.~~

~~5.8 provide technical and organizational safeguards against accidental, unlawful or unauthorized access to or use, destruction, loss, alteration, disclosure, encryption, transfer, commingling or processing of such information that ensure a level of security appropriate to the risks presented by the Processing of State Data and the nature of such State Data, consistent with best industry practice and applicable standards (including, but not limited to, compliance with FISMA, NIST, CMS, IRS, FBI, SSA, HIPAA, FERPA and PCI requirements as applicable);~~

~~5.9 take all reasonable measures to:~~

~~(a) secure and defend all locations, equipment, systems and other materials and facilities employed in connection with the Solution against "malicious actors" and others who may seek, without authorization, to destroy, disrupt, damage, encrypt, modify, copy, access or otherwise use Hosted Services or the information found therein; and~~

~~(b) prevent (i) the State and its Authorized Users from having access to the data of other customers or such other customer's users of the Solution; (ii) State Data from being commingled with or contaminated by the data of other customers or their users of the Solution; and (iii) unauthorized access to any of the State Data;~~

~~5.10 ensure that State Data is encrypted in transit and at rest using FIPS validated AES encryption modules and a key size of 128 bits or higher;~~

~~5.12 ensure the Hosted Services implements NIST compliant multi factor authentication for privileged/administrative and other identified access.~~

~~5.13 Contractor must permanently sanitize or destroy the State's information, including State Data, from all media both digital and nondigital including backups using National Security Agency ("NSA") and/or National Institute of Standards and Technology ("NIST") (NIST Guide for Media Sanitization 800-88) data sanitization methods or as otherwise~~

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instructed by the State. Contractor must sanitize information system media, both digital and non-digital, prior to disposal, release out of its control, or release for reuse as specified above.

6. Security Accreditation Process. Throughout the Term, Contractor will assist the State, at no additional cost, with its ~~Security Accreditation Process~~, which includes the development, completion and on-going maintenance of a system security plan (SSP) using the State's automated governance, risk and compliance (GRC) platform, which requires Contractor to submit evidence, upon request from the State, in order to validate Contractor's security controls within two weeks of the State's request. On an annual basis, or as otherwise required by the State such as for significant changes, re-assessment of the system's controls will be required to receive and maintain authority to operate (ATO). All identified risks from the SSP will be remediated through a Plan of Action and Milestones (POAM) process with remediation time frames and required evidence based on the risk level of the identified risk. For all findings associated with the Contractor's solution, at no additional cost, Contractor will be required to create or assist with the creation of State approved POAMs, perform related remediation activities, and provide evidence of compliance. The State will make any decisions on acceptable risk, Contractor may request risk acceptance, supported by compensating controls, however only the State may formally accept risk. Failure to comply with this section will be deemed a material breach of the Contract.

7. Unauthorized Access. Contractor may not access, and must not permit any access to, State Systems, in whole or in part, whether through the Hosted Services or otherwise, without the State's express prior written authorization. Such authorization may be revoked by the State in writing at any time in its sole discretion. Any access to State Systems must be solely in accordance with the Contract and this Schedule, and in no case exceed the scope of the State's authorization pursuant to this Section. All State authorized connectivity or attempted connectivity to State Systems shall be only through the State's security gateways and firewalls and in compliance with the State's security policies set forth in the Contract as the same may be supplemented or amended by the State and provided to Contractor from time to time.

8. Security Audits:

8.1 During the Term, Contractor will maintain complete and accurate records of its data protection practices, IT security controls, and the security logs relating to State Data, including but not limited to any backup, disaster recovery or other policies, practices or procedures relating to the State Data and any other information relevant to its compliance with this Contract.

8.2 Without limiting any other audit rights of the State, the State has the right to review Contractor's data privacy and information security program prior to the commencement of Services and from time to time during the term of this Contract. The State, at its own expense, is entitled to perform, or to have performed, an audit of Contractor's data privacy and information security program. If the State chooses to perform an audit, Contractor will, make all such records, appropriate personnel and relevant materials available for inspection and audit by the State or an independent data security expert that is reasonably acceptable to Contractor, provided that the State: (i) gives Contractor at least 5 Business Days prior notice of any such audit; (ii) undertakes such audit no more than once per calendar year, except for good cause shown; and (iii) conducts or

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~~causes to be conducted such audit in a manner designed to minimize disruption of Contractor's normal business operations and that complies with the terms and conditions of all data confidentiality, ownership, privacy, security and restricted use provisions of the Contract. The State may, but is not obligated to, perform such security audits.~~

~~8.3 During the Term, Contractor will, when requested by the State, provide a copy of Contractor's and Hosting Provider's (if applicable) FedRAMP System Security Plan(s) or SOC 2 Type 2 report(s) to the State within two weeks of the State's request. The System Security Plan and SSAE audit reports will be recognized as Contractor's Confidential Information.~~

~~8.4 With respect to State Data, Contractor must implement any required safeguards as identified by the State or by any audit of Contractor's data privacy and information security program.~~

~~8.5 The State reserves the right, at its sole election, to immediately terminate this Contract or a Statement of Work without limitation and without liability if the State determines that Contractor fails or has failed to meet its obligations under this Section 8.~~

9. Application Scanning. ~~During the Term, Contractor must, at its sole cost and expense, scan all Contractor provided applications, and must analyze, remediate and validate all vulnerabilities identified by the scans as required by the State Web Application Security Standard and other applicable PSPs.~~

~~Contractor's application scanning and remediation must include each of the following types of scans and activities:~~

~~9.1 Dynamic Application Security Testing (DAST) — Authenticated interactive scanning of application for vulnerabilities, analysis, remediation, and validation (may include Interactive Application Security Testing (IAST)).~~

~~(b) Contractor must dynamically scan a deployed version of the Software using a State approved application scanning tool, and, upon request, provide the State with verification of the scanning and remediation after Contractor has completed such scan. These scans and assessments~~

~~(i) must be completed quarterly (dates to be provided by the State) and for each major release; 9.2 Static Application Security Testing (SAST) — Scanning source code for vulnerabilities, analysis, remediation, and validation.~~

~~(a) For Contractor provided applications, Contractor, at its sole expense, must provide resources to complete static application source code scanning, including the analysis, remediation and validation of vulnerabilities identified by application source code scans. These scans must be completed for all source code initially, for all updated source code, and for all source code for each major release and Contractor must, upon request, provide the State with verification of the scanning and remediation after Contractor has completed the required scans.~~

~~9.3 Software Composition Analysis (SCA) — Third Party and/or Open Source Scanning for vulnerabilities, analysis, remediation, and validation.~~

~~(a) For Software that includes third party and open source software, all included third party and open source software must be documented and the source~~

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~~supplier must be monitored by the Contractor for notification of identified vulnerabilities and remediation. SCA scans may be included as part of SAST and DAST scanning or employ the use of an SCA tool to meet the scanning requirements. These scans must be completed for all third-party and open source software initially, for all updated third-party and open source software, and for all third-party and open source software in each major release and Contractor must, upon request, provide the State with a validation that the Contractor has completed the required scans if not provided as part of SAST and/or DAST reporting.~~

~~9.4 In addition, application scanning and remediation may include the following types of scans and activities if required by regulatory or industry requirements, data classification or otherwise identified by the State:~~

~~(a) If provided as part of the solution, all native mobile application software must meet these scanning requirements including any interaction with an application programming interface (API):~~

~~(b) Penetration Testing — Simulated attack on the application and infrastructure to identify security weaknesses:~~

~~10. Infrastructure Scanning:~~

~~10.1 Contractor must ensure their infrastructure and applications are scanned using an approved scanning tool (Qualys, Tenable, or other PCI Approved Vulnerability Scanning Tool) at least monthly and provide, upon request, validation of the scanning and remediation to the State in a format that is specified by the State. Contractor will ensure the remediation of issues identified in the scan according to the remediation time requirements documented in the State's PSPs.~~

~~11. Nonexclusive Remedy for Security Breach:~~

~~11.1 Any failure of the Solution to meet the applicable requirements of this Schedule with respect to the security of any State Data or other Confidential Information of the State, including any related backup, disaster recovery or other policies, practices or procedures, is a material breach of the Contract for which the State, at its option, may terminate the Contract immediately upon written notice to Contractor without any notice or cure period, and Contractor must promptly reimburse to the State any Fees prepaid by the State prorated to the date of such termination.~~

SCHEDULE E, ATTACHMENT B

SAFEGUARD REQUIREMENTS OF CONFIDENTIAL TAX DATA

BIDDER RESPONSE: Google satisfies the requirements outlined in this Schedule E - Attachment B through the terms of the existing Terms of Services, Contract No. 230000000200 including its Data Processing and Security Terms at <https://cloud.google.com/terms/data-processing-addendum?e=48754805&hl=en>. Additionally, the existing Contract already contains requirements obligating Google to protect all Confidential Information and only use it for the purposes of the Contract. Hence, Google proposes that the Parties take advantage of the existing contract and schedules therein, and supersede and replace in its entirety Sections III through the end of this Schedule E, Attachment 1 - Attachment B with the Data Processing and Security Terms of Contract No. 230000000200. Customer Data (including tax payer information) is Confidential Information. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations.

This section sets forth the safeguard requirements for handling, storage, and processing of confidential tax information for a Contractor and their subcontractor(s) and is incorporated as an integral part of the Contract. It will facilitate administration and enforcement of the laws of the State of Michigan in a manner consistent with the applicable statutes, regulations, published rules and procedures or written communication.

I. Authority

Authority for the Michigan Department of Treasury to require that this section be included in the Contract is contained in 1941 PA 122, as amended, MCL 205.28(1)(f), which subjects current or former contractors to the same restrictions and penalties imposed upon department employees regarding the treatment of confidential information. A private contractor or its employees are strictly prohibited from disclosing taxpayer information to a third party. The prohibition against disclosure does not bar an employee of a private contractor with whom the State of Michigan (State) contracts that processes tax returns or payments pursuant to the Contract from having access to confidential information that is reasonably required for the processing or collection of amounts due this State. Private contractors and any subcontractors will follow Treasury guidelines for Authorized representatives.

II. Confidentiality

It is agreed that all information exchanged under this section will be kept confidential in accordance with the confidentiality provisions contained in the Revenue Act, MCL 205.28(1)(f) which states in part;

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“Except as otherwise provided in this subdivision, an employee, authorized representative, or former employee or authorized representative of the department or anyone connected with the department will not divulge any facts or information obtained in connection with the administration of a tax or information or parameters that would enable a person to ascertain the audit selection or processing criteria of the department for a tax administered by the department.”

Confidential information obtained under this contract will not be disclosed except as required by state law, or in the proper administration of applicable laws, promulgated rules and procedures. In the event, confidentiality statutes are amended, Treasury will notify Contractor of any changes. No employee, agent, authorized representative or legal representative of Contractor will disclose any information obtained by virtue of this section to any other division within their company or any other governmental agency, department or unit within such governmental agency whether local, state, federal or foreign, department or unit within such governmental agency, or any unauthorized third party. No tax returns or tax return information accessed by Contractor will be duplicated or disseminated within or outside the company without the written approval of the Contract Compliance Inspector. Tax returns and tax return information remain the property of Treasury.

Contractor may use a taxpayer’s name, address and Social Security number or employer identification number to the extent necessary in connection with the processing and mailing of forms for any report or return required in the administration of any tax in the performance of the Contract. The use of the Social Security number must be in accordance with the state Social Security Number Privacy Act 454 of 2004, as amended.

Confidential information obtained under this agreement will not be disclosed in part of a report or document that is subject to FOIA.

The penalties for violating the confidentiality provisions of the Revenue Act are contained in, MCL 205.28(2) and MCL 205.27(4). MCL 205.28(2) states:

“A person who violates subsection (1)(e), (1)(f), (4) or (5) is guilty of a felony, punishable by a fine of not more than \$5,000.00, or imprisonment for not more than 5 years, or both, together with the costs of prosecution. In addition, if the offense is committed by an employee of this state, the person will be dismissed from office or discharged from employment upon conviction.”

MCL 205.27(4) states:

A person who is not in violation pursuant to subsection (2), but who knowingly violates any other provision of this act, or of any statute administered under this act, is guilty of a misdemeanor, punishable by a fine of not more than \$1,000.00, or imprisonment for not more than 1 year, or both.

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Information received by Treasury from the U.S. Internal Revenue Service, pursuant to section 6103(d) of the Internal Revenue Code or any other federal agency will not be subject to the exchange.

III. Procedure for Security

~~Contractor will safeguard any tax return information obtained under the Contract as follows:-~~

~~A. Access to the tax returns and tax return information will be allowed only to those authorized employees and officials of Contractor who need the information to perform their official duties in connection with the uses of the information authorized in this Contract.~~

~~B. Any records created from tax returns and tax return information will be stored in an area that is physically safe from access by unauthorized persons during duty hours and locked in a secure area during non-duty hours, or when not in use.~~

~~C. Any records matched and any records created by the match will be processed under the immediate supervision and control of authorized personnel in a manner in which will protect the confidentiality of the records, and in such a way that unauthorized persons cannot retrieve any such records by means of a computer, remote terminal or other means.~~

~~D. All personnel who will have access to the tax returns and tax return information and to any records created by the tax return information will be advised annually of the confidential nature of the information, the safeguards required to protect the information and the civil and criminal sanctions for noncompliance contained in MCL 205.28 (2) and MCL 205.27(4) and will sign confidentiality certifications.~~

~~E. All confidential information, electronic and paper, will be secured from unauthorized access and with access limited to designated personnel only. State tax return information will not be commingled with other information. All Michigan tax returns and return information will be marked as follows: **CONFIDENTIAL - DO NOT DISCLOSE - MICHIGAN TREASURY TAX RETURN INFORMATION**~~

~~F. Treasury, Office of Privacy and Security or Contract Compliance Inspector may make onsite inspections or make other provisions to ensure that adequate safeguards are being maintained by the Contractor.~~

~~G. The Treasury Office of Privacy and Security may monitor compliance of systems security requirements during the lifetime of the Contract or any extension.~~

~~H. Contractor will also adopt policies and procedures to ensure that information contained in their respective records and obtained from Treasury and taxpayers will be used solely as stipulated in the Contract.~~

~~IV. Computer System Security of Tax Data~~

~~The identification of confidential tax records and defining security controls are intended to protect Treasury tax return information from unlawful disclosure, modification, destruction of information and unauthorized secondary uses.~~

~~Computer system security and physical security of tax data stored and processed by Contractor must be in compliance with the following security guidelines and standards established by Treasury. These guidelines apply to any computer system developed by Contractor, either through its own systems staff, or through a contractor, subcontractor or vendor):~~

~~A. Controlled Access Protection~~

~~All computer systems processing, storing and transmitting Michigan tax information must have computer access protection controls. These security standards are delineated in the National Institute of Standards and Technology (NIST) Special Publications number 800-53 "Recommended Security Controls for the Federal Information Systems" at <http://csrc.nist.gov/publications/PubsSPs.html>. To meet these standards, the operating security features of the system must have the following minimum requirements: a security policy, accountability, assurance, and documentation.~~

~~1. **Security Policy** — A security policy is a written document describing the system in terms of categories of data processed, users allowed access and access rules between the users and the data. Additionally, it describes procedures to prevent unauthorized access by clearing all protected information on objects before they are allocated or reallocated out of or into the system. Further protection must be provided where the computer system contains information for more than one program/project, office, or Agency and that personnel do not have authorization to see all information on the system.~~

~~2. **Accountability** — Computer systems processing Michigan tax information must be secured from unauthorized access. All security features must be available (audit trails, identification and authentication) and activated to prevent unauthorized users from indiscriminately accessing Michigan tax information. Everyone who accesses computer systems containing Michigan tax information is accountable. Access controls must be maintained to ensure that unauthorized access does not go undetected. Computer programmers and contractors who have a need to access databases, and are authorized under the law, must be held accountable for the work performed on the system. The use of passwords and access control measures must be in place to identify who accessed protected information and limit that access to persons with a need to know.~~

~~a) **On-line Access** — Users will be limited to any Treasury on-line functions, by limiting access through functional processing controls and organization restrictions.~~

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~~Any employee granted access privileges through the Contractor's Security Administrator will be approved for access and viewing rights to Treasury on-line systems by the Department of Treasury, Office of Privacy and Security.~~

~~b) Operating Features of System Security~~

~~Contractor must meet the following levels of protection with respect to tax return information. Individual user accountability must be ensured through user identification number and password.~~

~~i. Access rights to confidential tax information must be secured through appropriate levels of authorization.~~

~~ii. An audit trail must be maintained of accesses made to confidential information.~~

~~iii. All confidential and protected information must be cleared from a system before it is used for other purposes not related to the enforcement, collection or exchange of data not covered by this section or by an addendum to this Contract.~~

~~iv. Hard copies made of confidential tax return information must be labeled as confidential information.~~

~~v. Confidential Treasury tax information will be blocked or coded as confidential on system.~~

~~vi. Any computer system in which Michigan tax return information resides must systematically notify all users upon log in of the following disclosure penalties for improperly accessing or making an authorized disclosure of Michigan tax return information:~~

~~NOTICE TO EMPLOYEES AND AUTHORIZED REPRESENTATIVES~~

~~This system contains Michigan Department of Treasury tax return information. **DO NOT DISCLOSE OR DISCUSS MICHIGAN RELATED TAX RETURN INFORMATION** with unauthorized individuals. The Revenue Act at MCL 205.28(1)(f) prohibits such disclosure.~~

~~MICHIGAN PENALTIES~~

~~A person making a willful unauthorized disclosure or inspection (browsing) of tax return information may be charged with the following Michigan penalties:~~

~~• Criminal penalties up to \$5,000 and/or imprisonment for 5 years, plus costs and dismissal from employment if it is found that a current or former employee or authorized representative has made an unauthorized disclosure of a tax return or tax return information or divulged audit selection or processing parameters. [MCL 205.28(2)]~~

~~• A misdemeanor, punishable by a fine of not more than \$1,000.00, or imprisonment for not more than 1 year, or both if the person is not in violation pursuant to MCL 205.27(2), but who knowingly violates any other provision of this act, or of any statute administered under this act.~~

~~This statement is subject to modification. A confidentiality statement, subject to modification, will be sent as needed by the Security Administrator to all employees, contractors, and legal representatives of Contractor.~~

~~3. **Assurance** Contractor must ensure that all access controls and other security features are implemented and are working when installed on their computer system. Significant enhancements or other changes to a security system must follow the process of review, independent testing, and installation assurance. The security system must be tested at least annually to assure it is functioning correctly. All anomalies must be corrected immediately.~~

~~a. The Contractor must initiate corrective action for all non-conformities as soon as detected and immediately advise the Contract Compliance Inspector. Notice of the corrective action must be provided to the Contract Compliance Inspector. All non-conformities must be reported to the Contract Compliance Inspector with the following:~~

~~a. Duration of non-conformity/interruption~~

~~b. Reason for non-conformity/interruption~~

~~c. Resolution.~~

~~b. All non-conformities to the specifications/tasks of the Contract must be corrected within four (4) hours. The State recognizes there will be instances when adherence to this time frame will not be possible. However, the State will only tolerate this on an exception basis. To request an exception to this time frame, the Contractor must submit a detailed project plan to address the non-conformity within four (4) hours to the Contract Compliance Inspector for approval.~~

~~4. **Documentation** Design and test documentation must be readily available to the state. The developer or manufacturer should initially explain the security mechanisms, how they are implemented and their adequacy (limitations). This~~

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~~information should be passed on to the security officer or supervisor. Test documentation should describe how and what mechanisms were tested and the results. If recognized organizations/tests/standards are used, then a document to that effect will suffice. For example, a system that has been tested and certified as meeting certain criteria may have a document stating this fact, without detailed tests/results of information. Contractor, however, must ensure the documentation covers the exact system and that it includes the specific computer system used by Contractor.~~

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~~Additionally, documentation must include a security administrator's guide. The security administrator's guide is addressed to the System's Administrator and Security Officer and will describe the protection mechanisms provided by the security system, guidelines on their use and how they interact. This document will present cautions about security functions and describe privileges that should be controlled when running a secure system. The document will be secured and locked at all times with access rights only by the Systems Administrator and Security Officer.~~

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~~**Note:** When a security system is designed or purchased for a specific computer or computer system, the security mechanisms must be reviewed by the State to ensure that needed security parameters are met. An independent test should be implemented on the specific computer or computer system to ensure that the security system meets the security parameters within this contract and developed with the computer system. The test may be arranged by the developer but must be done by an independent organization. Contractor must assign responsible individuals (Security Officers) with knowledge of information technology and applications to oversee the testing process. These individuals must be familiar with technical controls used to protect the system from unauthorized entry.~~

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~~Finally, contingency and backup plans must be in place to ensure protection of Michigan tax information.~~

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V. Electronic Transmission of Michigan Tax Information

~~The two acceptable methods of transmitting Michigan tax information over telecommunications devices are encryption and using guided media. Encryption involves altering data objects in a way that the objects become unreadable until deciphered with the appropriate software at the intended destination. Guided media involves transmission of data over twisted pair cable, coaxial cable or end to end fiber optics which are typically used in secure computer networks like the state's Local Area Network (LAN), telephone systems, and television distribution.~~

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~~Cryptography standards have been adopted by the IRS and can be used to provide guidance for encryption, message authentication codes or digital signatures and digital signatures with or without an associated certification infrastructure. For further information, see IRS Publication 1075 at the IRS web site.~~

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~~Unencrypted cable circuits of fiber optics are an acceptable alternative for transmitting Michigan tax information. Adequate measures must be taken to ensure that circuits are maintained on cable and not converted to unencrypted radio or microwave transmission. Additional precautions should be taken to protect the cable, i.e., burying the cable underground or in walls or floors and providing access controls to cable vaults, rooms and switching centers.~~

~~A. Remote Access~~

~~Accessing databases containing Michigan tax information from a remote location—that is, a location not directly connected to the Local Area Network (LAN)—will require adequate safeguards to prevent unauthorized entry.~~

~~For remote access, the contractor is required to use an identification security card that requires both PIN and card in possession. The State identified and approved methods for remote vendor access are as follows:~~

- ~~• SecureID through VPN—State provided SecureID token and VPN software in order to access State of Michigan resources. Appropriate Acceptable Use policies and signoffs are required~~
- ~~• Follow the Sun SecureID—Vendor is provided with VPN software and a SOM technical resource coordinates with the DTMB Client Service Center to provide secure ID code access to specific State of Michigan resources. Appropriate Acceptable Use Policies and signoffs are required.~~

~~B. Portable Computer Devices~~

~~Any entrusted confidential information collected or accessed during this Contract must be encrypted when stored on all storage devices and media. This includes, but not limited to, disk drives for servers and workstations, and portable memory media (PDAs, RAM drives, memory sticks, etc.).~~

~~VI. Record Keeping Requirements for Information Received~~

~~Each Contractor, requesting and receiving information will keep an accurate accounting of the information received. The audit trail will be required which will include the following information:~~

- ~~a. Taxpayer's name~~
- ~~b. Identification number~~
- ~~c. Information requested~~
- ~~d. Purpose of disclosure request~~
- ~~e. Date information received~~
- ~~f. Name of Division and employee making request~~
- ~~g. Name of other employees who may have had access~~
- ~~h. Date destroyed~~
- ~~i. Method of destruction~~

~~The Contractor will adopt and implement formal procedures to:~~

-
- ~~Ensure proper handling of tax returns and tax return information;~~
- ~~Secure and safeguard information from unauthorized use; and~~
-
- ~~Ensure appropriate destruction of information and materials retrieved from Treasury.~~
-

~~A. Electronic Media~~

~~Contractor will keep an inventory of magnetic and electronic media received under the Contract.~~

~~Contractor must ensure that the removal of tapes and disks and paper documents containing Michigan tax return information from any storage area is properly recorded on charge-out records. Contractor is accountable for missing tapes, disks, and paper documents.~~

~~B. Recordkeeping Requirements of Disclosure Made to State Auditors~~

~~When disclosures are made by Contractor to State Auditors, these requirements pertain only in instances where the Auditor General's staff extracts Michigan tax returns or tax information for further review and inclusion in their work papers. Contractor must identify the hard copies of tax records or if the tax information is provided by magnetic tape format or through other electronic means, the identification will contain the approximate number of taxpayer's records, the date of inspection, the best possible description of the records and the name of the Auditor(s) making the inspection.~~

~~The Disclosure Officer must be notified, in writing, of any audits done by auditors, internal or otherwise, of Contractor that would involve review of Treasury processing parameters.~~

~~VII. Contract Services~~

~~To the extent the Contractor employs an independent agency, consultant, or agent to process confidential information which includes Michigan tax return information; the Contractor will notify the Treasury Disclosure Officer before the execution of any such agreement. Each agreement will include in the agreement the following recommended safeguard provisions:~~

-
- A. ~~The identification of confidential tax records and defining security controls are intended to protect Treasury tax return information from unlawful disclosure, modification, destruction of information and unauthorized secondary uses.~~
-

~~Definition of Treasury Tax Return Information as defined in Revenue Administrative Bulletin (RAB) 1989-39:~~

-
- B. ~~Taxpayer's identity, address, the source or amount of his/her income, payments, receipts, deductions, exemptions, credits, assets, liabilities, net worth, tax liability, tax withheld, deficiencies, over assessments, or tax payments~~

~~whether the taxpayer's return was, is being or will be examined or subject to their investigation or processing, or any other data, received by, recorded by, prepared by, furnished to or collected by the agency with respect to a return or with respect to the determination of the existence, or liability (or the amount thereof) of any person under the tax laws administered by the Department, or related statutes of the state for any tax, penalty, interest, fine, forfeiture, or other imposition or offense. The term "tax return information" also includes any and all account numbers assigned for identification purposes.~~

~~B. An acknowledgment that a taxpayer has filed a return is known as a "fact of filing" and may not be disclosed. All tax return data made available in any format will be used only for the purpose of carrying out the provisions of the Contract between Contractor and the sub-contractor. Information contained in such material will be treated as confidential and will not be divulged or made known in any manner to any person except as may be necessary in the performance of the Contract between Contractor and the subcontractor. In addition, all related output will be given the same level of protection as required for the source material.~~

~~C. The subcontractor will certify that the data processed during the performance of the Contract between Contractor and the subcontractor will be completely purged from all data storage components of the subcontractor's computer facility, and no output will be retained by the subcontractor at the time the work is completed.~~

~~D. Destruction of tax data, including any spoilage or any intermediate hard copy printout which may result during the processing of Michigan tax return information, will be documented with a statement containing the date of destruction, description of material destroyed, and the method used. Destruction parameters must meet the standards of Section IX, Disposal of Tax Information, of this agreement.~~

~~E. Computer system security and physical security of tax data stored and processed by the subcontractor must be in compliance with security guidelines and standards established by this contract. See section VI (Record Keeping Requirements for Information Received in Paper Format) for more details.~~

~~F. The Contractor will be responsible for maintaining a list of employees authorized to access Michigan tax return information and will provide a copy of such list to Treasury.~~

~~G. No work involving information furnished under the contract will be subcontracted without the specific approval of Treasury. Contractor and approved subcontractors handling Michigan tax return information will be required to sign the *Vendor, Contractor or Subcontractor Confidentiality Agreement* provided by Treasury, (Form 3337, see Attachment A). The original agreements will be returned to the Disclosure Officer for the Department of Treasury and a copy sent to the Contract Compliance Inspector.~~

~~VIII. Transport of Tax Information~~

~~In the event, it is necessary to transport confidential tax return information the Contractor is responsible for holding the carrier responsible for safeguarding the records. The Contractor must obtain a signed *Vendor, Contractor or Subcontractor Confidentiality Agreement* (Form 3337, see Attachment A) for each carrier employee who has access to Michigan tax return information. The original agreements will be returned to the Department of Treasury, Disclosure Officer and a copy sent to the Contract Compliance Inspector.~~

~~If it is necessary to transfer records and responsibility for transport to a third carrier due to a mishap during transportation, the Contractor is responsible for ensuring safeguard standards remain enforce. This type of incident will be documented in accordance with the incident reporting guidelines in procedure PT-03253, "Incident Reporting and Handling". Any such incidents must be reported to the Contract Administrator immediately.~~

~~IX. Disposal of Tax Information~~

~~Materials furnished to Contractor, such as tax returns, remittance vouchers, W-2 reports, correspondence, computer printouts, carbon paper, notes, memorandums and work papers will be destroyed by burning, mulching, pulverizing or shredding. If shredded, destroy paper using cross cut shredders which produce particles that are 1 mm x 5mm (0.04in x 0.2 in.) in size (or smaller).~~

~~Data tracks should be overwritten or reformatted a minimum of three times or running a magnetic strip over entire area of disk at least three (3) times to remove or destroy data on the disk media. Electronic data residing on any computer systems must be purged based on Treasury's retention schedule.~~

~~Contractor and its subcontractor(s) will retain all confidential tax information received by Treasury only for the period of time required for any processing relating to the official duties and then will destroy the records. Any confidential tax information that must be kept to meet evidentiary requirements must be kept in a secured, locked area and properly labeled as confidential return information. See Procedure for Security (Section III of this agreement) for more details.~~

~~X. Security Responsibility~~

~~Contractor will designate a security person who will ensure that each individual having access to confidential tax information or to any system which processes Michigan tax return information is appropriately screened, trained and executes a *Vendor, Contractor or Subcontractor Confidentiality Agreement* (Form 3337, see Attachment A) before gaining access or transaction rights to any process and computer system containing Treasury tax return information.~~

~~Each Contractor or their subcontractor(s) employees' access and transaction rights will be reviewed periodically to ensure that there is a need to know Treasury tax return information displayed in any media.~~

~~Michigan tax return information will be made available only to individuals authorized by the Contract. Contractor will maintain a list of persons authorized to request and receive information~~

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~~and will update the list as necessary. A copy of the list must be furnished to the Michigan Department of Treasury Disclosure Officer and Contract Compliance Inspector.~~

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~~XI. Security Breach Notification~~

~~The Contractor is required to report to Treasury, on Form 4000, Incident Reporting (Attachment B) any use or disclosure of confidential information, whether suspected or actual, immediately after becoming aware of the misuse or disclosure. The Contractor may substitute its internal form for Form 4000 if all pertinent information is included.~~

~~-~~

~~The Contractor agrees to immediately contain the breach if it is determined ongoing.~~

~~-~~

~~Treasury has the right to terminate the Contract when a breach has occurred, and the Contractor cannot demonstrate proper safeguards were in place to avert a breach. Treasury must approve Contractor's resolution to the breach.~~

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~~XII. Certification of Compliance~~

~~The Contractor will fully protect State Tax Information (STI) entrusted to them. Each Contractor or subcontractor who will have access to STI must read and sign a confidentiality agreement. This contract requires that all information obtained from the Michigan Department of Treasury under the Revenue Act, PA 122 of 1941, MCL 205.28 (1)(f) be kept confidential. In the event of a security breach involving STI in the possession of the Contractor, the Contractor agrees to provide full cooperation to conduct a thorough security review. The review will validate compliancy with the Contract, and state laws and regulations.~~

~~-~~

~~If, as a result of the Contractor's failure to perform as agreed, the State is challenged by a governmental authority or third party as to its conformity to or compliance with State, Federal and local statutes, regulations, ordinances or instructions, the Contractor will be liable for the cost associated with loss of conformity or compliance.~~

~~-~~

~~The Contractor understands the cost reflects violation fines identified by the Michigan Social Security Number Privacy Act, 454 of 2004 and the Michigan Identity Theft Protection Act, Act 452 of 2004 as amended.~~

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~~XI. Effective Date~~

~~These Safeguard requirements will be reviewed whenever the Contract modifications include specifications or processes that affect tax data.~~

Reset Form

Michigan Department of Treasury
3337 (Rev. 10-16)

Vendor, Contractor or Subcontractor Confidentiality Agreement

The Revenue Act, Public Act 122 of 1941, MCL 205.28(1)(f), the City Income Tax Act, Public Act 284 of 1964, MCL 141.674(1), and Internal Revenue Code (IRC) 6103(d), make all information acquired in administering taxes confidential. The Acts and IRC hold a vendor, contractor or subcontractor and their employees who sell a product or provide a service to the Michigan Department of Treasury, or who access Treasury data, to the strict confidentiality provisions of the Acts and IRC. Confidential tax information includes, but is not limited to, information obtained in connection with the administration of a tax or information or parameters that would enable a person to ascertain the audit selection or processing criteria of the Michigan Department of Treasury for a tax administered by the department.

INSTRUCTIONS. Read this entire form before you sign it. If you do not complete this agreement, you will be denied access to Michigan Department of Treasury and federal tax information. After you and your witness sign and date this form, keep a copy for your records. Send the original to the address listed below.

Company Name and Address (Street or RR#, City, State, ZIP Code)		Last Name	First Name
		Driver License Number/Passport Number	Telephone Number
State of Michigan Department	Division	Subcontractor Name if Product/Service Furnished to Contractor	
Describe here or in a separate attachment the product or service being provided to the State of Michigan Agency (Required).			

Confidentiality Provisions. It is illegal to reveal or browse, except as authorized:

- All tax return information obtained in connection with the administration of a tax. This includes information from a tax return or audit and any information about the selection of a return for audit, assessment or collection, or parameters or tolerances for processing returns.
- All Michigan Department of Treasury or federal tax returns or tax return information made available, including information marked "Official Use Only". Tax returns or tax return information shall not be divulged or made known in any manner to any person except as may be needed to perform official duties. Access to Treasury or federal tax information, in paper or electronic form, is allowed on a **need-to-know** basis only. Before you disclose returns or return information to other employees in your organization, they must be authorized by Michigan Department of Treasury to receive the information to perform their official duties.
- Confidential information shall not be disclosed by a department employee to confirm information made public by another party or source which is part of any public record. 1999 AC, R 2005.1004(1).

Violating confidentiality laws is a felony, with penalties as described:

Michigan Penalties

MCL 205.28(1)(f) provides that you may not willfully disclose or browse any Michigan tax return or information contained in a return. Browsing is defined as examining a return or return information acquired without authorization and without a **need to know** the information to perform official duties. Violators are guilty of a **felony** and subject to **fines of \$5,000 or imprisonment for five years, or both**. State employees will be discharged from state service upon conviction.

Any person who violates any other provision of the Revenue Act, MCL 205.1, et seq., or any statute administered under the Revenue Act, will be guilty of a misdemeanor and **fined \$1,000 or imprisonment for one year, or both**, MCL 205.27(4).

City Penalties

MCL 141.674(2) provides that any person divulging confidential City Tax information is guilty of a misdemeanor and subject to a fine not exceeding \$500 or imprisonment for a period not exceeding 90 days, or both, for each offense.

Federal Penalties

If you willfully disclose federal tax returns or tax return information to a third party, you are guilty of a **felony with a fine of \$5,000 or imprisonment for five years, or both, plus prosecution costs** according to the Internal Revenue Code (IRC) §7213, 26 USC 7213.

In addition, inspecting, browsing or looking at a federal tax return or tax return information without authorization is a **felony violation** of IRC §7213A subjecting the violator to a **\$1,000 fine or imprisonment for one year, or both, plus prosecution costs**. Taxpayers affected by violations of §7213A must be notified by the government and may bring a civil action against the federal government and the violator within two years of the violation. Civil damages are the **greater of \$1,000 or actual damages** incurred by the taxpayer, plus the costs associated with bringing the action, 26 USC 7431.

Failure to comply with this confidentiality agreement may jeopardize your employer's contract with the Michigan Department of Treasury.

Certification		
By signing this Agreement, I certify that I have read the above confidentiality provisions and understand that failure to comply is a felony.		
Print name of employee signing this agreement	Signature of person named above	Date signed
Print Witness Name (Required)	Signature of Witness (Required)	Date signed

Submit your form to the following address:

Office of Privacy and Security/ Disclosure Unit
Michigan Department of Treasury
430 W. Allegan Street
Lansing, MI 48922

Questions, contact the Office of Privacy and Security by telephone, 517-636-4239; fax, 517-636-5340; or email:

Treas_Disclosure@michigan.gov

Michigan Department of Treasury
4000 (Rev. 05-14)

Reset Form

Incident Report

INSTRUCTIONS: Complete Parts 1 and 2 and immediately submit Initial Report to the Office of Privacy and Security. After incident resolution, submit Final Report (Parts 1, 2 and 3) to the Office of Privacy and Security. Refer to Procedure PT-03253, Incident Reporting and Handling.

PART 1: A. CONTACT INFORMATION (Reporting Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
Telephone Number	Fax Number	E-Mail Address	
B. CONTACT INFORMATION (Affected Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
Telephone Number	Fax Number	E-Mail Address	
PART 2: INCIDENT INFORMATION			
Whose information was involved in the incident?			
☐ Treasury ☐ Federal Tax Information ☐ Other State Agency, specify _____ ☐ Other _____			
Incident Category (select all that apply)			
☐ Passwords Shared/Stolen	☐ Computer Virus/Spam	☐ Paper Archives Compromised	
☐ Misrouted Communications	☐ Data Destruction/Deletion	☐ Safe/Lockbox/other Compromise	
☐ Unauthorized Access	☐ Backups Missing or Stolen	☐ Delivery of Documents Lost	
☐ Fraudulent Actions	☐ Hacking of Networks/Systems	☐ Inappropriate Destruction Paper	
☐ Lost/Stolen Information/Data	☐ Improperly Secured Sys/Web	☐ Inappropriate Destruction Media	
☐ Lost/Stolen Cash/Checks	☐ Circumvention of Security Protocols	☐ Lost/Stolen Equipment	
☐ Inappropriate Building Access	☐ _____	☐ _____	
Incident Affects			
☐ Financial Information/Resources	☐ Personal Information (SSN, Driver License No. Financial information)	☐ Unauthorized/Unlawful Activity	
☐ Confidential/Sensitive Information	☐ Human Resources (threat)	☐ Other _____	
Date Incident Occurred	Time Incident Occurred	Date Incident Discovered	Time Incident Discovered
Incident Location		Number of Individuals Affected	
Involved Parties/Entities		Does this involve personal information (first and last name along with a SSN, driver license number, or credit/debit card account number)? ☐ Yes ☐ No	
Date of Initial Report			
Description of Incident			

4000, Page 2

PART 1: CONTACT INFORMATION (Affected Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
PART 3: INCIDENT RESOLUTION			
Notification issued to affected individuals? ☐ Yes ☐ No	How many notifications were sent?	Breach Notification Method? ☐ E-mail ☐ Telephone ☐ US Mail ☐ Web	
Who was notified?		Date notification was issued	
Incident Cost ☐ Check if incident costs are less than \$250. If \$250 or more, complete the detailed summary of costs below.			
Manhours: Treasury \$ _____ DTMB-OES \$ _____ DTMB-Treasury Agency Services \$ _____		Other: Postage \$ _____ Credit Monitoring Service \$ _____ \$ _____ Total Cost of Incident \$ _____	
Action Taken			
Incident Impact			
Post Incident Recommendations			
PART 4: REPORT PREPARER INFORMATION			
Final Report Prepared By:	Date Prepared	Preparer Title	Preparer's Telephone Number
Preparer Signature			Date
OFFICE OF PRIVACY AND SECURITY USE ONLY			
Administrator, Office of Privacy and Security Signature			Date

SCHEDULE E, Attachment 1 – PCI Compliance and CEPAS

BIDDER RESPONSE: Google already substantially satisfies the requirements outlined in this Schedule E - Attachment 1 – PCI Compliance and CEPAS through the Data Processing and Security Terms of Contract No. 230000000200; and proposes that the Parties take advantage of the existing contract and schedules therein, by superseding and replacing in its entirety this Schedule E - Attachment 1 with the existing Terms of Services. Google is open to discussing any contract-specific modifications the State of Michigan may propose for this opportunity during negotiations.

For more information about Google PCI Compliance, please visit
<https://cloud.google.com/security/compliance/pci-dss?e=48754805&hl=en>

~~1. PCI Compliance.~~

~~Contractors that process, transmit store or affect the security of credit/debit cardholder data, must adhere to the PCI Data Security Standard. The Contractor is responsible for the security of cardholder data in its possession. The data may only be used to assist the State or for other uses specifically authorized by law.~~

~~The Contractor must notify the State's Contract Administrator (within 48 hours of discovery) of any breaches in security where cardholder data has been compromised. In that event, the Contractor must provide full cooperation to the card associations (e.g. Visa, MasterCard, Discover, and American Express) and state acquirer representative(s), or a PCI approved third party, to conduct a thorough security review. The Contractor must provide, at the request of the State, the results of such third party security review. The review must validate compliance with the PCI Data Security Standard for protecting cardholder data. At the State's sole discretion, the State may perform its own security review, either by itself or through a PCI approved third party.~~

~~The Contractor is responsible for all costs incurred as the result of the breach. Costs may include, but are not limited to, fines/fees for non-compliance, card reissuance, credit monitoring, and any costs associated with a card association, PCI approved third party, or State initiated security review.~~

~~Without limiting Contractor's obligations of indemnification as further described in this Contract, Contractor must indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State in connection with the breach.~~

~~The Contractor must dispose of cardholder data when it is no longer needed in compliance with PCI-DSS policy. The Contractor must continue to treat cardholder data as confidential upon contract termination.~~

~~The Contractor must provide the State's Contract Administrator with an annual Attestation of Compliance (AOC) if or a Report on Compliance (ROC) showing the contractor is in compliance with the PCI Data Security Standard. The Contractor must notify the State's Contract Administrator of all failures to comply with the PCI Data Security Standard.~~

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~~2. CEPAS Electronic Receipt Processing Standard.~~

~~All electronic commerce applications that allow for electronic receipt of credit or debit card and electronic check transactions must be processed via the State's Centralized Electronic Payment Authorization System (CEPAS). To minimize the risk to the State, full credit/debit card numbers, sensitive authentication data, and full bank account information must never be stored on state-owned IT resources. For additional information, refer to the CEPAS Integration Guide that can be found at:~~

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~~https://stateofmichigan.sharepoint.com/teams/insidetreasury/about-treasury/work-areas/Documents/CEPAS/Integration%20Guides%20and%20Hotfix%20Notes/PayPoint%20Merchant%20Integration%20Guide%202.14.2021.pdf?CT=1623169629598&OR=Outlook_Body&CID=97F008F1-D094-4ED7-9335-63E0B12988E6~~

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SCHEDULE E, Attachment C - HIPAA BUSINESS ASSOCIATE AGREEMENT

BIDDER RESPONSE: BIDDER RESPONSE: Google would like to propose changes to the HIPAA BAA under this Schedule E, Attachment C – HIPAA Business Associate Agreement to fit the unique nature of Google Cloud services. Changes proposed are largely aligned with the model BAA from HHS.

The parties to this Business Associate Agreement (“Agreement”) are the Michigan Department of Technology, Management and Budget (“DTMB”, “Business Associate 1”) on behalf of **[Insert Name of End-User Agency whose PHI is involved]** (“Covered Entity”) and **[Insert Name of Contractor who will be handling PHI]** “Business Associate 2”.

RECITALS

- A. Under this Agreement, Business Associate 2 will collect or receive certain information on the Covered Entity’s behalf, some of which may constitute Protected Health Information (“PHI”). In consideration of the receipt of PHI, the Business Associate agrees to protect the privacy and security of the information as set forth in this Agreement.
- B. Covered Entity and each Business Associate intend to protect the privacy and provide for the security of PHI collected or received by the Business Associate under the Agreement in compliance with the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191 (“HIPAA”) and the HIPAA Rules, as amended.
- C. The HIPAA Rules require the Covered Entity to enter into an agreement containing specific requirements with Business Associate 1, and likewise Business Associate 1 must enter an agreement with Business Associate 2 before the Business Associate 2’s receipt of PHI.

AGREEMENT

1. Definitions.

a. The following terms used in this Agreement have the same meaning as those terms in the HIPAA Rules: Breach; Data Aggregation; Designated Record Set; Disclosure; Health Care Obligations; Individual; Minimum Necessary; Notice of Privacy Practices; Protected Health Information; Required by Law; Secretary;

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Security Incident; Security Measures, Subcontractor; Unsecured Protected Health Information, and Use.

b. “Business Associate” has the same meaning as the term “business associate” at 45 CFR 160.103 and regarding this Agreement means DTMB (“Business Associate 1”) and **[Insert Name of Contractor]** (“Business Associate 2”).

c. “Covered Entity” has the same meaning as the term “covered entity” at 45 CFR 160.103 and regarding this Agreement means the **[Insert Name of End-User Agency whose PHI is involved]**.

d. “HIPAA Rules” means the Privacy, Security, Breach Notification, and Enforcement Rules at 45 CFR Part 160 and Part 164.

2. Obligations of Business Associate 2.

Business Associate 2 agrees to:

a. use and disclose PHI only as permitted or required by this Agreement or as required by law.

b. implement and use appropriate safeguards and comply with Subpart C of 45 CFR 164 regarding electronic protected health information, to prevent use or disclosure of PHI other than as provided in this Agreement. Business Associate 2 must maintain, and provide a copy to the Covered Entity and Business Associate 1 within 10 days of a request from the Covered Entity or Business Associate 1, a comprehensive written information privacy and security program that includes security measures that reasonably and appropriately protect the confidentiality, integrity, and availability of PHI relative to the size and complexity of Business Associate 2’s operations and the nature and the scope of its activities.

c. report to the Covered Entity and Business Associate 1 within 24 hours of any use or disclosure of PHI not provided for by the Agreement of which it becomes aware, including breaches of Unsecured Protected Health Information as required by 45 CFR 164.410, and any Security Incident of which it becomes aware. If Business Associate 2 is responsible for any unauthorized use or disclosure of PHI, it must promptly act as required by applicable federal and State laws and regulations. Covered Entity and Business Associate 2 will cooperate in investigating whether a breach has occurred, to decide how to provide breach notifications to individuals, the federal Health and Human Services’ Office for Civil Rights, and potentially the media.

d. ensure, according to 45 CFR 164.502(e)(1)(ii) and 164.308(b)(2), if applicable, that any subcontractors that create, receive, maintain, or transmit PHI on behalf of Business Associate 2 agree to the same restrictions, conditions, and requirements that apply to Business Associate 2 regarding such information. Each subcontractor must sign an agreement with Business Associate 2 containing substantially the same provisions as this Agreement and further identifying Business Associate 1 and Covered Entity as a third-party beneficiary of the agreement with the subcontractor. Business Associate 2 must implement and maintain sanctions against subcontractors that violate such restrictions and conditions and must mitigate the effects of any such violation.

e. make available PHI in a Designated Record Set to the Covered Entity within 10 days of a request from the Covered Entity to satisfy the Covered Entity's obligations under 45 CFR 164.524.

f. within ten days of a request from the Covered Entity, amend PHI in a Designated Record Set under, 45 CFR § 164.526. If any individual requests an amendment of PHI directly from Business Associate 2 or its agents or subcontractors, Business Associate 2 must notify the Covered Entity in writing within five days of the request and amend the information within ten days of the request. Any denial of amendment of PHI maintained by Business Associate 2 or its agents or subcontractors is the responsibility of Business Associate 2.

g. maintain, and within ten days of a request from the Covered Entity make available, the information required to provide an accounting of disclosures to enable the Covered Entity to fulfill its obligations under 45 CFR § 164.528. Business Associate 2 is not required to provide an accounting to the Covered Entity of disclosures: (i) to carry out treatment, payment or health care operations, as set forth in 45 CFR § 164.506; (ii) to individuals of PHI about them as set forth in 45 CFR § 164.502; (iii) under an authorization as provided in 45 CFR § 164.508; (iv) to persons involved in the individual's care or other notification purposes as set forth in 45 CFR § 164.510; (v) for national security or intelligence purposes as set forth in 45 CFR § 164.512(k)(2); (vi) to correctional institutions or law enforcement officials as set forth in 45 CFR § 164.512(k)(5); (vii) as part of a limited data set according to 45 CFR 164.514(e); or (viii) that occurred before the compliance date for the Covered Entity. Business Associate 2 agrees to implement a process that allows for an accounting to be collected and maintained by Business Associate 2 and its agents or subcontractors for at least six years before the request, but not before the compliance date of the Privacy Rule. At a minimum, such information must include: (i) the date of disclosure; (ii) the name of the entity or person who received PHI and, if known, the address of the entity or person; (iii) a brief description of PHI disclosed; and (iv) a brief statement of purpose of the disclosure that

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reasonably informs the individual of the basis for the disclosure or a copy of the written request for disclosure. If the request for an accounting is delivered directly to Business Associate 2 or its agents or subcontractors, Business Associate 2 must, within ten days of the receipt of the request, forward it to the Covered Entity in writing.

h. to the extent Business Associate 2 is to carry out one or more of the Covered Entity's obligations under Subpart E of 45 CFR Part 164, comply with the requirements of Subpart E that apply to the Covered Entity when performing those obligations.

i. make its internal practices, books, and records relating to Business Associate 2's use and disclosure of PHI available to the Secretary for purposes of determining compliance with the HIPAA Rules. Business Associate 2 must concurrently provide to the Covered Entity a copy of any PHI that the Business Associate 2 provides to the Secretary.

j. retain all PHI throughout the term of the Agreement and for a period of six years from the date of creation or the date when it last was in effect, whichever is later, or as required by law. This obligation survives the termination of the Agreement.

k. implement policies and procedures for the final disposition of PHI and the hardware and equipment on which it is stored, including but not limited to, removal of PHI before re-use.

l. within ten days of a written request by the Covered Entity, Business Associate 2 and its agents or subcontractors must allow the Covered Entity to conduct a reasonable inspection of the facilities, systems, books, records, agreements, policies and procedures relating to the use or disclosure of PHI under this Agreement. Business Associate 2 and the Covered Entity will mutually agree in advance upon the scope, timing and location of such an inspection. Covered Entity must protect the confidentiality of all confidential and proprietary information of Business Associate 2 to which the Covered Entity has access during the course of such inspection. Covered Entity and Business Associate 2 will execute a nondisclosure agreement, if requested by the other party. The fact that the Covered Entity inspects, or fails to inspect, or has the right to inspect, Business Associate 2's facilities, systems, books, records, agreements, policies and procedures does not relieve Business Associate 2 of its responsibility to comply with this Agreement. Covered Entity's (i) failure to detect or (ii) detection, but failure to notify Associate or require Associate's remediation of any unsatisfactory practices, does not constitute acceptance of such practice or a waiver of the Covered Entity's enforcement rights under this Agreement.

3. Permitted Uses and Disclosures by the Business Associate.

- a. Business Associate 2 may use or disclose PHI:
 - (1) for the proper management and administration of Business Associate 2 or to carry out the legal responsibilities of Business Associate 2; provided, however, either (A) the disclosures are required by law, or (B) Business Associate 2 obtains reasonable assurances from the person to whom the information is disclosed that the information will remain confidential and used or further disclosed only as required by law or for the purposes for which it was disclosed to the person, and the person notifies Business Associate 2 of any instances of which it is aware in which the confidentiality of the information has been breached;
 - (2) as required by law;
 - (3) for Data Aggregation services relating to the health care operations of the Covered Entity;
 - (4) to de-identify, consistent with 45 CFR 164.514(a) – (c), PHI it receives from the Covered Entity. If Business Associates 2 de-identifies the PHI it receives from the Covered Entity, Business Associate 2 may use the de-identified information for any purpose not prohibited by the HIPAA Rules; and
 - (5) for any other purpose listed here: **[describe how Business Associate 2 will use and/or disclose PHI under this Agreement].**
- b. Business Associate 2 agrees to make uses and disclosures and requests for PHI consistent with the Covered Entity's minimum necessary policies and procedures.
- c. Business Associate 2 may not use or disclose PHI in a manner that would violate Subpart E of 45 CFR Part 164 if done by the Covered Entity except for the specific uses and disclosures described above in 3(a)(i) and (iii).

4. Covered Entity's Obligations

Covered entity agrees to:

- a. use its Security Measures to reasonably and appropriately maintain and ensure the confidentiality, integrity, and availability of PHI transmitted to Business Associate 2 under this Agreement until the PHI is received by Business Associate 2.
- b. provide Business Associate 2 with a copy of its Notice of Privacy Practices and must notify the Business Associate of any limitations in the Notice of Privacy Practices of the Covered Entity under 45 CFR 164.520 to the extent that such limitation may affect Business Associate 2's use or disclosure of PHI.

- c. notify Business Associate 2 of any changes in, or revocation of, the permission by an individual to use or disclose the individual's PHI to the extent that such changes may affect Business Associate 2's use or disclosure of PHI.
- d. notify Business Associate 2 of any restriction on the use or disclosure of PHI that the Covered Entity has agreed to or is required to abide by under 45 CFR 164.522 to the extent that such restriction may affect Business Associate 2's use or disclosure of PHI.

5. Term. This Agreement continues in effect until terminated or is replaced with a new agreement between the parties containing provisions meeting the requirements of the HIPAA Rules, whichever first occurs.

6. Termination.

a. Material Breach. In addition to any other provisions in the Agreement regarding breach, a breach by Business Associate 2 of any provision of this Agreement, as determined by the Covered Entity, constitutes a material breach of the Agreement and provides grounds for Business Associate 1 to terminate this Agreement for cause at the request of Covered Entity. Termination for cause is subject to 6.b.:

(1) Default. If Business Associate 2 refuses or fails to timely perform any of the provisions of this Agreement, the Covered Entity may notify Business Associate 2 in writing of the non-performance, and if not corrected within thirty days, Business Associate 1 may immediately terminate the Agreement at the request of Covered Entity. The Business Associate 2 must continue performance of the Agreement to the extent it is not terminated.

(2) Business Associate 2's Duties. Notwithstanding termination of the Agreement, and subject to any directions from the Covered Entity or Business Associate 1, Business Associate 2 must protect and preserve property in the possession of Business Associate 2 in which the Covered Entity has an interest.

(3) Erroneous Termination for Default. If Business Associate 1 terminates this Agreement at the request of Covered Entity under Section 6(a) and after such termination it is determined, for any reason, that Business Associate 2 was not in default, then such termination will be treated as a termination for convenience, and the rights and obligations of the parties will be the same as if the Agreement had been terminated for convenience.

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b. Reasonable Steps to Cure Breach. If the Covered Entity or Business Associate 1 knows of a pattern of activity or practice of Business Associate 2 that constitutes a material breach or violation of Business Associate 2's obligations under the provisions of this Agreement or another arrangement and does not terminate this Agreement under Section 6(a), then the Business Associate 1, at the request of Covered Entity or on its own accord, must notify Business Associate 2 of the pattern of activity or practice. Business Associate 2 must then take reasonable steps to cure such breach or end such violation, as applicable. If the Business Associate 2's efforts to cure such breach or end such violation are unsuccessful, Business Associate 1, at the request of the Covered Entity or on its own accord, may either (i) terminate this Agreement, if feasible or (ii) report Business Associate 2's breach or violation to the Secretary.

c. Effect of Termination. After termination of this Agreement for any reason, the Business Associate, with respect to PHI it received from the Covered Entity, or created, maintained, or received by Business Associate 2 on behalf of the Covered Entity, must:

(1) retain only that PHI which is necessary for Business Associate 2 to continue its proper management and administration or to carry out its legal responsibilities;

(2) return to the Covered Entity (or, if agreed to by the Covered Entity in writing, destroy) the remaining PHI that Business Associate 2 still maintains in any form;

(3) continue to use appropriate safeguards and comply with Subpart C of 45 CFR Part 164 with respect to electronic protected health information to prevent use or disclosure of the PHI, other than as provided for in this Section, for as long as Business Associate 2 retains the PHI;

(4) not use or disclose the PHI retained by Business Associate 2 other than for the purposes for which such PHI was retained and subject to the same conditions set out at Section 3(a)(1) which applied before termination; and

(5) return to the Covered Entity (or, if agreed to by the Covered Entity in writing, destroy) the PHI retained by Business Associate 2 when it is no longer needed by Business Associate 2 for its proper management and administration or to carry out its legal responsibilities.

7. No Waiver of Immunity. The parties do not intend to waive any of the immunities, rights, benefits, protection, or other provisions of the Michigan Governmental Immunity Act, MCL 691.1401, *et seq.*, the Federal Tort Claims Act, 28 U.S.C. 2671 *et seq.*, or the common law.

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8. Data Ownership. Business Associate 2 has no ownership rights in the PHI. The covered entity retains all ownership rights of the PHI.
9. Disclaimer. Neither Business Associate 1, nor the Covered Entity, warrants or represents that compliance by Business Associate 2 with this Agreement, HIPAA, or the HIPAA Rules will be adequate or satisfactory for Business Associate 2's own purposes. Business Associate 2 is solely responsible for all decisions made by Business Associate 2 regarding the safeguarding of PHI.
10. Certification. If the Covered Entity determines an examination is necessary to comply with the Covered Entity's legal obligations under HIPAA relating to certification of its security practices, the Covered Entity or its authorized agents or contractors, may, at the Covered Entity's expense, examine Business Associate 2's facilities, systems, procedures and records as may be necessary for such agents or contractors to certify to the Covered Entity the extent to which Business Associate 2's security safeguards comply with HIPAA, the HIPAA Rules or this Agreement.
11. Amendment. The parties acknowledge that state and federal laws relating to data security and privacy are rapidly evolving and that amendment of this Agreement may be required to provide for procedures to ensure compliance with such developments. The parties specifically agree to take such action as is necessary to implement the standards and requirements of HIPAA and the HIPAA Rules. Upon the request of either party, the other party agrees to promptly enter into negotiations concerning the terms of an amendment to this Agreement embodying written assurances consistent with the standards and requirements of HIPAA and the HIPAA Rules. Either party may terminate the Agreement upon thirty days written notice if (i) one party does not promptly enter into negotiations to amend this Agreement when requested by the other party or (ii) Business Associate 2 does not enter into an amendment to this Agreement providing assurances regarding the safeguarding of PHI that the Covered Entity, in its sole discretion, deems sufficient to satisfy the standards and requirements of HIPAA or the HIPAA Rules.
12. Assistance in Litigation or Administrative Proceedings. Business Associate 2 must make itself, and any subcontractors, employees or agents assisting Business Associate 2 in the performance of its obligations under this Agreement, available to the Covered Entity or Business Associate 1, at no cost to the Covered Entity or Business Associate 1, to testify as witnesses, or otherwise, if litigation or administrative proceedings are commenced against the Covered Entity or Business Associate 1, its directors, officers or employees, departments, agencies, or divisions based upon a claimed violation of HIPAA or the HIPAA Rules or other laws relating to Business Associate 2's or its subcontractors use or disclosure of PHI under this

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Agreement, except where Business Associate 2 or its subcontractor, employee or agent is a named adverse party.

13. No Third-Party Beneficiaries. Nothing express or implied in this Agreement is intended to confer upon any person other than the Covered Entity, Business Associate 1, Business Associate 2 and their respective successors or assigns, any rights, remedies, obligations or liabilities whatsoever.

14. Interpretation and Order of Precedence. Any ambiguity in this Agreement must be interpreted to permit compliance with the HIPAA Rules. Where the provisions of this Agreement differ from those mandated by the HIPAA Rules, but are nonetheless permitted by the HIPAA Rules, the provisions of this Agreement control.

15. Effective Date. This Agreement is effective upon receipt of the last approval necessary and the affixing of the last signature required.

16. Survival of Certain Agreement Terms. Notwithstanding any contrary provision in this Agreement, the Business Associate 2's obligations under Section 6(d) and record retention laws ("Effect of Termination") and Section 12 ("No Third-Party Beneficiaries") survive termination of this Agreement and are enforceable by the Covered Entity or Business Associate 1.

17. Representatives and Notice.

a. Representatives. The individuals listed below are designated as the parties' respective representatives for purposes of this Agreement. Either party may from time to time designate in writing new or substitute representatives.

b. Notices. All required notices must be in writing and must be hand delivered or given by certified or registered mail to the representatives at the addresses set forth below.

Covered Entity Representative [Replace this if Covered Entity is not DHHS]:

James Bowen_____
Privacy and Security Manager
MDHHS Compliance Office_____
333 South Grand Ave, 4th Floor
Lansing, MI 48933
(517) 284-1018
MDHHSPrivacySecurity@michigan.gov

Business Associate 1 Representative [Insert DTMB Representative here – Buyer for non-IT, BRM for IT]:

Name:
Title:
Department: _____
Address:
Phone:
Email:

Business Associate 2 Representative:

Name:
Title:
Department:
Address:
Phone:
Email:

Any notice given to a party under this Agreement shall be deemed effective, if addressed to such party, upon: (i) delivery, if hand delivered; or (ii) the third Business Day after being sent by certified or registered mail.

**DTMB as Business Associate 1, on
behalf of [Covered Entity]**

Business Associate 2

[INSERT NAME]

By: _____ By: _____

Date: _____ Date: _____

Print Name: _____ Print Name: _____

Title: _____ Title: _____

FEDERAL BUREAU OF INVESTIGATION CRIMINAL JUSTICE INFORMATION SERVICES SECURITY ADDENDUM

BIDDER RESPONSE: As individual use cases are implemented, the Parties can implement appropriate controls depending on the need. For reference, Google Cloud offers security controls to protect and store CJJ through [Assured Workloads for Google Cloud](#). The State of Michigan can achieve compliance with the CJIS Security Policy by implementing these controls for the in-scope Google Cloud services identified at <https://cloud.google.com/security/compliance/cjis>

~~The goal of this document is to augment the CJIS Security Policy to ensure adequate security is provided for criminal justice systems while (1) under the control or management of a private entity or (2) connectivity to FBI CJIS Systems has been provided to a private entity (contractor). Adequate security is defined in Office of Management and Budget Circular A-130 as "security commensurate with the risk and magnitude of harm resulting from the loss, misuse, or unauthorized access to or modification of information."~~

~~The intent of this Security Addendum is to require that the Contractor maintain a security program consistent with federal and state laws, regulations, and standards (including the CJIS Security Policy in effect when the contract is executed), as well as with policies and standards established by the Criminal Justice Information Services (CJIS) Advisory Policy Board (APB).~~

~~This Security Addendum identifies the duties and responsibilities with respect to the installation and maintenance of adequate internal controls within the contractual relationship so that the security and integrity of the FBI's information resources are not compromised. The security program shall include consideration of personnel security, site security, system security, and data security, and technical security.~~

~~The provisions of this Security Addendum apply to all personnel, systems, networks and support facilities supporting and/or acting on behalf of the government agency.~~

~~1. Definitions~~

~~1. Contracting Government Agency (CGA) - the government agency, whether a Criminal Justice Agency or a Noncriminal Justice Agency, which enters into an agreement with a private contractor subject to this Security Addendum.~~

~~2. Contractor - a private business, organization or individual which has entered into an agreement for the administration of criminal justice with a Criminal Justice Agency or a Noncriminal Justice Agency.~~

~~1. Responsibilities of the Contracting Government Agency.~~

~~1. The CGA will ensure that each Contractor employee receives a copy of the Security Addendum and the CJIS Security Policy and executes an acknowledgment of such receipt and the contents of the Security Addendum. The signed acknowledgments shall remain in the possession of the CGA and available for audit purposes. The acknowledgement may be signed by hand or via digital signature (see glossary for definition of digital signature).~~

~~1. Responsibilities of the Contractor.~~

~~1. The Contractor will maintain a security program consistent with federal and state laws, regulations, and standards (including the CJIS Security Policy in effect when the contract is executed and all subsequent versions), as well as with policies and standards established by the Criminal Justice Information Services (CJIS) Advisory Policy Board (APB).~~

~~1. Security Violations.~~

~~1. The CGA must report security violations to the CJIS Systems Officer (CSO) and the Director, FBI, along with indications of actions taken by the CGA and Contractor.~~

~~2. Security violations can justify termination of the appended agreement.~~

~~3. Upon notification, the FBI reserves the right to:~~

~~a. Investigate or decline to investigate any report of unauthorized use;~~

~~b. Suspend or terminate access and services, including telecommunications links. The FBI will provide the CSO with timely written notice of the suspension. Access and services will be reinstated only after satisfactory assurances have been provided to the FBI by the CGA and Contractor. Upon termination, the Contractor's records containing CHRI must be deleted or returned to the CGA.~~

~~1. Audit~~

~~1. The FBI is authorized to perform a final audit of the Contractor's systems after termination of the Security Addendum.~~

~~1. Scope and Authority~~

~~1. This Security Addendum does not confer, grant, or authorize any rights, privileges, or obligations on any persons other than the Contractor, CGA, CJA (where applicable), CSA, and FBI.~~

~~2. The following documents are incorporated by reference and made part of this agreement: (1) the Security Addendum; (2) the NCIC 2000 Operating Manual; (3) the CJIS Security Policy; and (4) Title 28, Code of Federal Regulations, Part 20. The parties are also subject to applicable federal and state laws and regulations.~~

~~3. The terms set forth in this document do not constitute the sole understanding by and between the parties hereto; rather they augment the provisions of the CJIS Security Policy to provide a minimum basis for the security of the system and contained information and it is understood that there may be terms and conditions of the appended Agreement which impose more stringent requirements upon the Contractor.~~

~~4. This Security Addendum may only be modified by the FBI, and may not be modified by the parties to the appended Agreement without the consent of the FBI.~~

~~5. All notices and correspondence shall be forwarded by First Class mail to:~~

~~Information Security Officer
Criminal Justice Information Services Division, FBI
1000 Custer Hollow Road
Clarksburg, West Virginia 26306~~

**FEDERAL BUREAU OF INVESTIGATION
CRIMINAL JUSTICE INFORMATION SERVICES
SECURITY ADDENDUM**

CERTIFICATION

I hereby certify that I am familiar with the contents of (1) the Security Addendum, including its legal authority and purpose; (2) the NCIC Operating Manual; (3) the CJS Security Policy; and (4) Title 28, Code of Federal Regulations, Part 20, and agree to be bound by their provisions.

I recognize that criminal history record information and related data, by its very nature, is sensitive and has potential for great harm if misused. I acknowledge that access to criminal history record information and related data is therefore limited to the purpose(s) for which a government agency has entered into the contract incorporating this Security Addendum. I understand that misuse of the system by, among other things: accessing it without authorization; accessing it by exceeding authorization; accessing it for an improper purpose; using, disseminating or re-disseminating information received as a result of this contract for a purpose other than that envisioned by the contract, may subject me to administrative and criminal penalties. I understand that accessing the system for an appropriate purpose and then using, disseminating or re-disseminating the information received for another purpose other than execution of the contract also constitutes misuse. I further understand that the occurrence of misuse does not depend upon whether or not I receive additional compensation for such authorized activity. Such exposure for misuse includes, but is not limited to, suspension or loss of employment and prosecution for state and federal crimes.

Printed Name/Signature of Contractor Employee — Date

Printed Name/Signature of Contractor Representative — Date

Organization and Title of Contractor Representative



Exhibit 7 Safeguarding Contract Language

I. PERFORMANCE—

In performance of this contract, the Contractor agrees to comply with and assume responsibility for compliance by officers or employees with the following requirements:—

- (1) All work will be performed under the supervision of the contractor.—
- (2) The contractor and contractor's officers or employees to be authorized access to FTI must meet background check requirements defined in IRS Publication 1075. The contractor will maintain a list of officers or employees authorized access to FTI. Such list will be provided to the agency and, upon request, to the IRS.—
- (3) FTI in hardcopy or electronic format shall be used only for the purpose of carrying out the provisions of this contract. FTI in any format shall be treated as confidential and shall not be divulged or made known in any manner to any person except as may be necessary in the performance of this contract. Inspection or disclosure of FTI to anyone other than the contractor or the contractor's officers or employees authorized is prohibited.—
- (4) FTI will be accounted for upon receipt and properly stored before, during, and after processing. In addition, any related output and products require the same level of protection as required for the source material.—
- (5) The contractor will certify that FTI processed during the performance of this contract will be completely purged from all physical and electronic data storage with no output to be retained by the contractor at the time the work is completed. If immediate purging of physical and electronic data storage is not possible, the contractor will certify that any FTI in physical or electronic storage will remain safeguarded to prevent unauthorized disclosures.—
- (6) Any spoilage or any intermediate hard copy printout that may result during the processing of FTI will be given to the agency. When this is not possible, the contractor will be responsible for the destruction of the spoilage or any intermediate hard copy printouts and will provide the agency with a statement containing the date of destruction, description of material destroyed, and the destruction method.—
- (7) All computer systems receiving, processing, storing, or transmitting FTI must meet the requirements in IRS Publication 1075. To meet functional and assurance requirements, the security features of the environment must provide for the managerial, operational, and technical controls. All security features must be available and activated to protect against unauthorized use of and access to FTI.—
- (8) No work involving FTI furnished under this contract will be subcontracted without the prior written approval of the IRS.—
- (9) Contractor will ensure that the terms of FTI safeguards described herein are included, without modification, in any approved subcontract for work involving FTI.—
- (10) To the extent the terms, provisions, duties, requirements, and obligations of this contract apply to performing services with FTI, the contractor shall assume toward the subcontractor all obligations, duties and responsibilities that the agency under this contract assumes toward the contractor, and the subcontractor shall assume toward the contractor all the same obligations, duties and responsibilities which the contractor assumes toward the agency under this contract.—
- (11) In addition to the subcontractor's obligations and duties under an approved subcontract, the terms and conditions of this contract apply to the subcontractor, and the subcontractor is bound and obligated to the contractor hereunder by the same terms and conditions by which the contractor is bound and obligated to the agency under this contract.—
- (12) For purposes of this contract, the term "contractor" includes any officer or employee of the contractor with access to or who uses FTI, and the term "subcontractor" includes any officer or employee of the subcontractor with access to or who uses FTI.—
- (13) The agency will have the right to void the contract if the contractor fails to meet the terms of FTI safeguards described herein.—

II. CRIMINAL/CIVIL SANCTIONS

- (1) Each officer or employee of a contractor to whom FTI is or may be disclosed shall be notified in writing that FTI disclosed to such officer or employee can be used only for a purpose and to the extent authorized herein, and that further disclosure of any FTI for a purpose not authorized herein constitutes a felony punishable upon conviction by a fine of as much as \$5,000 or imprisonment for as long as 5 years, or both, together with the costs of prosecution.—
- (2) Each officer or employee of a contractor to whom FTI is or may be accessible shall be notified in writing that FTI accessible to such officer or employee may be accessed only for a purpose and to the extent authorized herein, and that access/inspection of FTI without an official need to know for a purpose not authorized herein constitutes a criminal misdemeanor punishable upon conviction by a fine of as much as \$1,000 or imprisonment for as long as 1 year, or both, together with the costs of prosecution.—

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(3) Each officer or employee of a contractor to whom FTI is or may be disclosed shall be notified in writing that any such unauthorized access, inspection or disclosure of FTI may also result in an award of civil damages against the officer or employee in an amount equal to the sum of the greater of \$1,000 for each unauthorized access, inspection, or disclosure, or the sum of actual damages sustained as a result of such unauthorized access, inspection, or disclosure, plus in the case of a willful unauthorized access, inspection, or disclosure or an unauthorized access/inspection or disclosure which is the result of gross negligence, punitive damages, plus the cost of the action. These penalties are prescribed by IRC sections 7213, 7213A and 7431 and set forth at 26 CFR 301.6103(n) 1.

(3) Additionally, it is incumbent upon the contractor to inform its officers and employees of the penalties for improper disclosure imposed by the Privacy Act of 1974, 5 U.S.C. 552a. Specifically, 5 U.S.C. 552a(i)(1), which is made applicable to contractors by 5 U.S.C. 552a(m)(1), provides that any officer or employee of a contractor, who by virtue of his/her employment or official position, has possession of or access to agency records which contain individually identifiable information, the disclosure of which is prohibited by the Privacy Act or regulations established thereunder, and who knowing that disclosure of the specific material is so prohibited, willfully discloses the material in any manner to any person or agency not entitled to receive it, shall be guilty of a misdemeanor and fined not more than \$5,000.

(4) Granting a contractor access to FTI must be preceded by certifying that each officer or employee understands the agency's security policy and procedures for safeguarding FTI. A contractor and each officer or employee must maintain their authorization to access FTI through annual recertification of their understanding of the agency's security policy and procedures for safeguarding FTI. The initial certification and recertifications must be documented and placed in the agency's files for review. As part of the certification and at least annually afterwards, a contractor and each officer or employee must be advised of the provisions of IRC sections 7213, 7213A, and 7431 (see Exhibit 4, Sanctions for Unauthorized Disclosure, and Exhibit 5, Civil Damages for Unauthorized Disclosure). The training on the agency's security policy and procedures provided before the initial certification and annually thereafter must also cover the incident response policy and procedure for reporting unauthorized disclosures and data breaches. (See Section 10) For the initial certification and the annual recertifications, the contractor and each officer or employee must sign, either with ink or electronic signature, a confidentiality statement certifying their understanding of the security requirements.

III. INSPECTION

The IRS and the Agency, with 24 hour notice, shall have the right to send its inspectors into the offices and plants of the contractor to inspect facilities and operations performing any work with FTI under this contract for compliance with requirements defined in IRS Publication 1075. The IRS' right of inspection shall include the use of manual and/or automated scanning tools to perform compliance and vulnerability assessments of information technology (IT) assets that access, store, process or transmit FTI. Based on the inspection, corrective actions may be required in cases where the contractor is found to be noncompliant with FTI safeguard requirements.

BIDDER INSTRUCTIONS

Do you accept these Data Security Requirements as presented?

BIDDER RESPONSE:

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

We believe this is an accidental duplicate question. Please view our response at the top of Schedule E.



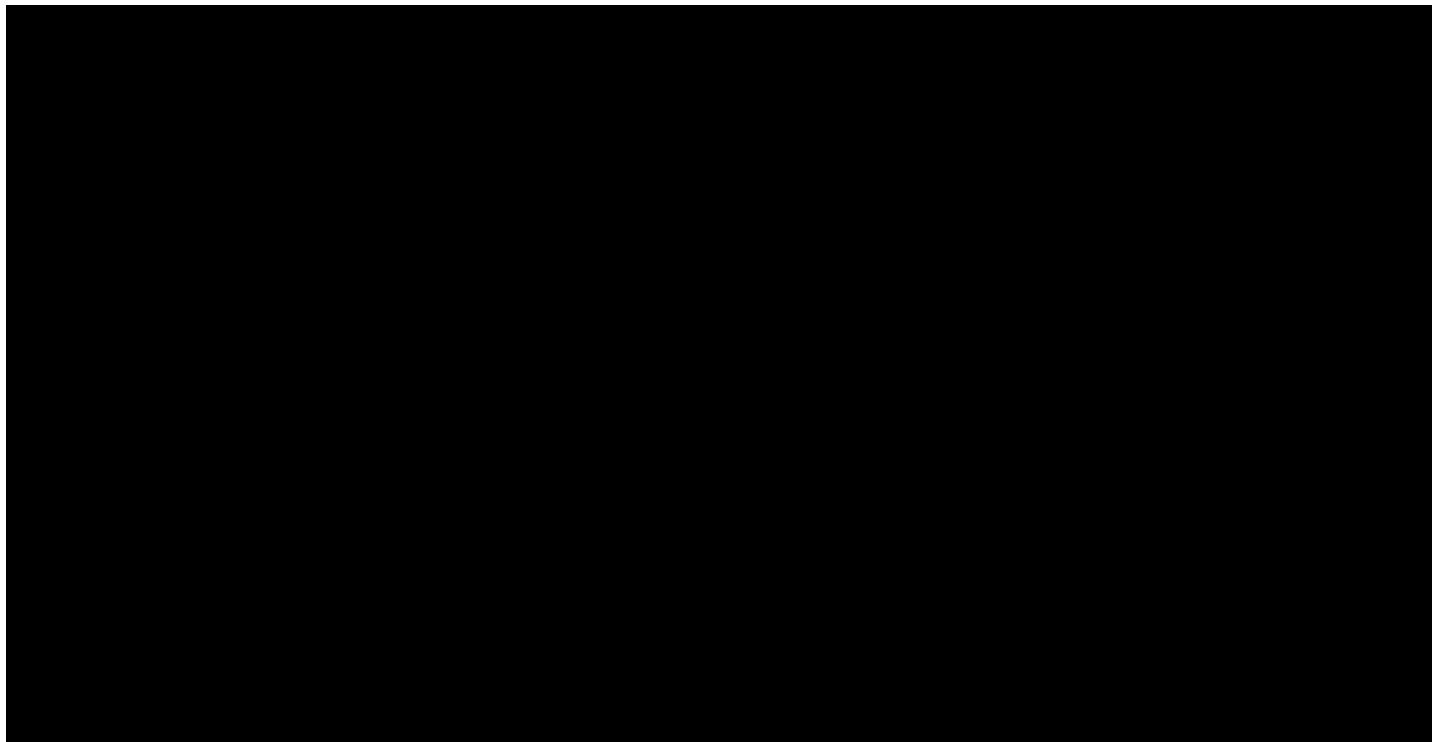
SCHEDULE F – DISASTER RECOVERY PLAN

BIDDER INSTRUCTIONS

Please provide a link to Bidder's Disaster Recovery Plan.

BIDDER RESPONSE:

Google Cloud provides a comprehensive approach to disaster recovery (DR) for our solutions, ensuring business continuity and minimizing downtime in the event of disruptions. Our approach is built on the following key pillars:



SCHEDULE G – TRANSITION IN AND OUT

BIDDER INSTRUCTIONS

Bidder must provide a detailed transition-in and transition-out plan, including any roles or responsibilities expected of the State. The plan must demonstrate the steps to migrate services between Bidder and a third-party or the State.

BIDDER RESPONSE:

As per Michigan's purpose stated above "Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance", thus Google cannot provide relevant transition in and out plans until each instance is described in detail. Once specific projects, task orders, statements of works, or statements of objectives are released then specific documents and guides for transition in and out can be crafted to meet the specific need.

If at some point you choose to leave Google Cloud, we do not charge for Data Egress Fees. Google was the first cloud provider in the industry to eliminate these costs. Expensive "move away" fees create customer lock-in. This limits customer choice. Google believes customers should have the freedom to choose their cloud provider. We don't impose penalties for switching. This gives the State long-term flexibility when this contract ends.

Google understands the importance of a smooth and efficient transition. Below is a sample template of how we *may* implement a transition plan. This will be adjusted as Google aligns to your specific use-case, timelines, dependencies, policies and compliance requirements.

[Sample Template] Transition-In Plan

Google's transition-in plan emphasizes a phased approach, minimizing disruption to your operations and ensuring a seamless transfer of services:

Phase 1: Discovery and Planning

- Requirements Gathering: Google will collaborate with your team to understand your specific needs and features.
- Solution Design: Based on the gathered requirements, we'll design a tailored solution that meets your needs and aligns with your future growth plans.
- Project Plan Development: We'll develop a detailed project plan outlining timelines, milestones, and responsibilities for both Google and your team.

Phase 2: Implementation and Configuration

- Environment Setup

- Data Migration
- Testing and Validation

Phase 3: Training and Go-Live

Phase 4: Optimization and Ongoing Support

- Performance Monitoring: Google will continuously monitor the performance of your solution and provide proactive support.
- System Optimization: Google will work with you to optimize the solution based on usage patterns and identify opportunities for improvement.

State's Roles and Responsibilities during Transition-In:

- Provide access to existing systems
- Participate in requirements gathering and solution design sessions.
- Assign dedicated personnel for project coordination and communication.
- Facilitate agent training and adoption of the new platform.

Transition-Out Plan

Our transition-out plan ensures a smooth handover of services, whether to a third-party provider or back to the State:

Phase 1: Knowledge Transfer

- Documentation: Google will provide documentation of the solution, including configurations, integrations, and operational procedures.
- Data Backup and Export: Google will assist in backing up and exporting data in a format compatible with the receiving system.

Phase 2: Service Migration

- Coordinated Transition: Google will work closely with the receiving team to safeguard a seamless migration of services, minimizing downtime.

State's Roles and Responsibilities during Transition-Out:

- Identify the receiving provider or internal team.
- Provide access to the receiving system and environment.
- Participate in knowledge transfer sessions and system training.
- Coordinate with the receiving team for service migration and number porting.



SCHEDULE H – RESERVED -



SCHEDULE I – RESERVED

SCHEDULE J – FEDERAL PROVISIONS ADDENDUM

BIDDER INSTRUCTIONS

NOTE: Neither the State nor Contractor may alter these federally required provisions.

Do you accept these Federal Provisions as presented?

BIDDER RESPONSE: Google accepts. Please note that many of the provisions below would be applicable only to the extent that a Contractor is deemed a “subrecipient” of a grant governed by 2 C.F.R. Part 200. Commercial providers, including Cloud Service Providers, generally support grant recipients as vendors, rather than as subgrantees or subrecipients. Contractor will work with the State to, through a Contract Change Notice, append or modify the Contract or any order placed through the Contract, to include any provisions applicable to contractors or vendors reasonably necessary to keep the State in compliance with federal funding requirements and comply with the terms set forth therein.

Contractor acknowledges and agrees that the State may utilize funds obtained from the federal government which may have additional contractual requirements. Contractor agrees that, if the State determines that federal rules or regulations require the appendage of specific contractual language to this Contract related to specific types of federal funding, including but not limited to [Title 2 of the Code of Federal Regulations \(C.F.R.\) Part 200](#) and [Appendix II to Part 200 – Contract Provisions for Non-Federal Entity Contracts Under Federal Awards](#), Contractor agrees to, through a Contract Change Notice, append such required contractual language to this Contract if reasonably necessary to keep the State and Contractor in compliance with federal funding requirements and comply with the terms set forth therein.

This addendum applies to purchases that will be paid for in whole or in part with funds obtained from the federal government. The provisions below are required, and the language is not negotiable. Contractor agrees to comply with all obligations under federal rules or regulations for such funding, including but not limited to the provisions contained in this addendum. If any provision below conflicts with the State’s terms and conditions, including any attachments, schedules, or exhibits to this Contract, the provisions below take priority to the extent a provision is required by federal law; otherwise, the order of precedence set forth in the Contract applies. Further, Contractor agrees to, through a Contract Change Notice, append or modify specific federal provisions to this Contract, if reasonably necessary to keep the State and Contractor in compliance with federal funding requirements, and comply with the terms set forth therein. Hyperlinks are provided for convenience only; broken hyperlinks will not relieve Contractor from compliance with the law.

A. Equal Employment Opportunity

This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#).

B. Davis-Bacon Act (Prevailing Wage)

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This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#), nor is it a prime construction contract in excess of \$2,000.

C. Copeland “Anti-Kickback” Act

This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#), nor is it a prime construction contract in excess of \$2,000 where the Davis-Bacon Act applies.

D. Contract Work Hours and Safety Standards Act

The Contract does not involve the employment of mechanics or laborers.

E. Rights to Inventions Made Under a Contract or Agreement

If this Contract is funded by a federal “funding agreement” as defined under [37 CFR §401.2 \(a\)](#) and the recipient or subrecipient wishes to enter into a contract with a small business firm or nonprofit organization regarding the substitution of parties, assignment or performance of experimental, developmental, or research work under that “funding agreement,” the recipient or subrecipient must comply with [37 CFR Part 401](#), “Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements,” and any implementing regulations issued by the awarding agency.

F. Clean Air Act and the Federal Water Pollution Control Act

If this Contract is **in excess of \$150,000**, the Contractor must comply with all applicable standards, orders, and regulations issued under the Clean Air Act ([42 USC 7401-7671g](#)) and the Federal Water Pollution Control Act ([33 USC 1251-1387](#)), and during performance of this Contract the Contractor agrees as follows:

(1) Clean Air Act

- (i) The Contractor agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. § 7401 et seq.
- (ii) The Contractor agrees to report each violation to the State and understands and agrees that the State will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency or the applicable federal awarding agency, and the appropriate Environmental Protection Agency Regional Office.
- (iii) The Contractor agrees to include these requirements in each subcontract exceeding \$150,000 financed in whole or in part with Federal assistance provided by FEMA or the applicable federal awarding agency.

(2) Federal Water Pollution Control Act

- (i) The Contractor agrees to comply with all applicable standards, orders, or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 et seq.
- (ii) The Contractor agrees to report each violation to the State and understands and agrees that the State will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency or the

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applicable federal awarding agency, and the appropriate Environmental Protection Agency Regional Office.

- (iii) The Contractor agrees to include these requirements in each subcontract exceeding \$150,000 financed in whole or in part with Federal assistance provided by FEMA or the applicable federal awarding agency.

G. Debarment and Suspension

A "contract award" (see [2 CFR 180.220](#)) must not be made to parties listed on the government-wide exclusions in the [System for Award Management](#) (SAM), in accordance with the OMB guidelines at [2 CFR 180](#) that implement [Executive Orders 12549](#) ([51 FR 6370; February 21, 1986](#)) and [12689](#) ([54 FR 34131; August 18, 1989](#)), "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than [Executive Order 12549](#).

- (1) This Contract is a covered transaction for purposes of 2 C.F.R. Part 180 and 2 C.F.R. Part 3000. As such, the Contractor is required to verify that none of the Contractor's principals (defined at 2 C.F.R. § 180.995) or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).
- (2) The Contractor must comply with 2 C.F.R. Part 180, subpart C and 2 C.F.R. Part 3000, subpart C, and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into.
- (3) This certification is a material representation of fact relied upon by the State. If it is later determined that the contractor did not comply with 2 C.F.R. Part. 180, subpart C and 2 C.F.R. Part. 3000, subpart C, in addition to remedies available to the State, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment.
- (4) The bidder or proposer agrees to comply with the requirements of 2 C.F.R. Part 180, subpart C and 2 C.F.R. Part 3000, subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

H. Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352 (as amended)

Contractor has applied or bid for an award of **more than \$100,000** and shall file the required certification in *Exhibit 1 – Byrd Anti-Lobbying Certification* attached to the end of this Addendum. Each tier certifies to the tier above that it will not and has not used federally appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, officer or employee of Congress, or an employee of a Member of Congress in connection with obtaining any federal contract, grant, or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose any lobbying with non-federal funds that takes place in connection with obtaining any federal award. Such disclosures are forwarded from tier to tier up to the recipient who in turn will forward the certification(s) to the federal awarding agency.

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I. Procurement of Recovered Materials

If this Contract is a procurement to purchase products or items designated by the EPA under [40 C.F.R. part 247](#) during the course of a fiscal year, then under [2 C.F.R. 200.323](#), Contractors must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act.

- (1) In the performance of this contract, the Contractor shall make maximum use of products containing recovered materials that are EPA-designated items unless the product cannot be acquired:
 - (i) Competitively within a timeframe providing for compliance with the contract performance schedule;
 - (ii) Meeting contract performance requirements; or
 - (iii) At a reasonable price.
- (2) Information about this requirement, along with the list of EPA- designated items, is available at EPA's Comprehensive Procurement Guidelines web site, <https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program>.
- (3) The Contractor also agrees to comply with all other applicable requirements of Section 6002 of the Solid Waste Disposal Act.

J. Prohibition on Contracting for Covered Telecommunications Equipment or Services

Contractor acknowledges and agrees that [Section 889\(b\) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232 \(the "McCain Act"\)](#), and [2 C.F.R. §200.216](#), prohibit the obligation or expending of federal award funds on certain telecommunication products or with certain entities for national security reasons on or after August 13, 2020.

During performance of this Contract, the Contractor agrees as follows:

- (a) *Definitions.* As used in this Section J. Prohibition on Contracting for Covered Telecommunications Equipment or Services ("Section J"):
 - (1) the terms "backhaul," "critical technology," "interconnection arrangements," "reasonable inquiry," "roaming," and "substantial or essential component" have the meanings defined in 48 CFR § 4.2101;
 - (2) the term "covered foreign country" has the meanings defined in § 889(f)(2) of the McCain Act; and
 - (3) the term "covered telecommunications equipment or services" has the meaning defined in § 889(f)(3) of the McCain Act.
- (b) *Prohibitions.*
 - (1) Unless an exception in paragraph (c) of this Section J applies, neither the Contractor nor any of its subcontractors may use funds received under this Contract to:



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- (i) Procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;
- (ii) Enter into, extend, or renew a contract to procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;
- (iii) Enter into, extend, or renew a contract with an entity that uses any covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system; or
- (iv) Provide, as part of its performance of this contract, subcontract, or other contractual instrument, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Exceptions.

- (1) This Section J does not prohibit Contractor from providing—
 - (i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
 - (ii) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement.

- (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this Section J to the recipient or subrecipient, unless elsewhere in this contract are established procedures for reporting the information.
- (2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this Section J:
 - (i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

- (ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this Section J: Any further available information about mitigation actions undertaken or recommended. In addition, the contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts.* The Contractor shall insert the substance of this Section J, including this paragraph (e), in all subcontracts and other contractual instruments.

K. Domestic Preferences for Procurements

As appropriate, and to the extent consistent with law, the Contractor should, to the greatest extent practicable, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States. This includes, but is not limited to iron, aluminum, steel, cement, and other manufactured products.

For purposes of this Section K – Domestic Preferences for Procurements:

“Produced in the United States” means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.

1. ***“Manufactured products”* mean items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber.**

L. Affirmative Socioeconomic Steps

For all contracts utilizing federal funding sources subject to Title 2 of the Code of Federal Regulations (C.F.R.) Part 200 issued on or after November 12, 2020, if subcontracts are to be let, the prime contractor is required to take all necessary steps identified in 2 C.F.R. § 200.321(b)(1)-(5) to ensure that small and minority businesses, women’s business enterprises, and labor surplus area firms are used when possible.

M. Copyright and Data Rights

Pursuant to 2 CFR § 200.315(b), the State may copyright any work which is subject to copyright and was developed, or for which ownership was acquired, under a Federal award. The Federal awarding agency reserves a royalty-free, nonexclusive and irrevocable right to reproduce, publish, or otherwise use the work for Federal purposes, and to authorize others to do so.

N. Additional FEMA Contract Provisions

This Contract does not involve purchases that will be paid for in whole or in part with funds obtained from the Federal Emergency Management Agency (FEMA).

O. Other Federal Contract Provisions

No additional federal provisions currently apply to this Contract.

SCHEDULE J - EXHIBIT 1

Byrd anti-lobbying certification

BIDDER INSTRUCTIONS

NOTE: Neither the State nor Contractor may alter these federally required provisions.

Do you accept these Federal Provisions as presented?

BIDDER RESPONSE: Google accepts.

Contractor must complete this certification if the purchase will be paid for in whole or in part with funds obtained from the federal government and the purchase is greater than \$100,000.

APPENDIX A, 44 C.F.R. PART 18 – CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

The undersigned certifies, to the best of his or her knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.
3. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, Title 31, U.S. C. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

The Contractor, **Google LLC**, certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that

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the provisions of 31 U.S.C. Chap. 38, Administrative Remedies for False Claims and Statements, apply to this certification and disclosure, if any.

Signature of Contractor's Authorized Official

Philip Schindler, Google LLC, SVP, Chief Business
Officer

Name and Title of Contractor's Authorized Official

Date